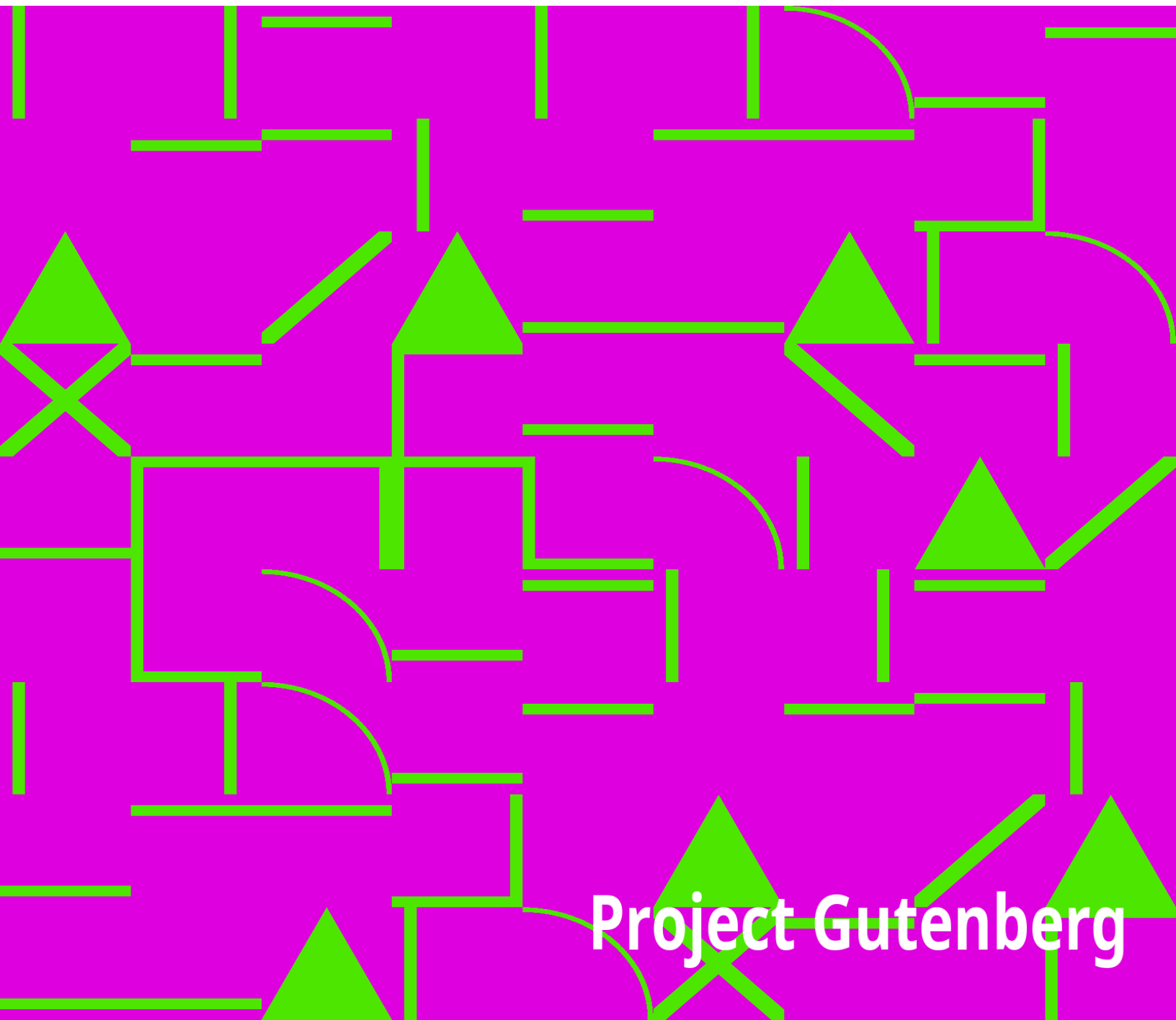


The Third Degree: A Narrative of Metropolitan Life

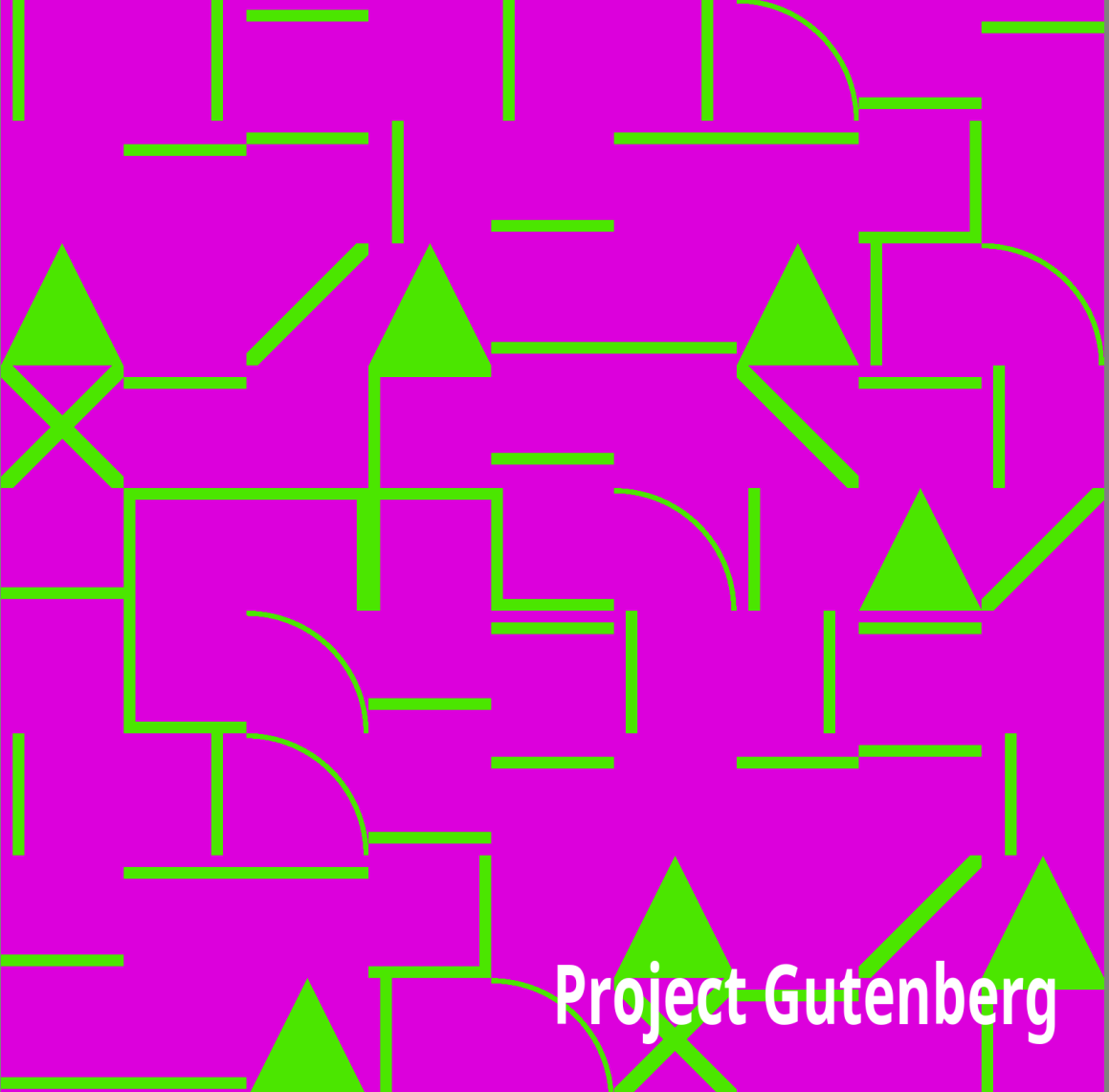
Charles Klein and Arthur Hornblow

An abstract geometric pattern composed of various shapes including triangles, squares, rectangles, and circles, all outlined in black and filled with a solid blue color. The shapes are scattered across the lower half of the image, creating a complex, modernist design.

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The Third Degree: A Narrative of Metropolitan Life

Charles Klein and Arthur Hornblow



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Title: The Third Degree: A Narrative of Metropolitan Life

Author: Charles Klein
Arthur Hornblow

Release date: April 5, 2009 [eBook #28505]

Language: English

Other information and formats: www.gutenberg.org/ebooks/28505

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THE THIRD DEGREE

A Narrative of Metropolitan Life

By CHARLES KLEIN AND ARTHUR HORNBLOW

Authors of the novel THE LION AND THE MOUSE

Illustrations by CLARENCE ROWE

GROSSET & DUNLAP Publishers :: New York

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**"I ACCUSE YOU OF PREJUDICING THE COMMUNITY
AGAINST THE PRISONER BEFORE HE COMES TO
TRIAL."**

CONTENTS

[CHAPTER I.](#)
[CHAPTER II.](#)
[CHAPTER III.](#)
[CHAPTER IV.](#)
[CHAPTER V.](#)
[CHAPTER VI.](#)
[CHAPTER VII.](#)
[CHAPTER VIII.](#)
[CHAPTER IX.](#)
[CHAPTER X.](#)
[CHAPTER XI.](#)
[CHAPTER XII.](#)
[CHAPTER XIII.](#)
[CHAPTER XIV.](#)
[CHAPTER XV.](#)
[CHAPTER XVI.](#)
[CHAPTER XVII.](#)
[CHAPTER XVIII.](#)
[CHAPTER XIX.](#)

[BOOKS ON NATURE STUDY BY CHARLES G. D. ROBERTS](#)
[FAMOUS COPYRIGHT BOOKS IN POPULAR PRICED EDITIONS](#)
[BRILLIANT AND SPIRITED NOVELS AGNES AND EGERTON](#)
[CASTLE](#)
[THE MASTERLY AND REALISTIC NOVELS OF FRANK NORRIS](#)
[NEW EDITIONS OF THE MOST POPULAR NOVELS OF HALLIE](#)
[ERMINIE RIVES](#)

List of Illustrations

"I ACCUSE YOU OF PREJUDICING THE COMMUNITY AGAINST
THE PRISONER BEFORE HE COMES TO TRIAL."

"YOU DID IT, AND YOU KNOW YOU DID IT."

"I CAN DO NOTHING FOR YOU," SAID THE JUDGE.

"WHEN THIS MYSTERIOUS WITNESS DOES COME I SHALL PLACE
HER UNDER ARREST."

The Third Degree

CHAPTER I.

"I'm N. G.—that's a cinch! The sooner I chuck it the better!"

Caught in the swirl of the busy city's midday rush, engulfed in Broadway's swift moving flood of hustling humanity, jostled unceremoniously by the careless, indifferent crowds, discouraged from stemming further the tide of pushing, elbowing men and women who hurried up and down the great thoroughfare, Howard Jeffries, tired and hungry and thoroughly disgusted with himself, stood still at the corner of Fulton street, cursing the luck which had brought him to his present plight.

It was the noon hour, the important time of day when nature loudly claims her due, when business affairs, no matter how pressing, must be temporarily interrupted so that the human machine may lay in a fresh store of nervous energy. From under the portals of precipitous office buildings, mammoth hives of human industry, which to right and left soared dizzily from street to sky, swarmed thousands of employees of both sexes—clerks, stenographers, shop-girls, messenger boys, all moved by a common impulse to satisfy without further delay the animal cravings of their physical natures. They strode along with quick, nervous step, each chatting and laughing with his fellow, interested for the nonce in the day's work, making plans for well-earned recreation when five o'clock should come and the up-town stampede for Harlem and home begin.

The young man sullenly watched the scene, envious of the energy and activity of all about him. Each one in these hurrying throngs, he thought bitterly to himself, was a valuable unit in the prosperity and welfare of the big town. No matter how humble his or her position, each played a part in the business life of the great city, each was an unseen, unknown, yet indispensable cog in the whirling, complicated mechanism of the vast world-metropolis. Intuitively he felt that he was not one of them, that he had no right even to consider himself their equal. He was utterly useless to anybody. He was without position or money. He was destitute even of a shred of self-respect. Hadn't he promised Annie not to touch liquor again

before he found a job? Yet he had already imbibed all the whiskey which the little money left in his pocket would buy.

Involuntarily, instinctively, he shrank back into the shadow of a doorway to let the crowds pass. The pavements were now filled to overflowing and each moment newcomers from the side streets came to swell the human stream. He tried to avoid observation, fearing that some one might recognize him, thinking all could read on his face that he was a sot, a self-confessed failure, one of life's incompetents. In his painful self-consciousness he believed himself the cynosure of every eye and he winced as he thought he detected on certain faces side glances of curiosity, commiseration and contempt.

Nor was he altogether mistaken. More than one passer-by turned to look in his direction, attracted by his peculiar appearance. His was a type not seen every day in the commercial district—the post-graduate college man out at elbows. He was smooth-faced and apparently about twenty-five years of age. His complexion was fair and his face refined. It would have been handsome but for a drooping, irresolute mouth, which denoted more than average weakness of character. The face was thin, chalk-like in its lack of color and deeply seamed with the tell-tale lines of dissipation. Dark circles under his eyes and a peculiar watery look suggested late hours and overfondness for alcoholic refreshment. His clothes had the cut of expensive tailors, but they were shabby and needed pressing. His linen was soiled and his necktie disarranged. His whole appearance was careless and suggested that recklessness of mind which comes of general demoralization.

Howard Jeffries knew that he was a failure, yet like most young men mentally weak, he insisted that he could not be held altogether to blame. Secretly, too, he despised these sober, industrious people who seemed contented with the crumbs of comfort thrown to them. What, he wondered idly, was their secret of getting on? How were they able to lead such well regulated lives when he, starting out with far greater advantages, had failed? Oh, he knew well where the trouble lay—in his damnable weakness of character, his love for drink. That was responsible for everything. But was it his fault if he were born weak? These people who behaved themselves and got on, he sneered, were calm, commonplace temperaments who found no difficulty in controlling their baser instincts. They did right simply because

they found it easier than to do wrong. Their virtue was nothing to brag about. It was easy to be good when not exposed to temptation. But for those born with the devil in them it came hard. It was all a matter of heredity and influence. One's vices as well as one's virtues are handed down to us ready made. He had no doubt that in the Jeffries family somewhere in the unsavory past there had been a weak, vicious ancestor from whom he had inherited all the traits which barred his way to success.

The crowds of hungry workers grew bigger every minute. Every one was elbowing his way into neighboring restaurants, crowding the tables and buffets, all eating voraciously as they talked and laughed. Howard was rudely reminded by inward pangs that he, too, was famished. Not a thing had passed his lips since he had left home in Harlem at eight o'clock that morning and he had told Annie that he would be home for lunch. There was no use staying downtown any longer. For three weary hours he had trudged from office to office seeking employment, answering advertisements, asking for work of any kind, ready to do no matter what, but all to no purpose. Nobody wanted him at any price. What was the good of a man being willing to work if there was no one to employ him? A nice look-out certainly. Hardly a dollar left and no prospect of getting any more. He hardly had the courage to return home and face Annie. With a muttered exclamation of impatience he spat from his mouth the half-consumed cigarette which was hanging from his lip, and crossing Broadway, walked listlessly in the direction of Park Place.

He had certainly made a mess of things, yet at one time, not so long ago, what a brilliant future life seemed to have in store for him! No boy had ever been given a better start. He remembered the day he left home to go to Yale; he recalled his father's kind words of encouragement, his mother's tears. Ah, if his mother had only lived! Then, maybe, everything would have been different. But she died during his freshman year, carried off suddenly by heart failure. His father married again, a young woman twenty years his junior, and that had started everything off wrong. The old home life had gone forever. He had felt like an intruder the first time he went home and from that day his father's roof had been distasteful to him. Yes, that was the beginning of his hard luck. He could trace all his misfortunes back to that. He couldn't stand for mother-in-law, a haughty, selfish, supercilious,

ambitious creature who had little sympathy for her predecessor's child, and no scruple in showing it.

Then, at college, he had met Robert Underwood, the popular upper-class man, who had professed to take a great fancy to him. He, a timid young freshman, was naturally flattered by the friendship of the dashing, fascinating sophomore and thus commenced that unfortunate intimacy which had brought about the climax to his troubles. The suave, amiable Underwood, whom he soon discovered to be a gentlemanly scoundrel, borrowed his money and introduced him into the "sporty" set, an exclusive circle into which, thanks to his liberal allowance from home, he was welcomed with open arms. With a youth of his proclivities and inherent weakness the outcome was inevitable. At no time overfond of study, he regarded residence in college as a most desirable emancipation from the restraint of home life. The love of books he considered a pose and he scoffed at the men who took their reading seriously. The university attracted him mostly by its most undesirable features, its sports, its secret societies, its petty cliques, and its rowdyism. The broad spirit and the dignity of the *alma mater* he ignored completely. Directly he went to Yale he started in to enjoy himself and with the sophisticated Underwood as guide, went to the devil faster than any man before him in the entire history of the university.

Reading, attendance at lectures, became only a convenient cloak to conceal his turpitudes. Poker playing, automobile joy rides, hard drinking became the daily curriculum. In town rows and orgies of every description he was soon a recognized leader. Scandal followed scandal until he was threatened with expulsion. Then his father heard of it and there was a terrible scene. Jeffries, Sr., went immediately to New Haven and there followed a stormy interview in which Howard promised to reform, but once the parent's back was turned things went on pretty much as before. There were fresh scandals, the smoke of which reached as far as New York. This time Mr. Jeffries tried the plan of cutting down the money supply and Howard found himself financially embarrassed. But this had not quite the effect desired by the father, for, rendered desperate by his inability to secure funds with which to carry on his sprees, the young man started in to gamble heavily, giving notes for his losses and pocketing the ready money when he won.

Then came the supreme scandal which turned his father's heart to steel. Jeffries, Sr., could forgive much in a young man. He had been young himself once. None knew better than he how difficult it is when the blood is rich and red to keep oneself in control. But there was one offence which a man proud of his descent could not condone. He would never forgive the staining of the family name by a degrading marriage. The news came to the unhappy father like a thunder-clap. Howard, probably in a drunken spree, had married secretly a waitress employed in one of the "sporty" restaurants in New Haven, and to make the *mésalliance* worse, the girl was not even of respectable parents. Her father, Billy Delmore, the pool-room king, was a notorious gambler and had died in convict stripes. Fine sensation that for the yellow press. "Banker's Son Weds Convict's Daughter." So ran the "scare heads" in the newspapers. That was the last straw for Mr. Jeffries, Sr. He sternly told his son that he never wanted to look upon his face again. Howard bowed his head to the decree and he had never seen his father since.

All this the young man was reviewing in his mind when suddenly his reflections were disturbed by a friendly hail.

"Hello, Jeffries, old sport! Don't you know a fellow frat when you see him?"

He looked up. A young man of athletic build, with a pleasant, frank face, was standing at the news stand under the Park Place elevated station. Quickly Howard extended his hand.

"Hello, Coxe!" he exclaimed. "What on earth are you doing in New York? Whoever would have expected to meet you in this howling wilderness? How's everything at Yale?"

The athlete grinned.

"Yale be hanged! I don't care a d—. You know I graduated last June. I'm in business now—in a broker's office in Wall Street. Say, it's great! We had a semi-panic last week. Prices went to the devil. Stocks broke twenty points. You should have seen the excitement on the Exchange floor. Our football rushes were nothing to it. I tell you, it's great. It's got college beaten to a frazzle!" Quickly he added: "What are you doing?"

Howard averted his eyes and hung his head.

"Nothing," he answered gloomily.

Coxe had quickly taken note of his former classmate's shabby appearance. He had also heard of his escapades.

"Didn't you hear?" muttered Howard. "Row with governor, marriage and all that sort of thing?"

"Of course," he went on, "father's damnably unjust, actuated by absurd prejudice. Annie's a good girl and a good wife, no matter what her father was. D—n it, this is a free country! A man can marry whom he likes. All these ideas about family pride and family honor are old-world notions, foreign to this soil. I'm not going to give up Annie to please any one. I'm as fond of her now as ever. I haven't regretted a moment that I married her. Of course, it has been hard. Father at once shut down money supplies, making my further stay at Yale impossible, and I was forced to come to New York to seek employment. We've managed to fix up a small flat in Harlem and now, like Micawber, I'm waiting for something to turn up."

Coxe nodded sympathetically.

"Come and have a drink," he said cheerily.

Howard hesitated. Once more he remembered his promise to Annie, but as long as he had broken it once he would get no credit for refusing now. He was horribly thirsty and depressed. Another drink would cheer him up. It seemed even wicked to decline when it wouldn't cost him anything.

They entered a bar conveniently close at hand, and with a tremulous hand Howard carried greedily to his lips the insidious liquor which had undermined his health and stolen away his manhood.

"Have another?" said Coxe with a smile as he saw the glass emptied at a gulp.

"I don't care if I do," replied Howard. Secretly ashamed of his weakness, he shuffled uneasily on his feet.

"Well, what are you going to do, old man?" demanded Coxe as he pushed the whiskey bottle over.

"I'm looking for a job," stammered Howard awkwardly. Hastily he went on: "It isn't so easy. If it was only myself I wouldn't mind. I'd get along somehow. But there's the little girl. She wants to go to work, and I won't hear of it. I couldn't stand for that, you know."

Coxe feared a "touch." Awkwardly he said:

"I wish I could help you, old man. As it is, my own salary barely serves to keep me in neckwear. Wall Street's great fun, but it doesn't pay much; that is, not unless you play the game yourself."

Howard smiled feebly as he replied:

"Nonsense—I wouldn't accept help of that sort. I'm not reduced to soliciting charity yet. I guess I'd prefer the river to that. But if you hear of anything, keep me in mind."

The athlete made no response. He was apparently lost in thought when suddenly he blurted out:

"Say, Jeffries, you haven't got any money, have you—say a couple of thousand dollars?"

Howard stared at the questioner as if he doubted his sanity.

"Two thousand dollars!" he gasped. "Do you suppose that I'd be wearing out shoe leather looking for a job, if I had two thousand dollars?"

Coxe looked disappointed as he replied:

"Oh, of course, I understand you haven't it on you, only I thought you might be able to raise it."

"Why do you ask?" inquired Howard, his curiosity aroused.

Coxe looked around to see if any one was listening. Then in a whisper he said:

"It's a cinch. If you had \$2,000, you and I could make a snug little fortune. Don't you understand? In my office I get tips. I'm on the inside. I know in advance what the big men are going to do. When they start to move a certain stock up, I'm on the job. Understand? If you had \$2,000, I could raise as much, and we'd pool our capital, starting in the business ourselves—on a small scale, of course. If we hit it right we might make a nice income."

Howard's mouth watered. Certainly that was the kind of life he liked best. The feverish excitement of gambling, the close association with rich men, the promise of a luxurious style of living—all this appealed to him strongly. But what was the use? Where could he get \$2,000? He couldn't go to his father. He shook his head.

"I'm afraid not, old sport," he said as they left the saloon and he held out his hand to say good-by. "But I'll bear it in mind, and if things improve, I'll look you up. So long!"

Climbing wearily up the dirty stairs of the elevated railroad, he bought a ticket with one of the few nickels remaining in his pocket, and taking a seat in a northbound train started on his trip back to Harlem.

The day was overcast, rain threatened. A pall of mingled smoke and mist hung over the entire city. From the car window as the train wound its serpentine course in and out the maze of grimy offices, shops and tenements, everything appeared drab, dirty and squalid. New York was seen at its ugliest. Ensconced in a cross-seat, his chin leaning heavily on his hand, Howard gazed dejectedly out of the window. The depressing outlook was in keeping with his own state of mind.

How would the adventure end? Reconciliation with his father was out of the question. Letters sent home remained without response. He wasn't surprised. He knew his father too well to expect that he would relent so soon. Besides, if the old man were so infernally proud, he'd show him he had some pride too. He'd drown himself before he'd go down on his knees, whining to be forgiven. His father was dead wrong, anyway. His marriage might have been foolish; Annie might be beneath him socially. She was not educated and her father wasn't any better than he ought to be. She did not talk correctly, her manners left much to be desired, at times he was secretly

ashamed of her. But her bringing up was her misfortune, not her fault. The girl herself was straight as a die. She had a heart of gold. She was far more intelligent, far more likely to make him a happy home than some stuck-up, idle society girl who had no thought for anything save money, dress and show. Perhaps if he had been less honorable and not married her, his father would have thought more highly of him. If he'd ruined the girl, no doubt he would have been welcomed home with open arms. Pshaw! He might be a poor, weak fool, but, thank God, they couldn't reproach him with that. Annie had been loyal to him throughout. He'd stick to her through thick and thin.

As the train swept round the curve at 53d Street and started on its long, straight run up the West Side, his mind reverted to Robert Underwood. He had seen his old associate only once since leaving college. He ran across him one day on Fifth Avenue. Underwood was coming out of a curio shop. He explained hurriedly that he had left Yale and when asked about his future plans talked vaguely of going in for art. His manner was frigid and nervous—the attitude of the man who fears he may be approached for a small loan. He was evidently well aware of the change in his old associate's fortunes and having squeezed all he could out of him, had no further use for him. It was only when he had disappeared that Howard suddenly remembered a loan of \$250 which Underwood had never repaid. Some time later Howard learned that he occupied apartments at the exclusive and expensive Astruria where he was living in great style. He went there determined to see him and demand his money, but the card always came back "not at home."

Underwood had always been a mystery to Howard. He knew him to be an inveterate gambler and a man entirely without principle. No one knew who his family were or where he came from. His source of income, too, was always a puzzle. At college he was always hard up, borrowing right and left and forgetting to pay, yet he always succeeded in living on the fat of the land. His apartments in the Astruria cost a small fortune; he dressed well, drove a smart turnout and entertained lavishly. He was not identified with any particular business or profession. On leaving college he became interested in art. He frequented the important art sales and soon got his name in the newspapers as an authority on art matters. His apartment was literally a museum of European and Oriental art. On all sides were paintings

by old masters, beautiful rugs, priceless tapestries, rare ceramics, enamels, statuary, antique furniture, bronzes, etc. He passed for a man of wealth, and mothers with marriageable daughters, considering him an eligible young bachelor, hastened to invite him to their homes, none of them conscious of the danger of letting the wolf slip into the lambs' fold.

What a strange power of fascination, mused Howard as the train jogged along, men of Underwood's bold and reckless type wield, especially over women. Their very daring and unscrupulousness seems to render them more attractive. He himself at college had fallen entirely under the man's spell. There was no doubt that he was responsible for all his troubles. Underwood possessed the uncanny gift of being able to bend people to his will. What a fool he had made of him at the university! He had been his evil genius, there was no question of that. But for meeting Underwood he might have applied himself to serious study, left the university with honors and be now a respectable member of the community. He remembered with a smile that it was through Underwood that he had met his wife. Some of the fellows hinted that Underwood had known her more intimately than he had pretended and had only passed her on to him because he was tired of her. He had nailed that as a lie. Annie, he could swear, was as good a girl as ever breathed.

He couldn't explain Underwood's influence over him. He had done with him what he chose. He wondered why he had been so weak, why he had not tried to resist. The truth was Underwood exercised a strange, subtle power over him. He had the power to make him do everything he wanted him to do, no matter how foolish or unreasonable the request. Every one at college used to talk about it. One night Underwood invited all his classmates to his rooms and made him cut up all kinds of capers. He at first refused, point blank—but Underwood got up and, standing directly in front of him, gazed steadily into his eyes. Again he commanded him to do these ridiculous, degrading things. Howard felt himself weakening. He was suddenly seized with the feeling that he must obey. Amid roars of laughter he recited the entire alphabet standing on one leg, he crowed like a rooster, he hopped like a toad, and he crawled abjectly on his belly like a snake. One of the fellows told him afterward that he had been hypnotized. He had laughed at it then as a good joke, but now he came to think of it, perhaps it was true. Possibly he

was a subject. Anyway he was glad to be rid of Underwood and his uncanny influence.

The train stopped with a jerk at his station and Howard rode down in the elevator to the street Crossing Eighth Avenue, he was going straight home when suddenly he halted. The glitter and tempting array of bottles in a corner saloon window tempted him. He suddenly felt that if there was one thing he needed in the world above all others it was another drink. True, he had had more than enough already. But that was Coxe's fault. He had invited him and made him drink. There couldn't be any harm in taking another. He might as well be hanged for a sheep as a lamb. By the time he emerged from the saloon his speech was thick and his step uncertain. A few minutes later he was painfully climbing up the rickety stairs of a cheap-looking flat house. As he reached the top floor a cheerful voice called out:

"Is that you, Howard, dear?"

CHAPTER II.

A young woman hurried out of one of the apartments to greet Howard. She was a vivacious brunette of medium height, intelligent looking, with good features and fine teeth. It was not a doll face, but the face of a woman who had experienced early the hard knocks of the world, yet in whom adversity had not succeeded in wholly subduing a naturally buoyant, amiable disposition. There was determination in the lines above her mouth. It was a face full of character, the face of a woman who by sheer dint of dogged perseverance might accomplish any task she cared to set herself. A smile of welcome gleamed in her eyes as she inquired eagerly:

"Well, dear, anything doing?"

Howard shook his head for all response and a look of disappointment crossed the young wife's face.

"Say, that's tough, ain't it?" she exclaimed. "The janitor was here again for the rent. He says they'll serve us with a disposess. I told him to chase himself, I was that mad."

Annie's vocabulary was emphatic, rather than choice. Entirely without education, she made no pretense at being what she was not and therein perhaps lay her chief charm. As Howard stooped to kiss her, she said reproachfully:

"You've been drinking again, Howard. You promised me you wouldn't."

The young man made no reply. With an impatient gesture he passed on into the flat and flung himself down in a chair in the dining room. From the adjoining kitchen came a welcome odor of cooking.

"Dinner ready?" he demanded. "I'm devilish hungry."

"Yes, dear, just a minute," replied his wife from the kitchen. "There's some nice Irish stew, just what you like."

The box-like hole where Howard sat awaiting his meal was the largest room in a flat which boasted of "five and bath." There was a bedroom of equally diminutive proportions and a parlor with wall paper so loud that it talked. There was scarcely enough room to swing a cat around. The thin walls were cracked, the rooms were carpetless. Yet it showed the care of a good housekeeper. Floors and windows were clean, the cover on the table spotless. The furnishings were as meagre as they were ingenious. With their slender purse they had been able to purchase only the bare necessities—a bed, a chair or two, a dining-room table, a few kitchen utensils. When they wanted to sit in the parlor they had to carry a chair from the dining room; when meal times came the chairs had to travel back again. A soap box turned upside down and neatly covered with chintz did duty as a dresser in the bedroom, and with a few photographs and tacks they had managed to impart an æsthetic appearance to the parlor. This place cost the huge sum of \$25 a month. It might just as well have cost \$100 for all Howard's ability to pay it. The past month's rent was long overdue and the janitor looked more insolent every day. But they did not care. They were young and life was still before them.

Presently Annie came in carrying a steaming dish of stew, which she laid on the table. As she helped Howard to a plate full she said: "So you had no luck again this morning?"

Howard was too busy eating to answer. As he gulped down a huge piece of bread, he growled:

"Nothing, as usual—same old story, nothing doing."

Annie sighed. She had been given this answer so often that it would have surprised her to hear anything else. It meant that their hard hand-to-mouth struggle must go on. She said nothing. What was the use? It would never do to discourage Howard. She tried to make light of it.

"Of course it isn't easy, I quite understand that. Never mind, dear. Something will turn up soon. Where did you go? Whom did you see? Why didn't you let drink alone when you promised me you would?"

"That was Coxe's fault," blurted out Howard, always ready to blame others for his own shortcomings. "You remember Coxe! He was at Yale when I

was. A big, fair fellow with blue eyes. He pulled stroke in the 'varsity boat race, you remember?"

"I think I do," replied his wife, indifferently, as she helped him to more stew. "What did he want? What's he doing in New York?"

"He's got a fine place in a broker's office in Wall Street. I felt ashamed to let him see me low down like this. He said that I could make a good deal of money if only I had a little capital. He knows everything going on in Wall Street. If I went in with him I'd be on Easy Street."

"How much would it require?"

"Two thousand dollars."

The young wife gave a sigh as she answered:

"I'm afraid that's a day dream. Only your father could give you such an amount and you wouldn't go to him, would you?"

"Not if we hadn't another crust in the house," snapped Howard savagely. "You don't want me to, do you?" he asked looking up at her quickly.

"No, dear," she answered calmly. "I have certainly no wish that you should humble yourself. At the same time I am not selfish enough to want to stand in the way of your future. Your father and stepmother hate me, I know that. I am the cause of your separation from your folks. No doubt your father would be very willing to help you if you would consent to leave me."

Howard laughed as he replied:

"Well, if that's the price for the \$2,000 I guess I'll go without it. I wouldn't give you up for a million times \$2,000!"

Annie stretched her hand across the table.

"Really," she said.

"You know I wouldn't Annie," he said earnestly. "Not one second have I ever regretted marrying you—that's honest to God!"

A faint flush of pleasure lit up the young wife's face. For all her assumed lightheartedness she was badly in need of this reassurance. If she thought Howard nourished secret regrets it would break her heart. She could stand anything, any hardship, but not that. She would leave him at once.

In a way she held herself responsible for his present predicament. She had felt a deep sense of guilt ever since that afternoon in New Haven when, listening to Howard's importunities and obeying an impulse she was powerless to resist, she had flung aside her waitress's apron, furtively left the restaurant and hurried with him to the minister who declared them man and wife.

Their marriage was a mistake, of course. Howard was in no position to marry. They should have waited. They both realized their folly now. But what was done could not be undone. She realized, too, that it was worse for Howard than it was for her. It had ruined his prospects at the outset of his career and threatened to be an irreparable blight on his entire life. She realized that she was largely to blame. She had done wrong to marry him and at times she reproached herself bitterly. There were days when their union assumed in her eyes the enormity of a crime. She should have seen what a social gulf lay between them. All these taunts and insults from his family which she now endured she had foolishly brought upon her own head. But she had not been able to resist the temptation. Howard came into her life when the outlook was dreary and hopeless. He had offered to her what seemed a haven against the cruelty and selfishness of the world. Happiness for the first time in her life seemed within reach and she had not the moral courage to say "No."

If Annie had no education she was not without brains. She had sense enough to realize that her bringing up or the lack of it was an unsurmountable barrier to her ever being admitted to the inner circle of Howard's family. If her husband's father had not married again the breach might have been crossed in time, but his new wife was a prominent member of the smart set, a woman full of aristocratic notions who recoiled with horror at having anything to do with a girl guilty of the enormity of earning her own living. Individual merit, inherent nobility of character, amiability of disposition, and a personal reputation untouched by scandal—all this went for nothing—because unaccompanied by wealth or social position. Annie

had neither wealth or position. She had not even education. They considered her common, impossible. They were even ready to lend an ear to certain ugly stories regarding her past, none of which were true. After their marriage, Mr. Jeffries, Sr., and his wife absolutely refused to receive her or have any communication with her whatsoever. As long, therefore, as Howard remained faithful to her, the breach with his family could never be healed.

"Have some more stew, dear," she said, extending her hand for her husband's plate.

Howard shook his head and threw down his knife and fork.

"I've had enough," he said despondently. "I haven't much appetite."

She looked at him with concern.

"Poor boy, you're tired out!"

As she noted how pale and dejected he appeared, her eyes filled with sympathetic tears. She forgot the appalling number of cigarettes he smoked a day, nor did she realize how abuse of alcohol had spoiled his stomach for solid food.

"I wish I knew where to go and get that \$2,000," muttered Howard, his mind still preoccupied with Coxe's proposition. Lighting another cigarette, he leaned back in his chair and lapsed into silence.

Annie sat and watched him, wishing she could suggest some way to solve the problem that troubled him. She loved her husband with all her heart and soul. His very weakness of character endeared him the more to her. She was not blind to his faults, but she excused them. His vices, his drinking, cigarette smoking and general shiftlessness were, she argued, the result of bad associates. He was self-indulgent. He made good resolutions and broke them. But he was not really vicious. He had a good heart. With some one to watch him and keep him in the straight path, he would still give a good account of himself to the world. She was confident of that. She recognized many excellent qualities in him. They only wanted fostering and bringing out. That was why she married him. She was a few years his senior; she felt

that she was the stronger mentally. She considered it was her duty to devote her life to him, to protect him from himself and make a man of him.

It was not her fault, she mused, if she were not a lady. Literally brought up in the gutter, what advantages had she had? Her mother died in childbirth and her father, a professional gambler, abandoned the little girl to the tender mercies of an indifferent neighbor. When she was about eight years old her father was arrested. He refused to pay police blackmail, was indicted, railroaded to prison and died soon after in convict stripes. There was no provision for Annie's maintenance, so at the age of nine she found herself toiling in a factory, a helpless victim of the brutalizing system of child slavery which in spite of prohibiting laws still disgraces the United States. Ever since that time she had earned her own living. The road had often been hard, there were times when she thought she would have to give up the fight, other girls she had met had hinted at an easier way of earning one's living, but she had kept her courage, refused to listen to evil counsel and always managed to keep her name unsullied. She left the factory to work behind the counter in a New York dry goods store. Then about a year ago she drifted to New Haven and took the position of waitress at the restaurant which the college boys patronized.

Robert Underwood was among the students who came almost every day. He made love to her from the start, and one day attempted liberties which she was prompt to resent in a way he did not relish. After that he let her alone. She never liked the man. She knew him to be unprincipled as well as vicious. One night he brought Howard Jeffries to the restaurant. They seemed the closest of cronies and she was sorry to see what bad influence the elder sophomore had over the young freshman, to whom she was at once attracted. Every time they came she watched them and she noticed how under his mentor Howard became more hardened. He drank more and more and became a reckless gambler. Underwood seemed to exercise a baneful spell over him. She saw that he would soon be ruined with such a man as Underwood for a constant companion. Her interest in the young student grew. They became acquainted and Howard, not realizing that she was older than he, was immediately captivated by her vivacious charm and her common-sense views. They saw each other more frequently and their friendship grew until one day Howard asked her to marry him.

While she sometimes blamed herself for having listened too willingly to Howard's pleadings, she did not altogether regret the step she had taken. It was most unfortunate that there must be this rupture with his family, yet something within told her that she was doing God's work—saving a man's soul. Without her, Howard would have gone swiftly to ruin, there was little doubt of that. His affection for her had partly, if not wholly, redeemed him and was keeping him straight. He had been good to her ever since their marriage and done everything to make her comfortable. Once he took a position as guard on the elevated road, but caught cold and was forced to give it up. She wanted to go to work again, but he angrily refused. That alone showed that he was not entirely devoid of character. He was unfortunate at present and they were poor, but by dint of perseverance he would win out and make a position for himself without his father's help. These were their darkest days, but light was ahead. As long as they loved each other and had their health what more was necessary?

"Say, Annie, I have an idea," suddenly blurted out Howard.

"What is it, dear?" she asked, her reveries thus abruptly interrupted.

"I mean regarding that \$2,000. You know all about that \$250 which I once lent Underwood. I never got it back, although I've been after him many times for it. He's a slippery customer. But under the circumstances I think it's worth another determined effort. He seems to be better fixed now than he ever was. He's living at the Astruria, making a social splurge and all that sort of thing. He must have money. I'll try to borrow the \$2,000 from him."

"He certainly appears to be prosperous," replied Annie. "I see his name in the newspapers all the time. There is hardly an affair at which he is not present."

"Yes," growled Howard; "I don't see how he does it. He travels on his cheek, principally, I guess. His name was among those present at my stepmother's musicale the other night." Bitterly he added: "That's how the world goes. There is no place for me under my father's roof, but that blackguard is welcomed with open arms!"

"I thought your father was such a proud man," interrupted Annie. "How does he come to associate with people like Underwood?"

"Oh, pater's an old dolt!" exclaimed Howard impatiently. "There's no fool like an old fool. Of course, he's sensible enough in business matters. He wouldn't be where he is to-day if he weren't. But when it comes to the woman question he's as blind as a bat. What right had a man of his age to go and marry a woman twenty years his junior? Of course she only married him for his money. Everybody knows that except he. People laugh at him behind his back. Instead of enjoying a quiet, peaceful home in the declining years of his life, he is compelled to keep open house and entertain people who are personally obnoxious to him, simply because that sort of life pleases his young wife."

"Who was she, anyway, before their marriage?" interrupted Annie.

"Oh, a nobody," he replied. "She was very attractive looking, dressed well and was clever enough to get introductions to good people. She managed to make herself popular in the smart set and she needed money to carry out her social ambitions. Dad—wealthy widower—came along and she caught him in her net, that's all!"

Annie listened with interest. She was human enough to feel a certain sense of satisfaction on hearing that this woman who treated her with such contempt was herself something of an intriguer.

"How did your stepmother come to know Robert Underwood?" she asked. "He was never in society."

"No," replied Howard with a grin. "It was my stepmother who gave him the entrée. You know she was once engaged to him, but broke it off so she could marry Dad. He felt very sore over it at the time, but after her marriage he was seemingly as friendly with her as ever—to serve his own ends, of course. It is simply wonderful what influence he has with her. He exercises over her the same fascination that he did over me at college. He has sort of hypnotized her. I don't think it's a case of love or anything like that, but he simply holds her under his thumb and gets her to do anything he wants. She invites him to her house, introduces him right and left, got people to take him up. Everybody laughs about it in society. Underwood is known as Mrs. Howard Jeffries' pet. Such a thing soon gets talked about. That is the secret of his successful career in New York. As far as I know, she's as much infatuated with him as ever."

A look of surprise came into Annie's face. To this young woman, whose one idea of matrimony was steadfast loyalty to the man whose life she shared and whose name she bore, there was something repellent and nauseating in a woman permitting herself to be talked about in that way.

"Doesn't your father object?" she asked.

"Pshaw!" laughed Howard. "He doesn't see what's going on under his very nose. He's too proud a man, too sure of his own good judgment, to believe for a moment that the woman to whom he gave his name would be guilty of the slightest indiscretion of that kind."

Annie was silent for a minute. Then she said:

"What makes you think that Underwood would let you have the money?"

"Because I think he's got it. I obliged him once in the same way myself. I would explain to him what I want it for. He will see at once that it is a good thing. I'll offer him a good rate of interest, and he might be very glad to let me have it. Anyhow, there's no harm trying."

Annie said nothing. She did not entirely approve this idea of her husband trying to borrow money of a man in whom his stepmother was so much interested. On the other hand starvation stared them in the face. If Howard could get hold of this \$2,000 and start in the brokerage business it might be the beginning of a new life for them.

"Well, do as you like, dear," she said. "When will you go to him?"

"The best time to catch him would be in the evening," replied Howard.

"Well, then, go to-night," she suggested.

Howard shook his head.

"No, not to-night. I don't think I should find him in. He's out every night somewhere. To-night there's another big reception at my father's house. He'll probably be there. I think I'll wait till to-morrow night. I'm nearly sure to catch him at home then."

Annie rose and began to remove the dishes from the table. Howard nonchalantly lighted another cigarette and, leaving the table, took up the evening newspaper. Sitting down comfortably in a rocker by the window, he blew a cloud of blue smoke up in the air and said:

"Yes, that's it—I'll go to-morrow night to the Astruria and strike Bob Underwood for that \$2,000."

CHAPTER III.

The handsome town house of Howard Jeffries, the well-known banker, on Riverside Drive, was one of the most striking among the many imposing millionaire homes that line the city's splendid water front. Houses there were in the immediate proximity which were more showy and had cost more money, but none as completely satisfying from the art lover's standpoint. It was the home of a man who studied and loved the beautiful for its own sake and not because he wanted to astonish people with what miracles his money could work. Occupying a large plot on slightly elevated ground, the house commanded a fine view of the broad Hudson. Directly opposite, across the river, busy with steam and sailing craft, smiled the green slopes of New Jersey; in the purplish north frowned the jagged cliffs of the precipitous Palisades.

The elder Jeffries, aristocratic descendant of an old Knickerbocker family, was proud of his home and had spent large sums of money in beautifying it. Built in colonial style of pure white marble with long French windows and lofty columns supporting a flat, rounded roof, surrounded by broad lawns, wide-spreading shade trees and splashing fountains, it was a conspicuous landmark for miles. The interior was full of architectural beauty. The stately entrance hall, hung with ancestral portraits, was of noble proportions and a superb staircase, decorated with statuary led off to tastefully decorated reception rooms above. To-night the house was brilliantly illuminated and there was considerable activity at the front entrance, where a footman in smart livery stood opening the doors of the carriages as they drove up in quick succession.

Mrs. Jeffries' musicales were always largely attended because she knew the secret of making them interesting. Her husband's wealth and her fine house enabled her to entertain on a liberal scale, and she was a tactful and diplomatic hostess as well. She not only cultivated the right kind of people who were congenial to each other, but she always managed to have some guest of special distinction whom every one was eager to meet. Her own wide acquaintance among the prominent operatic artists and her husband's

influential position in the world of finance made this policy an easy way of furthering her social ambitions. She would always invite some one whom she could present as the lion of the evening. One week it would be a tenor from the opera house, another time a famous violinist. In this way she managed to create a little artistic salon on the lines of the famous political salons in which the brilliant women of the eighteenth century moulded public opinion in France.

Alicia knew she was clever and as she stood admiring herself in front of a full length mirror while awaiting the arrival of her guests she congratulated herself that she had made a success of her life. She had won those things which most women hold dear—wealth and social position. She had married a man she did not love, it was true, but other women had done that before her. If she had not brought her husband love she at least was not a wife he need be ashamed of. In her Paquin gown of gold cloth with sweeping train and a jeweled tiara in her hair, she considered herself handsome enough to grace any man's home. It was indeed a beauty which she saw in the mirror—the face of a woman not yet thirty with the features regular and refined. The eyes were large and dark and the mouth and nose delicately moulded. The face seemed academically perfect, all but the expression. She had a cold, calculating look, and a cynic might have charged her with being heartless, of stopping at nothing to gain her own ends.

To-night Alicia had every reason to feel jubilant. She had secured a social lion that all New York would talk about—no less a person than Dr. Bernstein, the celebrated psychologist, the originator of the theory of scientific psychology. Everything seemed to go the way she wished; her musicales were the talk of the town; her husband had just presented her with the jeweled tiara which now graced her head; there seemed to be nothing in the world that she could not enjoy.

Yet she was not happy, and as she gazed at the face reflected before her in the glass she wondered if the world guessed how unhappy she was. She knew that by her own indiscretion she was in danger of losing all she had won, her position in society, her place in the affections of her husband, everything.

When she married Mr. Jeffries it was with deliberate calculation. She did not love him, but, being ambitious, she did not hesitate to deceive him. He was rich, he could give her that prominent position in society for which she yearned. The fact that she was already engaged to a man for whom she did care did not deter her for a moment from her set purpose. She had met Robert Underwood years before. He was then a college boy, tall, handsome, clever. She fell in love with him and they became engaged. As she grew more sophisticated she saw the folly of their youthful infatuation. Underwood was without fortune, his future uncertain. What position could she possibly have as his wife? While in this uncertain state of mind she met Mr. Jeffries, then a widower, at a reception. The banker was attracted to her and being a business man he did things quickly. He proposed and was accepted, all in the brief time of—five minutes. Robert Underwood and the romance of her girlhood were sacrificed without question when it came to reaching a prompt decision. She wrote Underwood a brief letter of farewell, telling him that the action she had taken was really for the best interests of them both. Underwood made no reply and for months did not attempt to go near her. Then he met her in public. There was a reconciliation. He exerted the old spell—on the married woman. Cold and indifferent to her husband, Alicia found it amusing to have her old lover paying her court and the danger of discovery only gave the intrigue additional zest and charm. She did not lead Underwood to believe that he could induce her to forget her duty to Mr. Jeffries, but she was foolish enough to encourage a dangerous intimacy. She thought she was strong enough to be able to call a halt whenever she would be so disposed, but as is often the case she overestimated her powers. The intimacy grew. Underwood became bolder, claiming and obtaining special privileges. He soon realized that he had the upper hand and he traded on it. Under her patronage he was invited everywhere. He practically lived on her friends. He borrowed their money and cheated them at cards. His real character was soon known to all, but no one dared expose him for fear of offending the influential Mrs. Jeffries. Realizing this, Underwood continued his depredations until he became a sort of social highwayman. He had no legitimate source of income, but he took a suite of apartments at the expensive Astruria and on credit furnished them so gorgeously that they became the talk of the town. The magazines and newspapers devoted columns to the magnificence of their furnishings and the art treasures they contained. Art dealers all over the country offered

him liberal commissions if he would dispose of expensive *objets d'art* to his friends. He entered in business relation with several firms and soon his rooms became a veritable bazaar for art curios of all kinds. Mrs. Jeffries' friends paid exorbitant prices for some of the stuff and Underwood pocketed the money, forgetting to account to the owners for the sums they brought. The dealers demanded restitution or a settlement and Underwood, dreading exposure, had to hustle around to raise enough money to make up the deficiency in order to avoid prosecution. In this way he lived from day to day borrowing from Peter to settle with Paul, and on one or two occasions he had not been ashamed to borrow from Mrs. Jeffries herself.

Alicia lent the money more because she feared ridicule than from any real desire to oblige Underwood. She had long since become disgusted with him. The man's real character was now plainly revealed to her. He was an adventurer, little better than a common crook. She congratulated herself on her narrow escape. Suppose she had married him—the horror of it! Yet the next instant she was filled with consternation. She had allowed him to become so intimate that it was difficult to break off with him all at once. She realized that with a man of that character the inevitable must come. There would be a disgraceful scandal. She would be mixed up in it, her husband's eyes would be opened to her folly, it might ruin her entire life. She must end it now—once for all. She had already given him to understand that their intimacy must cease. Now he must stop his visits to her house and desist from trapping her friends into his many schemes. She had written him that morning forbidding him to come to the house this evening. She was done with him forever.

These thoughts were responsible for the frown on the beautiful Mrs. Jeffries' bejeweled brow that particular Saturday evening. Alicia gave a sigh and was drawing on her long kid gloves before the glass, when suddenly a maid entered and tendered her mistress a note. Alicia knew the handwriting only too well. She tore the letter open and read:

DEAR MRS. JEFFRIES: I received your letter telling me that my presence at your house to-night would be distasteful to you. As you can imagine, it was a great shock. Don't you understand the harm this will do me? Everybody will notice my absence. They will jump to the conclusion that there has been a rupture, and

my credit will suffer immediately with your friends. I cannot afford to let this happen now. My affairs are in such condition that it will be fatal to me. I need your support and friendship more than ever. I have noticed for some time that your manner to me has changed. Perhaps you have believed some of the stories my enemies have circulated about me. For the sake of our old friendship, Alicia, don't desert me now. Remember what I once was to you and let me come to your reception to-night. There's a reason why I must be seen in your house.

Yours devotedly,

ROBERT UNDERWOOD.

Alicia's face flushed with anger. Turning to the maid, she said: "There's no answer."

The girl was about to close the door when her mistress suddenly recalled her.

"Wait a minute," she said; "I'll write a line."

Taking from her dainty escritoire a sheet of perfumed notepaper, she wrote hurriedly as follows:

"If you dare to come near my house to-night, I will have you put out by the servants."

Quickly folding the note, she crushed it into an envelope, sealed it, handed it to the girl, and said:

"Give that to the messenger."

The servant disappeared and Alicia resumed her work of drawing on her gloves in front of her mirror. How dare he write her such a letter? Was her house to be made the headquarters for his swindling schemes? Did he want to cheat more of her friends? The more she thought of all he had done, the angrier she became. Her eyes flashed and her bosom heaved with indignation. She wondered what her husband, the soul of honor, would say if he suspected that she had permitted a man of Underwood's character to use his home for his dishonest practices. She was glad she had ended it

now, before it was too late. There might have been a scandal, and that she must avoid at any cost. Mr. Jeffries, she felt certain, would not tolerate a scandal of any kind.

All at once she felt something brush her cheek. She turned quickly. It was her husband, who had entered the room quietly.

"Oh, Howard," she exclaimed peevishly; "how you frightened me! You shouldn't startle me like that."

A tall, distinguished-looking man with white mustache and pointed beard stood admiring her in silence. His erect figure, admirably set off in a well-cut dress coat suggested the soldier.

"What are doing alone here, dear?" he said. "I hear carriages outside. Our guests are arriving."

"Just thinking, that's all," she replied evasively.

He noticed her preoccupied look and, with some concern, he demanded:

"There's nothing to worry you, is there?"

"Oh, no—nothing like that," she said hastily.

He looked at her closely and she averted her eyes. Mr. Jeffries often wondered if he had made a mistake. He felt that this woman to whom he had given his name did not love him, but his vanity as much as his pride prevented him from acknowledging it, even to himself. After all, what did he care? She was a companion, she graced his home and looked after his creature comforts. Perhaps no reasonable man should expect anything more. Carelessly, he asked:

"Whom do you expect to-night?"

"Oh, the usual crowd," replied Alicia languidly. "Dr. Bernstein is coming—you know he's quite the rage just now. He has to do with psychology and all that sort of thing."

"So, he's your lion to-night, is he?" smiled the banker. Then he went on:

"By the bye, I met Brewster at the club to-night. He promised to drop in."

Now it was Alicia's turn to smile. It was not everybody who could boast of having such a distinguished lawyer as Judge Brewster on their calling lists. To-night would certainly be a success—two lions instead of one. For the moment she forgot her worry.

"I am delighted that the judge is coming," she exclaimed, her face beaming. "Every one is talking about him since his brilliant speech for the defense in that murder case."

The banker noted his wife's beautiful hair and the white transparency of her skin. His gaze lingered on the graceful lines of her neck and bosom, glittering with precious stones. An exquisite aroma exuding from her person reached where he stood. His eyes grew more ardent and, passing his arm affectionately around her slender waist, he asked:

"How does my little girl like her tiara?"

"It's very nice. Don't you see I'm wearing it to-night?" she replied almost impatiently and drawing herself away.

Before Mr. Jeffries had time to reply there was a commotion at the other end of the reception room, where rich tapestries screened off the main entrance hall. The butler drew the curtains aside.

"Mr. and Mrs. Cortwright," he announced loudly.

Alicia went forward, followed by her husband, to greet her guests.

CHAPTER IV.

The richly decorated reception rooms, brilliantly illuminated with soft incandescent lights artistically arranged behind banks of flowers, were filled with people. In the air was the familiar buzz always present in a room where each person is trying to speak at the same time. On all sides one heard fragments of inept conversation.

"So good of you to come! How well you're looking, my dear."

"My husband? Oh, he's at the club, playing poker, as usual. He hates music."

"I've such a terrible cold!"

"Trouble with servants? I should say so. I bounced my cook this morning."

"Aren't these affairs awefully tiresome?"

"I was so glad to come. I always enjoy your musicales."

"Dr. Bernstein coming? How perfectly delightful. I'll ask him for his autograph."

"What's psychology?"

"Something to do with religion, I think."

"Haven't we been having dreadful weather?"

"I saw you at the opera."

"Doesn't she look sweet?"

"Oh, I think it's just lovely."

People now arrived in quick succession and, forming little groups, the room soon presented an animated scene. The women in their smart gowns and the men in their black coats made a pleasing picture.

"My dear Mrs. Jeffries, how do you do this evening?" exclaimed a rich, deep voice.

The hostess turned to greet an elderly and distinguished-looking man who had just entered. Directly he came in voices were hushed, and on every side one heard the whisper:

"There's Judge Brewster, the famous lawyer."

There was a general craning of necks to catch a glimpse of the eminent jurist whose brilliant address to the jury in a recent *cause célèbre* had saved an innocent man from the electric chair.

Richard Brewster was a fine example of the old school statesman-lawyer of the Henry Clay type. He belonged to that small class of public men who are independent of all coteries, whose only ambition is to serve their country well, who know no other duty than that dictated by their oath and conscience. A brilliant and forceful orator, there was no office in the gift of the nation that might not have been his for the asking, but he had no taste for politics. After serving with honor for some years on the bench he retired into private practice, and thereafter his name became one to conjure with in the law courts. By sheer power of his matchless oratory and unanswerable logic he won case after case for his clients and it is a tribute to his name to record the plain fact that in all his career he never championed a cause of which he need be ashamed. Powerful financial interests had attempted to secure his services by offers of princely retainers, but without success. He fought the trusts bitterly every time he found them oppressing the people. He preferred to remain comparatively poor rather than enrich himself at the price of prostituting his profession.

Alicia advanced with extended hand.

"This is indeed kind, Judge," she exclaimed with a gracious smile. "I hardly dared hope that my poor musicale would be so honored."

The old lawyer smiled good-humoredly as he replied gallantly:

"I don't know much about music, m'm; I came to see you." Looking around he added: "You've got a nice place here."

He spoke in his characteristic manner—short, nervous, explosive sentences, which had often terrified his opponents in court.

"Lawyers are such flatterers," laughed Alicia as she nervously fanned herself, and looked around to see if her guests were watching.

"Lawyers only flatter when they want to," interrupted grimly Mr. Jeffries, who had just joined the group.

Alicia turned to greet a new arrival and the lawyer continued chatting with his host.

"I suppose you'll take a rest now, after your splendid victory," said the banker.

Judge Brewster shook his head dubiously.

"No, sir, we lawyers never rest. We can't. No sooner is one case disposed of than another crops up to claim our attention. The trouble with this country is that we have too much law. If I were to be guilty of an epigram I would say that the country has so much law that it is practically lawless."

"So you're preparing another case, eh?" said Mr. Jeffries, interested. "What is it—a secret?"

"Oh, no!" answered the lawyer, "the newspapers will be full of it in a day or two. We are going to bring suit against the city. It's really a test case that should interest every citizen; a protest against the high-handed actions of the police."

The banker elevated his eyebrows.

"Indeed," he exclaimed. "What have the police been doing now?"

The lawyer looked at his client in surprise.

"Why, my dear sir, you must have seen by the papers what's been going on in our city of late. The papers have been full of it. Police brutality, illegal arrests, assaults in station houses, star-chamber methods that would disgrace the middle ages. A state of affairs exists to-day in the city of New York which is inconceivable. Here we are living in a civilized country,

every man's liberty is guaranteed by the Constitution, yet citizens, as they walk our streets, are in greater peril than the inhabitants of terror-stricken Russia. Take a police official of Captain Clinton's type. His only notion of the law is brute force and the night stick. A bully by nature, a man of the coarsest instincts and enormous physical strength, he loves to play the tyrant. In his precinct he poses as a kind of czar and fondly imagines he has the power to administer the law itself. By his brow-beating tactics, intolerable under Anglo-Saxon government, he is turning our police force into a gang of ruffians who have the city terror-stricken. In order to further his political ambitions he stops at nothing. He lets the guilty escape when influence he can't resist is brought to bear, but in order to keep up his record with the department he makes arrests without the slightest justification. To secure convictions he manufactures, with the aid of his detectives, all kinds of perjured evidence. To paraphrase a well-known saying, his motto is: 'Convict—honestly, if you can—but convict.'

"It is outrageous," said Mr. Jeffries. "No one can approve such methods. Of course, in dealing with the criminal population of a great city, they cannot wear kid gloves, but Captain Clinton certainly goes too far. What is the specific complaint on which the suit is based?"

"Captain Clinton," replied the judge, "made the mistake of persecuting a young woman who happened to be the daughter of a wealthy client of mine. One of his detectives arrested her on a charge of shoplifting. The girl, mind you, is of excellent family and irreproachable character. My client and his lawyer tried to show Captain Clinton that he had made a serious blunder, but he brazened it out, claiming on the stand that the girl was an old offender. Of course, he was forced at last to admit his mistake and the girl went free, but think of the humiliation and mental anguish she underwent! It was simply a repetition of his old tactics. A conviction, no matter at what cost."

"What do you hope to bring about by this suit?"

"Arouse public indignation, and if possible get Captain Clinton dismissed from the force. His record is none too savory. Charges of graft have been made against him time and time again, but so far nothing has been proved.

To-day he is a man of wealth on a comparatively small salary. Do you suppose his money could have come to him honestly?"

In another corner of the salon stood Dr. Bernstein, the celebrated psychologist, the centre of an excited crowd of enthusiastic admirers.

Alicia approached a group of chattering women. Each was more elaborately dressed than her neighbor, and loaded down with rare gems. They at once stopped talking as their hostess came up.

"It was so good of you to come!" said Alicia effusively to a fat woman with impossible blond hair and a rouged face. "I want to introduce Dr. Bernstein to you."

"Oh, I shall be delighted," smiled the blonde. Gushingly she added: "How perfectly exquisite you look to-night, my dear."

"Do you think so?" said Alicia, pleased at the clumsy flattery.

"Your dress is stunning and your tiara simply gorgeous," raved another.

"Your musicales are always so delightful," exclaimed a third.

At that moment Mr. Jeffries caught his wife by the arm and drew her attention to some newcomers. With a laugh she left the group and hurried toward the door. Directly she was out of earshot, the three women began whispering:

"Isn't she terribly overdressed?" exclaimed the blonde. "The cheek of such a *parvenue* to wear that tiara."

"Her face is all made up, too," said another.

"These affairs of hers are awfully stupid, don't you think so?" piped the third.

"Yes, they bore everybody to death," said the blonde. "She's ambitious and likes to think she is a social leader. I only come here because it amuses me to see what a fool she makes of herself. Fancy a woman of her age marrying a man old enough to be her father. By the bye, I don't see her *beau* here to-night."

"You mean that scamp, Robert Underwood?"

"Isn't it perfectly scandalous, the way he dances after her? I'm surprised Mr. Jeffries allows him to come to the house."

"Maybe there's been a row. Perhaps that explains why he's not here to-night. It's the first time I've known him absent from one of her musicales."

"He's conspicuous by his absence. Do you know what I heard the other day? I was told that Underwood had again been caught cheating at cards and summarily expelled from the club—kicked out, so to speak."

"I'm not at all surprised. I always had my doubts about him. He induced a friend of mine to buy a picture, and got a tremendous price for it on the false representation that it was a genuine Corot. My friend found out afterward that he had been duped. Proceedings were threatened, but Underwood managed to hush the affair by returning part of the money."

In another part of the room a couple were discussing Mr. Jeffries as he stood talking with Judge Brewster.

"Did you notice how Mr. Jeffries has aged recently? He no longer seems the same man."

"No wonder, after all the trouble he's had. Of course you know what a disappointment his son turned out?"

"A scamp, I understand. Married a chorus girl and all that sort of thing."

"Not exactly, but almost as bad. The girl was a waitress or something like that in a restaurant. She's very common; her father died in prison. You can imagine the blow to old Jeffries. He turned the boy adrift and left him to shift for himself."

Alicia approached her husband, who was still talking with Judge Brewster. She was leaning on the arm of a tall, handsome man with a dark Van Dyke beard.

"Who are you discussing with such interest?" she demanded, as she came up with her escort.

"We were talking of Captain Clinton and his detestable police methods," said the banker.

"Judge," said Alicia, turning to the lawyer, "allow me to introduce Dr. Bernstein. Doctor, this is Judge Brewster."

The stranger bowed low, as he replied courteously:

"The fame of Judge Brewster has spread to every State in the Union."

A faint smile spread over the face of the famous lawyer as he extended his hand:

"I've often heard of you, too, doctor. I've been reading with great interest your book, 'Experimental Psychology.' Do you know," he went on earnestly, "there's a lot in that. We have still much to learn in that direction."

"I think," said Dr. Bernstein quietly, "that we're only on the threshold of wonderful discoveries."

Pleased to find that her two distinguished guests were congenial, Alicia left them to themselves and joined her other guests.

"Yes," said the lawyer musingly, "man has studied for centuries the mechanism of the body, but he has neglected entirely the mechanism of the mind."

Dr. Bernstein smiled approvingly.

"We are just waking up," he replied quickly. "People are beginning to look upon psychology seriously. Up to comparatively recently the layman has regarded psychology as the domain of the philosopher and the dreamer. It did not seem possible that it could ever be applied to our practical everyday life, but of late we have made remarkable strides. Although it is a comparatively new science, you will probably be astonished to learn that there are to-day in the United States fifty psychological laboratories. That is to say, workshops fully equipped with every device known for the probing of the human brain. In my laboratory in California alone I have as many as twenty rooms hung with electric wires and equipped with all the necessary instruments—chronoscopes, kymographs, tachistoscopes, and ergographs,

instruments which enable us to measure and record the human brain as accurately as the Bertillon system."

"Really, you astonish me!" exclaimed the judge. "This is most interesting. Think of laboratories solely devoted to delving into mysteries of the human brain! It is wonderful!"

He was silent for a moment, then he said:

"It is quite plain, I think, that psychology can prove most useful in medicine. It is, I take it, the very foundation of mental healing, but what else would it do for humanity? For instance, can it help me, the lawyer?"

Dr. Bernstein smiled.

"You gentlemen of the law have always scoffed at the very suggestion of bringing psychology to your aid, but just think, sir, how enormously it might aid you in cross-examining a witness. You can tell with almost scientific accuracy if the witness is telling lies or the truth, and the same would be clear to the judge and the jury. Just think how your powers would be increased if by your skill in psychological observation you could convince the jury that your client, who was about to be convicted on circumstantial evidence alone, was really innocent of the crime of which he was charged. Why, sir, the road which psychology opens up to the lawyer is well-nigh boundless. Don't you use the Bertillon system to measure the body? Don't you rely on thumb prints to identify the hand? How do you know that we psychologists are not able to-day to test the individual differences of men?"

"In a word," laughed the judge, "you mean that any one trained to read my mind can tell just what's passing in my brain?"

"Precisely," replied the doctor with a smile; "the psychologist can tell with almost mathematical accuracy just how your mental mechanism is working. I admit it sounds uncanny, but it can be proved. In fact, it has been proved, time and time again."

Alicia came up and took the doctor's arm.

"Oh, Dr. Bernstein," she protested, "I can't allow the judge to monopolize you in this way. Come with me. I want to introduce you to a most charming woman who is dying to meet you. She is perfectly crazy on psychology."

"Don't introduce me to her," laughed the judge. "I see enough crazy people in the law courts."

Dr. Bernstein smiled and followed his hostess. Judge Brewster turned to chat with the banker. From the distant music room came the sound of a piano and a beautiful soprano voice. The rooms were now crowded and newcomers were arriving each minute. Servants passed in and out serving iced delicacies and champagne.

Suddenly the butler entered the salon and, quietly approaching Alicia, handed her a letter. In a low tone, he said:

"This letter has just come, m'm. The messenger said it was very important and I should deliver it at once."

Alicia turned pale. She instantly recognized the handwriting. It was from Robert Underwood. Was not her last message enough? How dare he address her again and at such a time? Retiring to an inner room, she tore open the envelope and read as follows:

DEAR MRS. JEFFRIES: This is the last time I shall ever bore you with my letters. You have forbidden me to see you again. Practically you have sentenced me to a living death, but as I prefer death shall not be partial, but full and complete oblivion, I take this means of letting you know that unless you revoke your cruel sentence of banishment, I shall make an end of it all. I shall be found dead, Monday morning, and you will know who is responsible. Yours devotedly,

ROBERT UNDERWOOD.

An angry exclamation escaped Alicia's lips, and crushing the note up in her hand, she bit her lips till the blood came. It was just as she feared. The man was desperate. He was not to be got rid of so easily. How dare he—how dare he? The coward—to think that she could be frightened by such a threat. What did she care if he killed himself? It would be good riddance.

Yet suppose he was in earnest, suppose he did carry out his threat? There would be a terrible scandal, an investigation, people would talk, her name would be mentioned. No—no—that must be prevented at all costs.

Distracted, not knowing what course to pursue, she paced the floor of the room. Through the closed door she could hear the music and the chatter of her guests. She must go to see Underwood at once, that was certain, and her visit must be a secret one. There was already enough talk. If her enemies could hear of her visiting him alone in his apartment that would be the end.

"Yes—I must see him at once. To-morrow is Sunday. He's sure to be home in the evening. He mentions Monday morning. There will still be time. I'll go and see him to-morrow."

"Alicia! Alicia!"

The door opened and Mr. Jeffries put his head in.

"What are you doing here, my dear?" he asked. "I was looking everywhere for you. Judge Brewster wishes to say good night."

"I was fixing my hair, that's all," replied Alicia with perfect composure.

CHAPTER V.

Among the many huge caravansaries that of recent years have sprung up in New York to provide luxurious quarters regardless of cost for those who can afford to pay for the best, none could rival the Astruria in size and magnificence. Occupying an entire block in the very heart of the residential district, it took precedence over all the other apartment hotels of the metropolis as the biggest and most splendidly appointed hostelry of its kind in the world. It was, indeed, a small city in itself. It was not necessary for its fortunate tenants to leave it unless they were so minded. Everything for their comfort and pleasure was to be had without taking the trouble to go out of doors. On the ground floor were shops of all kinds, which catered only to the Astruria's patrons. There were also on the premises a bank, a broker's office, a hairdresser, and a postal-telegraph office. A special feature was the garden court, containing over 30,000 square feet of open space, and tastefully laid out with plants and flowers. Here fountains splashed and an orchestra played while the patrons lounged on comfortable rattan chairs or gossiped with their friends. Up on the sixteenth floor was the cool roof garden, an exquisite bower of palms and roses artificially painted by a famous French artist, with its *recherché* restaurant, its picturesque *tziganes*, and its superb view of all Manhattan Island.

The Astruria was the last word in expensive apartment hotel building. Architects declared that it was as far as modern lavishness and extravagance could go. Its interior arrangements were in keeping with its external splendor. Its apartments were of noble dimensions, richly decorated, and equipped with every device, new and old, that modern science and builders' ingenuity could suggest. That the rents were on a scale with the grandeur of the establishment goes without saying. Only long purses could stand the strain. It was a favorite headquarters for Westerners who had "struck it rich," wealthy bachelors, and successful actors and opera singers who loved the limelight on and off the stage.

Sunday evening was usually exceedingly quiet at the Astruria. Most of the tenants were out of town over the week-end, and as the restaurant and roof

garden were only slimly patronized, the elevators ran less frequently, making less chatter and bustle in corridors and stairways. Stillness reigned everywhere as if the sobering influence of the Sabbath had invaded even this exclusive domain of the unholy rich. The uniformed attendants, having nothing to do, yawned lazily in the deserted halls. Some even indulged in surreptitious naps in corners, confident that they would not be disturbed. Callers were so rare that when some one did enter from the street, he was looked upon with suspicion.

It was shortly after seven o'clock the day following Mrs. Jeffries' reception when a man came in by the main entrance from Broadway, and approaching one of the hall boys, inquired for Mr. Robert Underwood.

The boy gave his interlocutor an impudent stare. There was something about the caller's dress and manner which told him instinctively that he was not dealing with a visitor whom he must treat respectfully. No one divines a man's or woman's social status quicker or more unerringly than a servant. The attendant saw at once that the man did not belong to the class which paid social visits to tenants in the Astruria. He was rather seedy-looking, his collar was not immaculate, his boots were thick and clumsy, his clothes cheap and ill-fitting.

"Is Mr. Underwood in?" he demanded.

"Not home," replied the attendant insolently, after a pause. Like most hall boys, he took a savage pleasure in saying that the tenants were out.

The caller looked annoyed.

"He must be in," he said with a frown. "I have an appointment with him."

This was not strictly true, but the bluff had the desired effect.

"Got an appointment! Why didn't you say so at once?"

Reaching lazily over the telephone switchboard, and without rising from his seat, he asked surlily:

"What's the name?"

"Mr. Bennington."

The boy took the transmitter and spoke into it:

"A party called to see Mr. Underwood."

There was a brief pause, as if the person upstairs was in doubt whether to admit that he was home or not. Then came the answer. The boy looked up.

"He says you should go up. Apartment 165. Take the elevator."

In his luxuriously appointed rooms on the fourteenth floor, Robert Underwood sat before the fire puffing nervously at a strong cigar. All around him was a litter of *objets d'art*, such as would have filled the heart of any connoisseur with joy. Oil paintings in heavy gilt frames, of every period and school, Rembrandts, Cuyps, Ruysdaels, Reynoldses, Corots, Henners, some on easels, some resting on the floor; handsome French bronzes, dainty china on Japanese teakwood tables, antique furniture, gold-embroidered clerical vestments, hand-painted screens, costly Oriental rugs, rare ceramics—all were confusedly jumbled together. On a grand piano in a corner of the room stood two tall cloisonné vases of almost inestimable value. On a desk close by were piled miniatures and rare ivories. The walls were covered with tapestries, armor, and trophies of arms. More like a museum than a sitting room, it was the home of a man who made a business of art or made of art a business.

Underwood stared moodily at the glowing logs in the open chimneyplace. His face was pale and determined. After coming in from the restaurant he had changed his tuxedo for the more comfortable house coat. Nothing called him away that particular Sunday evening, and no one was likely to disturb him. Ferris, his man-servant, had taken his usual Sunday off and would not return until midnight. The apartment was still as the grave. It was so high above the street that not a sound reached up from the noisy Broadway below. Underwood liked the quiet so that he could think, and he was thinking hard. On the flat desk at his elbow stood a dainty *demi-tasse* of black coffee—untasted. There were glasses and decanters of whiskey and cordial, but the stimulants did not tempt him.

He wondered if Alicia would ignore his letter or if she would come to him. Surely she could not be so heartless as to throw him over at such a moment. Crushed in his left hand was a copy of the *New York Herald* containing an elaborate account of the brilliant reception and musicale given the previous evening at her home. With an exclamation of impatience he rose from his seat, threw the paper from him, and began to pace the floor.

Was this the end of everything? Had he reached the end of his rope? He must pay the reckoning, if not to-day, to-morrow. As his eyes wandered around the room and he took mental inventory of each costly object, he experienced a sudden shock as he recalled the things that were missing. How could he explain their absence? The art dealers were already suspicious. They were not to be put off any longer with excuses. Any moment they might insist either on the immediate return of their property or on payment in full. He was in the position to do neither. The articles had been sold and the money lost gambling. Curse the luck! Everything had gone against him of late. The dealers would begin criminal proceedings, disgrace and prison stripes would follow. There was no way out of it. He had no one to whom he could turn in this crisis.

And now even Alicia had deserted him. This was the last straw. While he was still able to boast of the friendship and patronage of the aristocratic Mrs. Howard Jeffries he could still hold his head high in the world. No one would dare question his integrity, but now she had abandoned him to his fate, people would begin to talk. There was no use keeping up a hopeless fight—suicide was the only way out!

He stopped in front of a mirror, startled at what he saw there. It was the face of a man not yet thirty, but apparently much older. The features were drawn and haggard, and his dark hair was plentifully streaked with gray. He looked like a man who had lived two lives in one. To-night his face frightened him. His eyes had a fixed stare like those of a man he had once seen in a madhouse. He wondered if men looked like that when they were about to be executed. Was not his own hour close at hand? He wondered why the clock was so noisy; it seemed to him that the ticks were louder than usual. He started suddenly and looked around fearfully. He thought he had heard a sound outside. He shuddered as he glanced toward the little drawer

on the right-hand side of his desk, in which he knew there was a loaded revolver.

If Alicia would only relent escape might yet be possible. If he did not hear from her it must be for to-night. One slight little pressure on the trigger and all would be over.

Suddenly the bell of the telephone connecting the apartment with the main hall downstairs rang violently. Interrupted thus abruptly in the midst of his reflections, Underwood jumped forward, startled. His nerves were so unstrung that he was ever apprehensive of danger. With a tremulous hand, he took hold of the receiver and placed it to his ear. As he listened, his already pallid face turned whiter and the lines about his mouth tightened. He hesitated a moment before replying. Then, with an effort, he said:

"Send him up."

Dropping the receiver, he began to walk nervously up and down the room. The crisis had come sooner than he expected—exposure was at hand. This man Bennington was the manager of the firm of dealers whose goods he disposed of. He could not make restitution. Prosecution was inevitable. Disgrace and prison would follow. He could not stand it; he would rather kill himself. Trouble was very close at hand, that was certain. How could he get out of it? Pacing the floor, he bit his lips till the blood came.

There was a sharp ring at the front door. Underwood opened it. As he recognized his visitor on the threshold, he exclaimed:

"Why, Bennington, this is a surprise!"

The manager entered awkwardly. He had the constrained air of a man who has come on an unpleasant errand, but wants to be as amiable as the circumstances will permit.

"You didn't expect me, did you?" he began.

Shutting the front door, Underwood led the way back into the sitting room, and making an effort to control his nerves, said:

"Sit down, won't you?"

But Mr. Bennington merely bowed stiffly. It was evident that he did not wish his call to be mistaken for a social visit.

"I haven't time, thank you. To be frank, my mission is rather a delicate one, Mr. Underwood."

Underwood laughed nervously. Affecting to misinterpret the other's meaning, he said:

"Yes, you're right. The art and antique business is a delicate business. God knows it's a precarious one!" Reaching for the decanter, he added: "Have a drink."

But Mr. Bennington refused to unbend. The proffer of refreshment did not tempt him to swerve from the object of his mission. While Underwood was talking, trying to gain time, his eyes were taking in the contents of the apartment.

"Come, take a drink," urged Underwood again.

"No, thanks," replied Mr. Bennington curtly.

Suddenly he turned square around.

"Let's get down to business, Mr. Underwood," he exclaimed. "My firm insists on the immediate return of their property." Pointing around the room, he added: "Everything, do you understand?"

Underwood was standing in the shadow of the lamp so his visitor did not notice that he had grown suddenly very white, and that his mouth twitched painfully.

"Why, what's the trouble?" he stammered. "Haven't you done a lot of business through me? Haven't I got prices for your people that they would never have gotten?"

"Yes—we know all that," replied Mr. Bennington impatiently. "To be frank, Mr. Underwood, we've received information that you've sold many of the valuable articles entrusted to you for which you've made no accounting at all."

"That's not true," exclaimed Underwood hotly. "I have accounted for almost everything. The rest of the things are here. Of course, there may be a few things——"

Taking a box of cigars from the desk, he offered it to his visitor.

"No, thanks," replied Bennington coldly, pushing back the proffered box.

Underwood was fast losing his self-control. Throwing away his cigar with an angry exclamation, he began to walk up and down.

"I can account for everything if you give me time. You must give me time. I'm hard pressed by my creditors. My expenses are enormous and collections exceedingly difficult. I have a large amount of money outstanding. After our pleasant business relations it seems absurd and most unfair that your firm should take this stand with me." He halted suddenly and faced Bennington. "Of course, I'm much obliged to you, personally, for this friendly tip."

Bennington shrugged his shoulders.

"The warning may give you time either to raise the money or to get the things back."

Underwood's dark eyes flashed with suppressed wrath, as he retorted:

"Of course, I can get them all back in time. Damn it, you fellows don't know what it costs to run this kind of business successfully! One has to spend a small fortune to keep up appearances. These society people won't buy if they think you really need the money. I've had to give expensive dinners and spend money like water even to get them to come here and look at the things. You must give me time to make a settlement. I need at least a month."

Bennington shook his head. There was a hard, uncompromising look in his face as he replied caustically:

"They're coming for the things to-morrow. I thought it fair to let you know. I can do no more."

Underwood stopped short.

"To-morrow," he echoed faintly.

"Yes," said Bennington grimly. "You might as well understand the situation thoroughly. The game's up. The firm has been watching you for some time. When you tried to sell these things to old Defries for one-quarter their real value he instantly recognized where they came from. He telephoned straight to our place. You've been shadowed by detectives ever since. There's a man outside watching this place now."

"My God!" exclaimed Underwood. "Why are they hounding me like this?"

Approaching Bennington quickly, he grasped his hand.

"Bennington," he said earnestly, "you and I've always been on the square. Can't you tell them it's all right? Can't you get them to give me time?"

Before the manager could reply the telephone bell rang sharply. Underwood started. An expression of fear came over his face. Perhaps the firm had already sworn out a warrant for his arrest. He picked up the receiver to answer the call.

"What name is that?" he demanded over the telephone. The name was repeated and with a gesture of relief he exclaimed:

"Howard Jeffries!—what on earth does he want? I can't see him. Tell him I'm——"

Bennington took his hat and turned to go:

"Well, I must be off."

"Don't go," exclaimed Underwood, as he hung up the receiver mechanically. "It's only that infernal ass Howard Jeffries!"

"I must," said the manager. As he went toward the door he made a close scrutiny of the walls as if searching for something that was not there. Stopping short, he said:

"I don't see the Velasquez."

"No—no," stammered Underwood nervously. "It's out—out on probation. Oh, it's all right. I can account for everything."

Mr. Bennington continued his inspection.

"I don't see the Gobelin tapestry," he said laconically.

"Oh, that's all right, too, if they'll only give me time," he cried desperately. "Good God, you don't know what it means to me, Bennington! The position I've made for myself will be swept away and——"

Mr. Bennington remained distant and unsympathetic and Underwood threw himself into a chair with a gesture of disgust.

"Sometimes I think I don't care what happens," he exclaimed. "Things haven't been going my way lately. I don't care a hang whether school keeps or not. If they drive me to the wall I'll do something desperate. I'll——"

A ring at the front door bell interrupted him.

"Who can that be?" he exclaimed startled. He looked closely at his companion, as if trying to read in his face if he were deceiving him.

"Probably your friend of the telephone," suggested Bennington.

Underwood opened the door and Howard entered jauntily.

"Hello, fellers, how goes it?" was his jocular greeting.

He was plainly under the influence of liquor. When he left home that evening he had sworn to Annie that he would not touch a drop, but by the time he reached the Astruria his courage failed him. He rather feared Underwood, and he felt the need of a stimulant to brace him up for the "strike" he was about to make. The back door of a saloon was conveniently open and while he was refreshing himself two other men he knew dropped in. Before he knew it, half a dozen drinks had been absorbed, and he had spent the whole of \$5 which his wife had intrusted to him out of her carefully hoarded savings. When he sobered up he would realize that he had acted like a coward and a cur, but just now he was feeling rather jolly. Addressing Underwood with impudent familiarity, he went on:

"The d—d boy didn't seem to know if you were in or not, so I came up anyhow." Glancing at Bennington, he added: "Sorry, if I'm butting in."

Underwood was not in the humor to be very gracious. Long ago young Howard Jeffries had outgrown his usefulness as far as he was concerned. He was at a loss to guess why he had come to see him uninvited, on this particular Sunday night, too. It was with studied coldness, therefore, that he said:

"Sit down—I'm glad to see you."

"You don't look it," grinned Howard, as he advanced further into the room with shambling, uncertain steps.

Concealing his ill humor and promising himself to get rid of his unwelcome visitor at the first opportunity, Underwood introduced the two men.

"Mr. Bennington—Mr. Howard Jeffries, Jr."

Mr. Bennington had heard of the elder Jeffries' trouble with his scapegrace son, and he eyed, with some interest, this young man who had made such a fiasco of his career.

"Oh, I know Bennington," exclaimed Howard jovially. "I bought an elephant's tusk at his place in the days when I was somebody." With mock sadness he added, "I'm nobody now—couldn't even buy a collar button."

"Won't you sit down and stay awhile?" said Underwood sarcastically.

"If you don't mind, I'll have a drink first," replied Howard, making his way to the desk and taking up the whiskey decanter.

Underwood did not conceal his annoyance, but his angry glances were entirely lost on his new visitor, who was rapidly getting into a maudlin condition. Addressing Bennington with familiarity, Howard went on:

"Say, do you remember that wonderful set of ivory chessmen my old man bought?"

Bennington smiled and nodded.

"Yes, sir; I do, indeed. Ah, your father is a fine art critic!"

Howard burst into boisterous laughter.

"Art critic!" he exclaimed. "I should say he was. He's a born critic. He can criticise any old thing—every old thing. I don't care what it is, he can criticise it. 'When in doubt—criticise,' is nailed on father's escutcheon." Bowing with mock courtesy to each he raised the glass to his lips and said: "Here's how!"

Bennington laughed good humoredly, and turned to go.

"Well, good night, Mr. Jeffries. Good night, Mr. Underwood."

Underwood followed the manager to the door.

"Good night!" he said gloomily.

CHAPTER VI.

The door slammed, and Underwood returned to the sitting room. Taking no notice of Howard, he walked over to the desk, slowly selected a cigar and lighted it. Howard looked up at him foolishly, not knowing what to say. His frequent libations had so befuddled him that he had almost forgotten the object of his visit.

"Excuse my butting in, old chap," he stammered, "but——"

Underwood made no answer. Howard stared at him in comic surprise. He was not so drunk as not to be able to notice that something was wrong.

"Say, old fellow," he gurgled; "you're a regular Jim Dumps. Why so chopfallen, so——? My! what a long face! Is that the way you greet a classmate, a fellow frat? Wait till you hear my hard-luck story. That'll cheer you up. Who was it said: 'There's nothing cheers us up so much as other people's money?' Reaching for the whiskey bottle, he went on, "First, I'll pour out another drink. You see, I need courage, old man. I've got a favor to ask. I want some money. I not only want it—I need it."

Underwood laughed, a hollow, mocking laugh of derision. His old classmate had certainly chosen a good time to come and ask him for money. Howard mistook the cynical gayety for good humor.

"I said I'd cheer you up," he went on. "I don't want to remind you of that little matter of two hundred and fifty bucks which you borrowed from me two years ago. I suppose you've forgotten it, but——"

A look of annoyance came over Underwood's face.

"Well, what of it?" he snapped.

Howard took another drink before he continued.

"I wouldn't remind you of the loan, old chap; but I'm up against it. When the family kicked me out for marrying the finest girl that ever lived, my

father cut me off with a piking allowance which I told him to put in the church plate. I told him I preferred independence. Well," he went on with serio-comic gravity, "I got my independence, but I'm—I'm dead broke. You might as well understand the situation plainly. I can't find any business that I'm fitted for, and Annie threatens to go back to work. Now, you know I can't stand for anything like that. I'm too much of a man to be supported by any woman."

He looked toward Underwood in a stupid kind of way, as if looking for some sign of approval, but he was disappointed. Underwood's face was a study of supreme indifference. He did not even appear to be listening. Somewhat disconcerted, Howard again raised the glass to his lips, and thus refreshed, went on:

"Then I thought of you, old chap. You've made a rousing success of it—got a big name as art collector—made lots of money and all that——"

Underwood impatiently interrupted him.

"It's impossible, Jeffries. Things are a little hard with me, too, just now. You'll have to wait for that \$250."

Howard grinned.

"'Taint the \$250, old man, I didn't want that. I want a couple of thousand."

Underwood could not help laughing.

"A couple of thousand? Why not make it a million?"

Howard's demand struck him as being so humorous that he sat down convulsed with laughter.

Looking at him stupidly, Howard helped himself to another drink.

"It seems I'm a hit," he said with a grin.

Underwood by this time had recovered his composure.

"So you've done nothing since you left college?" he said.

"No," answered Howard. "I don't seem to get down to anything. My ideas won't stay in one place. I got a job as time-keeper, but I didn't keep it down a week. I kept the time all right, but it wasn't the right time," Again raising his glass to his lips, he added: "They're so beastly particular."

"You keep pretty good time with that," laughed Underwood, pointing to the whiskey.

Howard grinned in drunken fashion.

"It's the one thing I do punctually," he hiccoughed. "I can row, swim, play tennis, football, golf and polo as well as anybody, but I'll be damned if I can do anything quite as well as I can do this."

"What do you want \$2,000 for?" demanded Underwood.

"I've got an opportunity to go into business. I want \$2,000 and I want it deuced quick."

Underwood shrugged his shoulders.

"Why don't you go home and ask your father?" he demanded.

His visitor seemed offended at the suggestion.

"What!" he exclaimed, with comic surprise, "after being turned out like a dog with a young wife on my hands! Not much—no. I've injured their pride. You know father married a second time, loaded me down with a stepmother. She's all right, but she's so confoundedly aristocratic. You know her. Say, didn't you and she—wasn't there some sort of an engagement once? Seems to me I——"

Underwood rose to his feet and abruptly turned his back.

"I'd rather you wouldn't get personal," he said curtly. Sitting down at a desk, he began to rummage with some papers and, turning impatiently to Howard, he said:

"Say, old man, I'm very busy now. You'll have to excuse me."

If Howard had been sober, he would have understood that this was a pretty strong hint for him to be gone, but in his besotted condition, he did not

propose to be disposed of so easily. Turning to Underwood, he burst out with an air of offended dignity:

"Underwood, you wouldn't go back on me now. I'm an outcast, a pariah, a derelict on the ocean of life, as one of my highly respectable uncles wrote me. His grandfather was an iron puddler." With a drunken laugh he went on: "Doesn't it make you sick? I'm no good because I married the girl. If I had ruined her life I'd still be a decent member of society."

He helped himself to another drink, his hand shaking so that he could hardly hold the decanter. He was fast approaching the state of complete intoxication. Underwood made an attempt to interfere. Why should he care if the young fool made a sot of himself? The sooner he drank himself insensible the quicker he would get rid of him.

"No, Howard," he said; "you'd never make a decent member of society."

"P'r'aps not," hiccoughed Howard.

"How does Annie take her social ostracism?" inquired Underwood.

"Like a brick. She's a thoroughbred, all right. She's all to the good."

"All the same I'm sorry I ever introduced you to her," replied Underwood. "I never thought you'd make such a fool of yourself as to marry——"

Howard shook his head in a maudlin manner, as he replied:

"I don't know whether I made a fool of myself or not, but she's all right. She's got in her the makings of a great woman—very crude, but still the makings. The only thing I object to is, she insists on going back to work, just as if I'd permit such a thing. Do you know what I said on our wedding day? 'Mrs. Howard Jeffries, you are entering one of the oldest families in America. Nature has fitted you for social leadership. You'll be a petted, pampered member of that select few called the "400," and now, damn it all, how can I ask her to go back to work? But if you'll let me have that \$2,000 _____"

By this time Howard was beginning to get drowsy. Lying back on the sofa, he proceeded to make himself comfortable.

"Two thousand dollars!" laughed Underwood. "Why, man, I'm in debt up to my eyes."

As far as his condition enabled him, Howard gave a start of surprise.

"Hard up!" he exclaimed. Pointing around the room, he said: "What's all this—a bluff?"

Underwood nodded.

"A bluff, that's it. Not a picture, not a vase, not a stick belongs to me. You'll have to go to your father."

"Never," said Howard despondently. The suggestion was evidently too much for him, because he stretched out his hand for his whiskey glass. "Father's done with me," he said dolefully.

"He'll relent," suggested Underwood.

Howard shook his head drowsily. Touching his brow, he said:

"Too much brains, too much up here." Placing his hand on his heart, he went on: "Too little down here. Once he gets an idea, he never lets it go, he holds on. Obstinate. One idea—stick to it. Gee, but I've made a mess of things, haven't I?"

Underwood looked at him with contempt.

"You've made a mess of your life," he said bitterly, "yet you've had some measure of happiness. You, at least, married the woman you love. Drunken beast as you are, I envy you. The woman I wanted married some one else, damn her!"

Howard was so drowsy from the effects of the whiskey that he was almost asleep. As he lay back on the sofa, he gurgled:

"Say, old man; I didn't come here to listen to hard-luck stories. I came to tell one."

In maudlin fashion he began to sing, *Oh, listen to my tale of woe*, while Underwood sat glaring at him, wondering how he could put him out.

As he reached the last verse his head began to nod. The words came thickly from his lips and he sank sleepily back among the soft divan pillows.

Just at that moment the telephone bell rang. Underwood quickly picked up the receiver.

"Who's that?" he asked. As he heard the answer his face lit up and he replied eagerly: "Mrs. Jeffries—yes. I'll come down. No, tell her to come up."

Hanging up the receiver, he hastily went over to the divan and shook Howard.

"Howard, wake up! confound you! You've got to get out—there's somebody coming."

He shook him roughly, but his old classmate made no attempt to move.

"Quick, do you hear!" exclaimed Underwood impatiently. "Wake up—some one's coming."

Howard sleepily half opened his eyes. He had forgotten entirely where he was and believed he was on the train, for he answered:

"Sure, I'm sleepy. Say—porter, make up my bed."

His patience exhausted, Underwood was about to pull him from the sofa by force, when there was a ring at the front door.

Bending quickly over his companion, Underwood saw that he was fast asleep. There was no time to awaken him and get him out of the way, so, quickly, he took a big screen and arranged it around the divan so that Howard could not be seen. Then he hurried to the front door and opened it.

Alicia entered.

CHAPTER VII.

For a few moments Underwood was too much overcome by emotion to speak. Alicia brushed by in haughty silence, not deigning to look at him. All he heard was the soft rustle of her clinging silk gown as it swept along the floor. She was incensed with him, of course, but she had come. That was all he asked. She had come in time to save him. He would talk to her and explain everything and she would understand. She would help him in this crisis as she had in the past. Their long friendship, all these years of intimacy, could not end like this. There was still hope for him. The situation was not as desperate as he feared. He might yet avert the shameful end of the suicide. Advancing toward her, he said in a hoarse whisper:

"Oh, this is good of you, you've come—this is the answer to my letter."

Alicia ignored his extended hand and took a seat. Then, turning on him, she exclaimed indignantly:

"The answer should be a horsewhip. How dare you send me such a message?" Drawing from her bag the letter received from him that evening, she demanded:

"What do you expect to gain by this threat?"

"Don't be angry, Alicia."

Underwood spoke soothingly, trying to conciliate her. Well he knew the seductive power of his voice. Often he had used it and not in vain, but tonight it fell on cold, indifferent ears.

"Don't call me by that name," she snapped.

Underwood made no answer. He turned slightly paler and, folding his arms, just looked at her, in silence. There was an awkward pause.

At last she said:

"I hope you understand that everything's over between us. Our acquaintance is at an end."

"My feelings toward you can never change," replied Underwood earnestly. "I love you—I shall always love you."

Alicia gave a little shrug of her shoulders, expressive of utter indifference.

"Love!" she exclaimed mockingly. "You love no one but yourself."

Underwood advanced nearer to her and there was a tremor in his voice as he said:

"You have no right to say that. You remember what we once were. Whose fault is it that I am where I am to-day? When you broke our engagement and married old Jeffries to gratify your social ambition, you ruined my life. You didn't destroy my love—you couldn't kill that. You may forbid me everything—to see you—to speak to you—even to think of you, but I can never forget that you are the only woman I ever cared for. If you had married me, I might have been a different man. And now, just when I want you most, you deny me even your friendship. What have I done to deserve such treatment? Is it fair? Is it just?"

Alicia had listened with growing impatience. It was only with difficulty that she contained herself. Now she interrupted him hotly:

"I broke my engagement with you because I found that you were deceiving me—just as you deceived others."

"It's a lie!" broke in Underwood. "I may have trifled with others, but I never deceived you."

Alicia rose and, crossing the room, carelessly inspected one of the pictures on the wall, a study of the nude by Bouguereau.

"We need not go into that," she said haughtily. "That is all over now. I came to ask you what this letter—this threat——means. What do you expect to gain by taking your life unless I continue to be your friend? How can I be a friend to a man like you? You know what your friendship for a woman means. It means that you would drag her down to your own level and disgrace her as well as yourself. Thank God, my eyes are now opened to

your true character. No self-respecting woman could afford to allow her name to be associated with yours. You are as incapable of disinterested friendship as you are of common honesty." Coldly she added: "I hope you quite understand that henceforth my house is closed to you. If we happen to meet in public, it must be as strangers."

Underwood did not speak. Words seemed to fail him. His face was set and white. A nervous twitching about the mouth showed the terrible mental strain which the man was under. In the excitement he had forgotten about Howard's presence on the divan behind the screen. A listener might have detected the heavy breathing of the sleeper, but even Alicia herself was too preoccupied to notice it. Underwood extended his arms pleadingly:

"Alicia—for the sake of Auld Lang Syne!"

"Auld Lang Syne," she retorted. "I want to forget the past. The old memories are distasteful. My only object in coming here to-night was to make the situation plain to you and to ask you to promise me not to—carry out your threat to kill yourself. Why should you kill yourself? Only cowards do that. Because you are in trouble? That is the coward's way out. Leave New York. Go where you are not known. You are still young. Begin life over again, somewhere else." Advancing toward him, she went on: "If you will do this I will help you. I never want to see you again, but I'll try not to think of you unkindly. But you must promise me solemnly not to make any attempt against your life."

"I promise nothing," muttered Underwood doggedly.

"But you must," she insisted. "It would be a terrible crime, not only against yourself, but against others. You must give me your word."

Underwood shook his head.

"I promise nothing."

"But you must," persisted Alicia. "I won't stir from here until I have your promise."

He looked at her curiously.

"If my life has no interest for you, why should you care?" he asked.

There was a note of scorn in his voice which aroused his visitor's wrath. Crumpling up his letter in her hand, she confronted him angrily.

"Shall I tell you why I care?" she cried. "Because you accuse me in this letter of being the cause of your death—I, who have been your friend in spite of your dishonesty. Oh! it's despicable, contemptible! Above all, it's a lie——"

Underwood shrugged his shoulders. Cynically he replied:

"So it wasn't so much concern for me as for yourself that brought you here."

Alicia's eyes flashed as she answered:

"Yes, I wished to spare myself this indignity—the shame of being associated in any way with a suicide. I was afraid you meant what you said."

"Afraid," interrupted Underwood bitterly, "that some of the scandal might reach as far as the aristocratic Mrs. Howard Jeffries, Sr.!"

Her face flushed with anger, Alicia paced up and down the room. The man's taunts stung her to the quick. In a way, she felt that he was right. She ought to have guessed his character long ago and had nothing to do with him. He seemed desperate enough to do anything, yet she doubted if he had the courage to kill himself. She thought she would try more conciliatory methods, so, stopping short, she said more gently:

"You know how my husband has suffered through the wretched marriage of his only son. You know how deeply we both feel this disgrace, and yet you would add——"

Underwood laughed mockingly.

"Why should I consider your husband's feelings?" he cried. "He didn't consider mine when he married you." Suddenly bending forward, every nerve tense, he continued hoarsely: "Alicia, I tell you I'm desperate. I'm hemmed in on all sides by creditors. You know what your friendship—your patronage means? If you drop me now, your friends will follow—they're a lot of sheep led by you—and when my creditors hear of me they'll be down

on me like a flock of wolves. I'm not able to make a settlement. Prison stares me in the face."

Glancing around at the handsome furnishings, Alicia replied carelessly:

"I'm not responsible for your wrongdoing. I want to protect my friends. If they are a lot of sheep as you say, that is precisely why I should warn them. They have implicit confidence in me. You have borrowed their money, cheated them at cards, stolen from them. Your acquaintance with me has given them the opportunity. But now I've found you out. I refuse any longer to sacrifice my friends, my self-respect, my sense of decency." Angrily she continued: "You thought you could bluff me. You've adopted this coward's way of forcing me to receive you against my will. Well, you've failed. I will not sanction your robbing my friends. I will not allow you to sell them any more of your high-priced rubbish, or permit you to cheat them at cards."

Underwood listened in silence. He stood motionless, watching her flushed face as she heaped reproaches on him. She was practically pronouncing his death sentence, yet he could not help thinking how pretty she looked. When she had finished he said nothing, but, going to his desk, he opened a small drawer and took out a revolver.

Alicia recoiled, frightened.

"What are you going to do?" she cried.

Underwood smiled bitterly.

"Oh, don't be afraid. I wouldn't do it while you are here. In spite of all you've said to me, I still think too much of you for that." Replacing the pistol in the drawer, he added: "Alicia, if you desert me now, you'll be sorry to the day of your death."

His visitor looked at him in silence. Then, contemptuously, she said:

"I don't believe you intend to carry out your threat. I should have known from the first that your object was to frighten me. The pistol display was highly theatrical, but it was only a bluff. You've no more idea of taking your life than I have of taking mine. I was foolish to come here. I might have spared myself the humiliation of this clandestine interview. Good night!"

She went toward the door. Underwood made no attempt to follow her. In a hard, strange voice, which he scarcely recognized as his own, he merely said:

"Is that all you have to say?"

"Yes," replied Alicia, as she turned at the door. "Let it be thoroughly understood that your presence at my house is not desired. If you force yourself upon me in any way, you must take the consequences."

Underwood bowed, and was silent. She did not see the deathly pallor of his face. Opening the door of the apartment which led to the hall, she again turned.

"Tell me, before I go—you didn't mean what you said in your letter, did you?"

"I'll tell you nothing," replied Underwood doggedly.

She tossed her head scornfully.

"I don't believe that a man who is coward enough to write a letter like this has the courage to carry out his threat." Stuffing the letter back into her bag, she added: "I should have thrown it in the waste-paper basket, but on second thoughts, I think I'll keep it. Good night."

"Good night," echoed Underwood mechanically.

He watched her go down the long hallway and disappear in the elevator. Then, shutting the door, he came slowly back into the room and sat down at his desk. For ten minutes he sat there motionless, his head bent forward, every limb relaxed. There was deep silence, broken only by Howard's regular breathing and the loud ticking of the clock.

"It's all up," he muttered to himself. "It's no use battling against the tide. The strongest swimmer must go under some time. I've played my last card and I've lost. Death is better than going to jail. What good is life anyway without money? Just a moment's nerve and it will all be over."

Opening the drawer in the desk, he took out the revolver again. He turned it over in his hand and regarded fearfully the polished surface of the

instrument that bridged life and death. He had completely forgotten Howard's presence in the room. On the threshold of a terrible deed, his thoughts were leagues away. Like a man who is drowning, and close to death, he saw with surprising distinctness a kaleidoscopic view of his past life. He saw himself an innocent, impulsive school boy, the pride of a devoted mother, the happy home where he spent his childhood. Then came the association with bad companions, the first step in wrongdoing, stealing out of a comrade's pocket in school, the death of his mother, leaving home—with downward progress until he gradually drifted into his present dishonest way of living. What was the good of regrets? He could not recall his mother to life. He could never rehabilitate himself among decent men and women. The world had suddenly become too small for him. He must go, and quickly.

Fingering the pistol nervously, he sat before the mirror and placed it against his temple. The cold steel gave him a sudden shock. He wondered if it would hurt, and if there would be instant oblivion. The glare of the electric light in the room disconcerted him. It occurred to him that it would be easier in the dark. Reaching out his arm, he turned the electric button, and the room was immediately plunged into darkness, except for the moonlight which entered through the windows, imparting a ghostly aspect to the scene. On the other side of the room, behind the screen, a red glow from the open fire fell on the sleeping form of Howard Jeffries.

Slowly, deliberately, Underwood raised the pistol to his temple and fired.

CHAPTER VIII.

"Hello! What's that?"

Startled out of his Gargantuan slumber by the revolver's loud report, Howard sat up with a jump and rubbed his eyes. On the other side of the screen, concealed from his observation, there was a heavy crash of a body falling with a chair—then all was quiet.

Scared, not knowing where he was, Howard jumped to his feet. For a moment he stood still, trying to collect his senses. It was too dark to discern anything plainly, but he could dimly make out outlines of æsthetic furniture and bibelots. Ah, he remembered now! He was in Underwood's apartment.

Rubbing his eyes, he tried to recall how he came there, and slowly his befuddled brain began to work. He remembered that he needed \$2,000, and that he had called on Robert Underwood to try and borrow the money. Yes, he recalled that perfectly well. Then he and Underwood got drinking and talking, and he had fallen asleep. He thought he had heard a woman's voice—a voice he knew. Perhaps that was only a dream. He must have been asleep some time, because the lights were out and, seemingly, everybody had gone to bed. He wondered what the noise which startled him could have been. Suddenly he heard a groan. He listened intently, but all was still. The silence was uncanny.

Now thoroughly frightened, Howard cautiously groped his way about, trying to find the electric button. He had no idea what time it was. It must be very late. What an ass he was to drink so much! He wondered what Annie would say when he didn't return. He was a hound to let her sit up and worry like that. Well, this would be a lesson to him—it was the last time he'd ever touch a drop. Of course, he had promised her the same thing a hundred times before, but this time he meant it. His drinking was always getting him into some fool scrape or other.

He was gradually working his way along the room, when suddenly he stumbled over something on the floor. It was a man lying prostrate.

Stooping, he recognized the figure.

"Why—it's Underwood!" he exclaimed.

At first he believed his classmate was asleep, yet considered it strange that he should have selected so uncomfortable a place. Then it occurred to him that he might be ill. Shaking him by the shoulder, he cried:

"Hey, Underwood, what's the matter?"

No response came from the prostrate figure. Howard stooped lower, to see better, and accidentally touching Underwood's face, found it clammy and wet. He held his hand up in the moonlight and saw that it was covered with blood. Horror-stricken, he cried:

"My God! He's bleeding—he's hurt!"

What had happened? An accident—or worse? Quickly he felt the man's pulse. It had ceased to beat. Underwood was dead.

For a moment Howard was too much overcome by his discovery to know what to think or do. What dreadful tragedy could have happened? Carefully groping along the mantelpiece, he at last found the electric button and turned on the light. There, stretched out on the floor, lay Underwood, with a bullet hole in his left temple, from which blood had flowed freely down on his full-dress shirt. It was a ghastly sight. The man's white, set face, covered with a crimson stream, made a repulsive spectacle. On the floor near the body was a highly polished revolver, still smoking.

Howard's first supposition was that burglars had entered the place and that Underwood had been killed while defending his property. He remembered now that in his drunken sleep he had heard voices in angry altercation. Yet why hadn't he called for assistance? Perhaps he had and he hadn't heard him.

He looked at the clock, and was surprised to find it was not yet midnight. He believed it was at least five o'clock in the morning. It was evident that Underwood had never gone to bed. The shooting had occurred either while the angry dispute was going on or after the unknown visitor had departed. The barrel of the revolver was still warm, showing that it could only have

been discharged a few moments before. Suddenly it flashed upon him that Underwood might have committed suicide.

But it was useless to stand there theorizing. Something must be done. He must alarm the hotel people or call the police. He felt himself turn hot and cold by turn as he realized the serious predicament in which he himself was placed. If he aroused the hotel people they would find him here alone with a dead man. Suspicion would at once be directed at him, and it might be very difficult for him to establish his innocence. Who would believe that he could have fallen asleep in a bed while a man killed himself in the same room? It sounded preposterous. The wisest course for him would be to get away before anybody came.

Quickly he picked up his hat and made for the door. Just as he was about to lay his hand on the handle there was the click of a latchkey. Thus headed off, and not knowing what to do, he halted in painful suspense. The door opened and a man entered.

He looked as surprised to see Howard as the latter was to see him. He was clean-shaven and neatly dressed, yet did not look the gentleman. His appearance was rather that of a servant. All these details flashed before Howard's mind before he blurted out:

"Who the devil are you?"

The man looked astounded at the question and eyed his interlocutor closely, as if in doubt as to his identity. In a cockney accent he said loftily:

"I am Ferris, Mr. Underwood's man, sir." Suspiciously, he added: "Are you a friend of Mr. Underwood's, sir?"

He might well ask the question, for Howard's disheveled appearance and ghastly face, still distorted by terror, was anything but reassuring. Taken by surprise, Howard did not know what to say, and like most people questioned at a disadvantage, he answered foolishly:

"Matter? No. What makes you think anything is the matter?"

Brushing past the man, he added: "It's late. I'm going."

"Stop a minute!" cried the man-servant. There was something in Howard's manner that he did not like. Passing quickly into the sitting room, he called out: "Stop a minute!" But Howard did not stop. Terror gave him wings and, without waiting for the elevator, he was already half way down the first staircase when he heard shouts behind him.

"Murder! Stop thief! Stop that man! Stop that man!"

There was a rush of feet and hum of voices, which made Howard run all the faster. He leaped down four steps at a time in his anxiety to get away. But it was no easy matter descending so many flights of stairs. It took him several minutes to reach the main floor.

By this time the whole hotel was aroused. Telephone calls had quickly warned the attendants, who had promptly sent for the police. By the time Howard reached the main entrance he was intercepted by a mob too numerous to resist.

Things certainly looked black for him. As he sat, white and trembling, under guard in a corner of the entrance hall, waiting for the arrival of the police, the valet breathlessly gave the sensational particulars to the rapidly growing crowd of curious onlookers. He had taken his usual Sunday out and on returning home at midnight, as was his custom, he had let himself in with his latchkey. To his astonishment he had found this man, the prisoner, about to leave the premises. His manner and remarks were so peculiar that they at once aroused his suspicion. He hurried into the apartment and found his master lying dead on the floor in a pool of blood. In his hurry the assassin had dropped his revolver, which was lying near the corpse. As far as he could see, nothing had been taken from the apartment. Evidently the man was disturbed at his work and, when suddenly surprised, had made the bluff that he was calling on Mr. Underwood. They had got the right man, that was certain. He was caught red-handed, and in proof of what he said, the valet pointed to Howard's right hand, which was still covered with blood.

"How terrible!" exclaimed a woman bystander, averting her face. "So young, too!"

"It's all a mistake, I tell you. It's all a mistake," cried Howard, almost panic-stricken. "I'm a friend of Mr. Underwood's."

"Nice friend!" sneered an onlooker.

"Tell that to the police," laughed another.

"Or to the marines!" cried a third.

"It's the chair for his'n!" opined a fourth.

By this time the main entrance hall was crowded with people, tenants and passers-by attracted by the unwonted commotion. A scandal in high life is always caviare to the sensation seeker. Everybody excitedly inquired of his neighbor:

"What is it? What's the matter?"

Presently the rattle of wheels was heard and a heavy vehicle, driven furiously, drew up at the sidewalk with a jerk. It was the police patrol wagon, and in it were the captain of the precinct and a half dozen policemen and detectives. The crowd pushed forward to get a better view of the burly representatives of the law as, full of authority, they elbowed their way unceremoniously through the throng. Pointing to the leader, a big man in plain clothes, with a square, determined jaw and a bulldog face, they whispered one to another:

"That's Captain Clinton, chief of the precinct. He's a terror. It'll go hard with any prisoner he gets in his clutches!"

Followed by his uniformed myrmidons, the police official pushed his way to the corner where sat Howard, dazed and trembling, and still guarded by the valet and elevator boys.

"What's the matter here?" demanded the captain gruffly, and looking from Ferris to the white-faced Howard. The valet eagerly told his story:

"I came home at midnight, sir, and found my master, Mr. Robert Underwood, lying dead in the apartment, shot through the head." Pointing to Howard, he added: "This man was in the apartment trying to get away. You see his hand is still covered with blood."

Captain Clinton chuckled, and expanding his mighty chest to its fullest, licked his chops with satisfaction. This was the opportunity he had been looking for—a sensational murder in a big apartment hotel, right in the very heart of his precinct! Nothing could be more to his liking. It was a rich man's murder, the best kind to attract attention to himself. The sensational newspapers would be full of the case. They would print columns of stuff every day, together with his portrait. That was just the kind of publicity he needed now that he was wire-pulling for an inspectorship. They had caught the man "with the goods"—that was very clear. He promised himself to attend to the rest. Conviction was what he was after. He'd see that no tricky lawyer got the best of him. Concealing, as well as he could, his satisfaction, he drew himself up and, with blustering show of authority, immediately took command of the situation. Turning to a police sergeant at his side, he said:

"Maloney, this fellow may have had an accomplice. Take four officers and watch every exit from the hotel. Arrest anybody attempting to leave the building. Put two officers to watch the fire escapes. Send one man on the roof. Go!"

"Yes, sir," replied the sergeant, as he turned away to execute the orders.

Captain Clinton gave two strides forward, and catching Howard by the collar, jerked him to his feet.

"Now, young feller, you come with me! We'll go upstairs and have a look at the dead man."

Howard was at no time an athlete, and now, contrasted with the burly policeman, a colossus in strength, he seemed like a puny boy. His cringing, frightened attitude, as he looked up in the captain's bulldog face, was pathetic. The crowd of bystanders could hardly contain their eagerness to take in every detail of the dramatic situation. The prisoner was sober by this time, and thoroughly alarmed.

"What do you want me for?" he cried. "I haven't done anything. The man's dead, but I didn't kill him."

"Shut your mouth!" growled the captain.

Dragging Howard after him, he made his way to the elevator. Throwing his prisoner into the cage, he turned to give orders to his subordinate.

"Maloney, you come up with me and bring Officer Delaney." Addressing the other men, he said: "You other fellers look after things down here. Don't let any of these people come upstairs," Then, turning to the elevator boy, he gave the command: "Up with her."

The elevator, with its passengers, shot upward, stopped with a jerk at the fourteenth floor, and the captain, once more laying a brutal hand on Howard, pushed him out into the corridor.

If it could be said of Captain Clinton that he had any system at all, it was to be as brutal as possible with everybody unlucky enough to fall into his hands. Instead of regarding his prisoners as innocent until found guilty, as they are justly entitled to be regarded under the law, he took the direct opposite stand. He considered all his prisoners as guilty as hell until they had succeeded in proving themselves innocent. Even then he had his doubts. When a jury brought in a verdict of acquittal, he shook his head and growled. He had the greatest contempt for a jury that would acquit and the warmest regard for a jury which convicted. He bullied and maltreated his prisoners because he firmly believed in undermining their moral and physical resistance. When by depriving them of sleep and food, by choking them, clubbing them and frightening them he had reduced them to a state of nervous terror, to the border of physical collapse, he knew by experience that they would no longer be in condition to withstand his merciless cross-examinations. Demoralized, unstrung, they would blurt out the truth and so convict themselves. The ends of justice would thus be served.

Captain Clinton prided himself on the thorough manner in which he conducted these examinations of persons under arrest. It was a laborious ordeal, but always successful. He owed his present position on the force to the skill with which he brow-beat his prisoners into "confessions." With his "third degree" seances he arrived at results better and more quickly than in any other way. All his convictions had been secured by them. The press and meddling busy-bodies called his system barbarous, a revival of the old-time torture chamber. What did he care what the people said as long as he

convicted his man? Wasn't that what he was paid for? He was there to find the murderer, and he was going to do it.

He pushed his way into the apartment, followed closely by Maloney and the other policemen, who dragged along the unhappy Howard. The dead man still lay where he had fallen. Captain Clinton stooped down, but made no attempt to touch the corpse, merely satisfying himself that Underwood was dead. Then, after a casual survey of the room, he said to his sergeant:

"We won't touch a thing, Maloney, till the coroner arrives. He'll be here any minute, and he'll give the order for the undertaker. You can call up headquarters so the newspaper boys get the story."

While the sergeant went to the telephone to carry out these orders, Captain Clinton turned to look at Howard, who had collapsed, white and trembling, into a chair.

"What do you want with me?" cried Howard appealingly. "I assure you I've had nothing to do with this. My wife's expecting me home. Can't I go?"

"Shut up!" thundered the captain.

His arms folded, his eyes sternly fixed upon him, Captain Clinton stood confronting the unfortunate youth, staring at him without saying a word. The persistence of his stare made Howard squirm. It was decidedly unpleasant. He did not mind the detention so much as this man's overbearing, bullying manner. He knew he was innocent, therefore he had nothing to fear. But why was this police captain staring at him so? Whichever way he sat, whichever way his eyes turned, he saw this bulldog-faced policeman staring silently at him. Unknown to him, Captain Clinton had already begun the dreaded police ordeal known as the "third degree."

CHAPTER IX.

Fifteen minutes passed without a word being spoken. There was deep silence in the room. It was so quiet that one could have heard a pin drop. Had a disinterested spectator been there to witness it, he would have been at once impressed by the dramatic tableau presented—the dead man on the floor, his white shirt front spattered with blood, the cringing, frightened boy crouching in the chair, the towering figure of the police captain sitting sternly eyeing his hapless prisoner, and at the far end of the room Detective Sergeant Maloney busy sending hurried messages through the telephone.

"What did you do it for?" thundered the captain suddenly.

Howard's tongue clove to his palate. He could scarcely articulate. He was innocent, of course, but there was something in this man's manner which made him fear that he might, after all, have had something to do with the tragedy. Yet he was positive that he was asleep on the bed all the time. The question is, Would anybody believe him? He shook his head pathetically.

"I didn't do it. Really, I didn't."

"Shut your mouth! You're lying, and you know you're lying. Wait till the coroner comes. We'll fix you."

Again there was silence, and now began a long, tedious wait, both men retaining the same positions, the captain watching his prisoner as a cat watches a mouse.

Howard's mental anguish was almost unendurable. He thought of his poor wife who must be waiting up for him all this time, wondering what had become of him. She would imagine the worst, and there was no telling what she might do. If only he could get word to her. Perhaps she would be able to explain things. Then he thought of his father. They had quarreled, it was true, but after all it was his own flesh and blood. At such a critical situation as this, one forgets. His father could hardly refuse to come to his assistance. He must get a lawyer, too, to protect his interests. This police captain had

no right to detain him like this. He must get word to Annie without delay. Summoning up all his courage, he said boldly:

"You are detaining me here without warrant in law. I know my rights. I am the son of one of the most influential men in the city."

"What's your name?" growled the captain.

"Howard Jeffries."

"Son of Howard Jeffries, the banker?"

Howard nodded.

"Yes."

The captain turned to his sergeant.

"Maloney, this feller says he's the son of Howard Jeffries, the banker."

Maloney leaned over and whispered something in the captain's ear. The captain smiled grimly.

"So, you're a bad character, eh? Father turned you out of doors, eh? Where's that girl you ran away with?" Sharply he added: "You see I know your record."

"I've done nothing I'm ashamed of," replied Howard calmly. "I married the girl. She's waiting my return now. Won't you please let me send her a message?"

The captain eyed Howard suspiciously for a moment, then he turned to his sergeant:

"Maloney, telephone this man's wife. What's the number?"

"Eighty-six Morningside."

Maloney again got busy with the telephone and the wearying wait began once more. The clock soon struck two. For a whole hour he had been subjected to this gruelling process, and still the lynx-eyed captain sat there watching his quarry.

If Captain Clinton had begun to have any doubts when Howard told him who his father was, Maloney's information immediately put him at his ease. It was all clear to him now. The youth had never been any good. His own father had kicked him out. He was in desperate financial straits. He had come to this man's rooms to make a demand for money. Underwood had refused and there was a quarrel, and he shot him. There was probably a dispute over the woman. Ah, yes, he remembered now. This girl he married was formerly a sweetheart of Underwood's. Jealousy was behind it as well. Besides, wasn't he caught red-handed, with blood on his hands, trying to escape from the apartment? Oh, they had him dead to rights, all right. Any magistrate would hold him on such evidence.

"It's the Tombs for him, all right, all right," muttered the captain to himself; "and maybe promotion for me."

Suddenly there was a commotion at the door. The coroner entered, followed by the undertaker. The two men advanced quickly into the room, and took a look at the body. After making a hasty examination, the coroner turned to Captain Clinton.

"Well, Captain, I guess he's dead, all right."

"Yes, and we've got our man, too."

The coroner turned to look at the prisoner.

"Caught him red-handed, eh? Who is he?"

Howard was about to blurt out a reply, when the captain thundered:

"Silence!"

To the coroner, the captain explained:

"He's the scapegrace son of Howard Jeffries, the banker. No good—bad egg. His father turned him out of doors. There is no question about his guilt. Look at his hands. We caught him trying to get away."

The coroner rose. He believed in doing things promptly.

"I congratulate you, captain. Quick work like this ought to do your reputation good. The community owes a debt to the officers of the law if they succeed in apprehending criminals quickly. You've been getting some pretty hard knocks lately, but I guess you know your business."

The captain grinned broadly.

"I guess I do. Don't we, Maloney?"

"Yes, cap.," said Maloney quietly.

The coroner turned to go.

"Well, there's nothing more for me to do here. The man is dead. Let justice take its course." Addressing the undertaker, he said:

"You can remove the body."

The men set about the work immediately. Carrying the corpse into the inner room, they commenced the work of laying it out.

"I suppose," said the coroner, "that you'll take your prisoner immediately to the station house, and before the magistrate to-morrow morning?"

"Not just yet," grinned the captain. "I want to put a few questions to him first."

The coroner smiled.

"You're going to put him through the 'third degree,' eh? Every one's heard of your star-chamber ordeals. Are they really so dreadful?"

"Nonsense!" laughed the captain. "We wouldn't harm a baby, would we Maloney?"

The sergeant quickly endorsed his chief's opinion.

"No, cap."

Turning to go, the coroner said:

"Well, good night, captain."

"Good night, Mr. Coroner."

Howard listened to all this like one transfixed. They seemed to be talking about him. They were discussing some frightful ordeal of which he was to be the victim. What was this "third degree" they were talking about? Now he remembered. He had heard of innocent men being bullied, maltreated, deprived of food and sleep for days, in order to force them to tell what the police were anxious to find out. He had heard of secret assaults, of midnight clubbings, of prisoners being choked and brutally kicked by a gang of ruffianly policemen, in order to force them into some damaging admission. A chill ran down his spine as he realized his utter helplessness. If he could only get word to a lawyer. Just as the coroner was disappearing through the door, he darted forward and laid a hand on his arm.

"Mr. Coroner, won't you listen to me?" he exclaimed.

The coroner, startled, drew back.

"I cannot interfere," he said coldly.

"Mr. Underwood was a friend of mine," explained Howard. "I came here to borrow money. I fell asleep on that sofa. When I woke up he was dead. I was frightened. I tried to get away. That's the truth, so help me God!"

The coroner looked at him sternly and made no reply. No one could ever reproach him with sympathizing with criminals. Waving his hand at Captain Clinton, he said:

"Good night, captain."

"Good night, Mr. Coroner."

The door slammed and Captain Clinton, with a twist of his powerful arm, yanked his prisoner back into his seat. Howard protested.

"You've got no right to treat me like this. You exceed your powers. I demand to be taken before a magistrate at once."

The captain grinned, and pointed to the clock.

"Say, young feller, see what time it is? Two-thirty A. M. Our good magistrates are all comfy in their virtuous beds. We'll have to wait till morning."

"But what's the good of sitting here in this death house?" protested Howard. "Take me to the station if I must go. It's intolerable to sit any longer here."

The captain beckoned to Maloney.

"Not so fast, young man. Before we go to the station we want to ask you a few questions. Don't we Maloney?"

The sergeant came over, and the captain whispered something in his ear. Howard shivered. Suddenly turning to his prisoner, the captain shouted in the stern tone of command:

"Get up!"

Howard did as he was ordered. He felt he must. There was no resisting that powerful brute's tone of authority. Pointing to the other side of the table, the captain went on:

"Stand over there where I can look at you!"

The two men now faced each other, the small table alone separating them. The powerful electrolier overhead cast its light full on Howard's haggard face and on the captain's scowling features. Suddenly Maloney turned off every electric light except the lights in the electrolier, the glare of which was intensified by the surrounding darkness. The rest of the room was in shadow. One saw only these two figures standing vividly out in the strong light—the white-faced prisoner and his stalwart inquisitor. In the dark background stood Policeman Delaney. Close at hand was Maloney taking notes.

"You did it, and you know you did it!" thundered the captain, fixing his eyes on his trembling victim.



"YOU DID IT, AND YOU KNOW YOU DID IT."

"I did not do it," replied Howard slowly and firmly, returning the policeman's stare.

"You're lying!" shouted the captain.

"I'm not lying," replied Howard calmly.

The captain glared at him for a moment and then suddenly tried new tactics.

"Why did you come here?" he demanded.

"I came to borrow money."

"Did you get it?"

"No—he said he couldn't give it to me."

"Then you killed him."

"I did not kill him," replied Howard positively.

Thus the searching examination went on, mercilessly, tirelessly. The same questions, the same answers, the same accusations, the same denials, hour after hour. The captain was tired, but being a giant in physique, he could stand it. He knew that his victim could not. It was only a question of time when the latter's resistance would be weakened. Then he would stop lying and tell the truth. That's all he wanted—the truth.

"You shot him!"

"I did not."

"You're lying!"

"I'm not lying—it's the truth."

So it went on, hour after hour, relentlessly, pitilessly, while the patient Maloney, in the obscure background, took notes.

CHAPTER X.

The clock ticked on, and still the merciless brow-beating went on. They had been at it now five long, weary hours. Through the blinds the gray daylight outside was creeping its way in. All the policemen were exhausted. The prisoner was on the verge of collapse. Maloney and Patrolman Delaney were dozing on chairs, but Captain Clinton, a marvel of iron will and physical strength, never relaxed for a moment. Not allowing himself to weaken or show signs of fatigue, he kept pounding the unhappy youth with searching questions.

By this time Howard's condition was pitiable to witness. His face was white as death. His trembling lips could hardly articulate. It was with the greatest difficulty that he kept on his feet. Every moment he seemed about to fall. At times he clutched the table nervously, for fear he would stumble. Several times, through sheer exhaustion, he sat down. The act was almost involuntary. Nature was giving way.

"I can't stand any more," he murmured. "What's the good of all these questions? I tell you I didn't do it."

He sank helplessly on to a chair. His eyes rolled in his head. He looked as if he would faint.

"Stand up!" thundered the captain angrily.

Howard obeyed mechanically, although he reeled in the effort. To steady himself, he caught hold of the table. His strength was fast ebbing. He was losing his power to resist. The captain saw he was weakening, and he smiled with satisfaction. He'd soon get a confession out of him. Suddenly bending forward, so that his fierce, determined stare glared right into Howard's half-closed eyes, he shouted:

"You did it and you know you did!"

"No—I——" replied Howard weakly.

"These repeated denials are useless!" shouted the captain. "There's already enough evidence to send you to the chair!"

Howard shook his head helplessly. Weakly he replied:

"This constant questioning is making me dizzy. Good God! What's the use of questioning me and questioning me? I know nothing about it."

"Why did you come here?" thundered the captain.

"I've told you over and over again. We're old friends. I came to borrow money. He owed me a few hundred dollars when we were at college together, and I tried to get it. I've told you so many times. You won't believe me. My brain is tired. I'm thoroughly exhausted. Please let me go. My poor wife won't know what's the matter."

"Never mind about your wife," growled the captain. "We've sent for her. How much did you try to borrow?"

Howard was silent a moment, as if racking his brain, trying to remember.

"A thousand—two thousand. I forget. I think one thousand."

"Did he say he'd lend you the money?" demanded the inquisitor.

"No," replied the prisoner, with hesitation. "He couldn't—he—poor chap—he——"

"Ah!" snapped the captain. "He refused—that led to words. There was a quarrel, and——" Suddenly leaning forward until his face almost touched Howard's, he hissed rather than spoke: "You shot him!"

Howard gave an involuntary step backward, as if he realized the trap being laid for him.

"No, no!" he cried.

Quickly following up his advantage, Captain Clinton shouted dramatically:

"You lie! He was found on the floor in this room—dead. You were trying to get out of the house without being seen. You hadn't even stopped to wash the blood off your hands. All you fellers make mistakes. You relied on

getting away unseen. You never stopped to think that the blood on your hands would betray you." Gruffly he added: "Now, come, what's the use of wasting all this time? It won't go so hard with you if you own up. You killed Robert Underwood!"

Howard shook his head. There was a pathetic expression of helplessness on his face.

"I didn't kill him," he faltered. "I was asleep on that sofa. I woke up. It was dark. I went out. I wanted to get home. My wife was waiting for me."

"Now I've caught you lying," interrupted the captain quickly. "You told the coroner you saw the dead man and feared you would be suspected of his murder, and so tried to get away unseen." Turning to his men, he added: "How is that, Maloney? Did the prisoner say that?"

The sergeant consulted his back notes, and replied:

"Yes, Cap', that's what he said."

Suddenly Captain Clinton drew from his hip pocket the revolver which he had found on the floor, near the dead man's body. The supreme test was about to be made. The wily police captain would now play his trump card. It was not without reason that his enemies charged him with employing unlawful methods in conducting his inquisitorial examinations.

"Stop your lying!" he said fiercely. "Tell the truth, or we'll keep you here until you do. The motive is clear. You came for money. You were refused, and you did the trick."

Suddenly producing the revolver, and holding it well under the light, so that the rays from the electrolight fell directly on its highly polished surface, he shouted:

"Howard Jeffries, you shot Robert Underwood, and you shot him with this pistol!"

Howard gazed at the shining surface of the metal as if fascinated. He spoke not a word, but his eyes became riveted on the weapon until his face assumed a vacant stare. From the scientific standpoint, the act of hypnotism had been accomplished. In his nervous and overfatigued state, added to his

susceptibility to quick hypnosis, he was now directly under the influence of Captain Clinton's stronger will, directing his weaker will. He was completely receptive. The past seemed all a blur on his mind. He saw the flash of steel and the police captain's angry, determined-looking face. He felt he was powerless to resist that will any longer. He stepped back and gave a shudder, averting his eyes from the blinding steel. Captain Clinton quickly followed up his advantage:

"You committed this crime, Howard Jeffries!" he shouted, fixing him with a stare. To his subordinate he shouted: "Didn't he, Maloney?"

"He killed him all right," echoed Maloney.

His eyes still fixed on those of his victim, and approaching his face close to his, the captain shouted:

"You did it, Jeffries! Come on, own up! Let's have the truth! You shot Robert Underwood with this revolver. You did it, and you can't deny it! You know you can't deny it! Speak!" he thundered. "You did it!"

Howard, his eyes still fixed on the shining pistol, repeated, as if reciting a lesson:

"I did it!"

Quickly Captain Clinton signaled to Maloney to approach nearer with his notebook. The detective sergeant took his place immediately back of Howard. The captain turned to his prisoner:

"You shot Robert Underwood!"

"I shot Robert Underwood," repeated Howard mechanically.

"You quarreled!"

"We quarreled."

"You came here for money!"

"I came here for money."

"He refused to give it to you!"

"He refused to give it to me."

"There was a quarrel!"

"There was a quarrel."

"You drew that pistol!"

"I drew that pistol."

"And shot him!"

"And shot him."

Captain Clinton smiled triumphantly.

"That's all," he said.

Howard collapsed into a chair. His head dropped forward on his breast, as if he were asleep. Captain Clinton yawned and looked at his watch. Turning to Maloney, he said with a chuckle:

"By George! it's taken five hours to get it out of him!"

Maloney turned out the electric lights and went to pull up the window shades, letting the bright daylight stream into the room. Suddenly there was a ring at the front door. Officer Delaney opened, and Dr. Bernstein entered. Advancing into the room, he shook hands with the captain.

"I'm sorry I couldn't come before, captain. I was out when I got the call. Where's the body?"

The captain pointed to the inner room.

"In there."

After glancing curiously at Howard, the doctor disappeared into the inner room.

Captain Clinton turned to Maloney.

"Well, Maloney, I guess our work is done here. We want to get the prisoner over to the station, then make out a charge of murder, and prepare the full

confession to submit to the magistrate. Have everything ready by nine o'clock. Meantime, I'll go down and see the newspaper boys. I guess there's a bunch of them down there. Of course, it's too late for the morning papers, but it's a bully good story for the afternoon editions. Delaney, you're responsible for the prisoner. Better handcuff him."

The patrolman was just putting the manacles on Howard's wrists when Dr. Bernstein reentered from the inner room. The captain turned.

"Well, have you seen your man?" he asked.

The doctor nodded.

"Found a bullet wound in his head," he said. "Flesh all burned—must have been pretty close range. It might have been a case of suicide."

Captain Clinton frowned. He didn't like suggestions of that kind after a confession which had cost him five hours' work to procure.

"Suicide?" he sneered. "Say, doctor, did you happen to notice what side of the head the wound was on?"

Dr. Bernstein reflected a moment.

"Ah, yes. Now I come to think of it, it was the left side."

"Precisely," sneered the captain. "I never heard of a suicide shooting himself in the left temple. Don't worry, doctor, it's murder, all right." Pointing with a jerk of his finger toward Howard, he added: "And we've got the man who did the job."

Officer Delaney approached his chief and spoke to him in a low tone. The captain frowned and looked toward his prisoner. Then, turning toward the officer, he said:

"Is the wife downstairs?"

The officer nodded.

"Yes, sir, they just telephoned."

"Then let her come up," said the captain. "She may know something."

Delaney returned to the telephone and Dr. Bernstein turned to the captain:

"Say what you will, captain, I'm not at all sure that Underwood did not do this himself."

"Ain't you? Well, I am," replied the captain with a sneer. Pointing again to Howard, he said:

"This man has just confessed to the shooting."

At that moment the front door opened and Annie Jeffries came in escorted by an officer. She was pale and frightened, and looked timidly at the group of strange and serious-looking men present. Then her eyes went round the room in search of her husband. She saw him seemingly asleep in an armchair, his wrists manacled in front of him. With a frightened exclamation she sprang forward, but Officer Delaney intercepted her. Captain Clinton turned around angrily at the interruption:

"Keep the woman quiet till she's wanted!" he growled.

Annie sat timidly on a chair in the background and the captain turned again to the doctor.

"What's that you were saying, doctor?"

"You tell me the man confessed?"

Crossing the room to where Howard sat, Dr. Bernstein looked closely at him. Apparently the prisoner was asleep. His eyes were closed and his head drooped forward on his chest. He was ghastly pale.

The captain grinned.

"Yes, sir, confessed—in the presence of three witnesses. Eh, sergeant?"

"Yes, sir," replied Maloney.

"You heard him, too, didn't you, Delaney?"

"Yes, captain."

Squaring his huge shoulders, the captain said with a self-satisfied chuckle:

"It took us five hours to get him to own up, but we got it out of him at last."

The doctor was still busy with his examination.

"He seems to be asleep. Worn out, I guess. Five hours, yes—that's your method, captain." Shaking his head, he went on: "I don't believe in these all-night examinations and your 'third degree' mental torture. It is barbarous. When a man is nervous and frightened his brain gets so benumbed at the end of two or three hours' questioning on the same subject that he's liable to say anything, or even believe anything. Of course you know, captain, that after a certain time the law of suggestion commences to operate and——"

The captain turned to his sergeant and laughed:

"The law of suggestion? Ha, ha! That's a good one! You know, doctor, them theories of yours may make a hit with college students and amateur professors, but they don't go with us. You can't make a man say 'yes' when he wants to say 'no'."

Dr. Bernstein smiled.

"I don't agree with you," he said. "You can make him say anything, or believe anything—or do anything if he is unable to resist your will."

The captain burst into a hearty peal of laughter.

"Ha, ha! What's the use of chinnin'? We've got him to rights. I tell you, doctor, no newspaper can say that my precinct ain't cleaned up. My record is a hundred convictions to one acquittal. I catch 'em with the goods when I go after 'em!"

A faint smile hovered about the doctor's face.

"I know your reputation," he said sarcastically.

The captain thought the doctor was flattering him, so he rubbed his hands with satisfaction, as he replied:

"That's right. I'm after results. None of them *Psyche* themes for mine." Striding over to the armchair where sat Howard, he laid a rough hand on his shoulder:

"Hey, Jeffries, wake up!"

Howard opened his eyes and stared stupidly about him. The captain took him by the collar of his coat.

"Come—stand up! Brace up now!" Turning to Sergeant Maloney, he added, "Take him over to the station. Write out that confession and make him sign it before breakfast. I'll be right over."

Howard struggled to his feet and Maloney helped him arrange his collar and tie. Officer Delaney clapped his hat on his head. Dr. Bernstein turned to go.

"Good morning, captain. I'll make out my report"

"Good morning, doctor."

Dr. Bernstein disappeared and Captain Clinton turned to look at Annie, who had been waiting patiently in the background. Her anguish on seeing Howard's condition was unspeakable. It was only with difficulty that she restrained herself from crying out and rushing to his side. But these stern, uniformed men intimidated her. It seemed to her that Howard was on trial—a prisoner—perhaps his life was in danger. What could he have done? Of course, he was innocent, whatever the charge was. He wouldn't harm a fly. She was sure of that. But every one looked so grave, and there was a big crowd gathered in front of the hotel when she came up. She thought she had heard the terrible word "murder," but surely there was some mistake. Seeing Captain Clinton turn in her direction, she darted eagerly forward.

"May I speak to him, sir? He is my husband."

"Not just now," replied the captain, not unkindly. "It's against the rules. Wait till we get him to the Tombs. You can see him all you want there."

Annie's heart sank. Could she have heard aright?

"The Tombs!" she faltered. "Is the charge so serious?"

"Murder—that's all!" replied the captain laconically.

Annie nearly swooned. Had she not caught the back of a chair she would have fallen.

The captain turned to Maloney and, in a low tone, said:

"Quick! Get him over to the station. We don't want any family scenes here."

Manacled to Officer Delaney and escorted on the other side by Maloney, Howard made his way toward the door. Just as he reached it he caught sight of his wife who, with tears streaming down her cheeks, was watching him as if in a dream. To her it seemed like some hideous nightmare from which both would soon awaken. Howard recognized her, yet seemed too dazed to wonder how she came there. He simply blurted out as he passed:

"Something's happened, Annie, dear. I—Underwood—I don't quite know _____"

The policemen pushed him through the door, which closed behind him.

CHAPTER XI.

Unable to control herself any longer, Annie broke down completely and burst into tears. When the door opened and she saw her husband led away, pale and trembling, between those two burly policemen, it was as if all she cared for on earth had gone out of her life forever. Captain Clinton laid his hand gently on her shoulder. With more sympathy in his face than was his custom to display, he said:

"Now, little woman—t'ain't no kind of use carrying on like that! If you want to help your husband and get him out of his trouble you want to get busy. Sitting there crying your eyes out won't do him any good."

Annie threw up her head. Her eyes were red, but they were dry now. Her face was set and determined. The captain was right. Only foolish women weep and wail when misfortune knocks at their door. The right sort of women go bravely out and make a fight for liberty and honor. Howard was innocent. She was convinced of that, no matter how black things looked against him. She would not leave a stone unturned till she had regained for him his liberty. With renewed hope in her heart and resolution in her face, she turned to confront the captain.

"What has he done?" she demanded.

"Killed his friend, Robert Underwood."

He watched her face closely to see what effect his words would have on her.

"Robert Underwood dead!" exclaimed Annie with more surprise than emotion.

"Yes," said the captain sternly, "and your husband, Howard Jeffries, killed him."

"That's not true! I'd never believe that," said Annie promptly.

"He's made a full confession," went on the captain.

"A confession!" she echoed uneasily. "What do you mean?"

"Just what I say. Your husband has made a full confession, in the presence of witnesses, that he came here to Underwood's rooms to ask for money. They quarreled. Your husband drew a pistol and shot him. He has signed a confession which will be presented to the magistrate this morning."

Annie looked staggered for a moment, but her faith in her husband was unshakable. Almost hysterically she cried:

"I don't believe it. I don't believe it. You may have tortured him into signing something. Everybody knows your methods, Captain Clinton. But thank God there is a law in the United States which protects the innocent as well as punishes the guilty. I shall get the most able lawyers to defend him even if I have to sell myself into slavery for the rest of my life."

"Bravo, little woman!" said the captain mockingly. "That's the way to talk. I like your spunk, but before you go I'd like to ask you a few questions. Sit down."

He waved her to a chair and he sat opposite her.

"Now, Mrs. Jeffries," he began encouragingly, "tell me—did you ever hear your husband threaten Howard Underwood?"

By this time Annie had recovered her self-possession. She knew that the best way to help Howard was to keep cool and to say nothing which was likely to injure his cause. Boldly, therefore, she answered:

"You've no right to ask me that question."

The captain shifted uneasily in his seat. He knew she was within her legal rights. He couldn't bully her into saying anything that would incriminate her husband.

"I merely thought you would like to assist the authorities, to——" he stammered awkwardly.

"To convict my husband," she said calmly. "Thank you, I understand my position."

"You can't do him very much harm, you know," said the captain with affected jocularly. "He has confessed to the shooting."

"I don't believe it," she said emphatically.

Trying a different tack, he asked carelessly:

"Did you know Mr. Underwood?"

She hesitated before replying, then indifferently she said:

"Yes, I knew him at one time. He introduced me to my husband."

"Where was that?"

"In New Haven, Conn."

"Up at the college, eh? How long have you known Mr. Underwood?"

Annie looked at her Inquisitor and said nothing. She wondered what he was driving at, what importance the question had to the case. Finally she said:

"I met him once or twice up at New Haven, but I've never seen him since my marriage to Mr. Jeffries. My husband and he were not very good friends. That is——"

She stopped, realizing that she had made a mistake. How foolish she had been! The police, of course, were anxious to show that there was ill feeling between the two men. Her heart misgave her as she saw the look of satisfaction in the captain's face.

"Ah!" he exclaimed. "Not very good friends, eh? In fact, your husband didn't like him, did he?"

"He didn't like him well enough to run after him," she replied hesitatingly.

The captain now started off in another direction.

"Was your husband ever jealous of Underwood?"

By this time Annie had grown suspicious of every question. She was on her guard.

"Jealous? What do you mean? No, he was not jealous. There was never any reason. I refuse to answer any more questions."

The captain rose and began to pace the floor.

"There's one little thing more, Mrs. Jeffries, and then you can go. You can help your husband by helping us. I want to put one more question to you and be careful to answer truthfully. Did you call at these rooms last night to see Mr. Underwood?"

"I!" exclaimed Annie with mingled astonishment and indignation. "Of course not."

"Sure?" demanded the captain, eyeing her narrowly.

"Positive," said Annie firmly.

The captain looked puzzled.

"A woman called here last night to see him," he said thoughtfully, "and I thought that perhaps——"

Interrupting himself, he went quickly to the door of the apartment and called to some one who was waiting in the corridor outside. A boy about eighteen years of age, in the livery of an elevator attendant, entered the room. The captain pointed to Annie.

"Is that the lady?"

The boy looked carefully, and then shook his head:

"Don't think so—no, sir. The other lady was a great swell."

"You're sure, eh?" said the captain.

"I—think so," answered the boy.

"Do you remember the name she gave?"

"No, sir," replied the boy. "Ever since you asked me——"

Annie arose and moved toward the door. She had no time to waste there. Every moment now was precious. She must get legal assistance at once.

Turning to Captain Clinton, she said:

"If you've no further use for me, captain, I think I'll go."

"Just one moment, Mrs. Jeffries," he said.

The face of the elevator boy suddenly brightened up.

"That's it," he said eagerly. "That's it—Jeffries. I think that was the name she gave, sir."

"Who?" demanded the captain.

"Not this lady," said the boy. "The other lady. I think she said Jeffries, or Jenkins, or something like that."

The captain waved his hand toward the door.

"That's all right—go. We'll find her all right."

The boy went out and the captain turned round to Annie.

"It'll be rather a pity if it isn't you," he said, with a suggestive smile.

"How so?" she demanded.

The captain laughed.

"Well, you see, a woman always gets the jury mixed up. Nothing fools a man like a pretty face, and twelve times one is twelve. You see if they quarreled about you—your husband would stand some chance." Patronizingly he added, "Come, Mrs. Jeffries, you'd better tell the truth and I can advise you who to go to."

Annie drew herself up, and with dignity said:

"Thanks, I'm going to the best lawyer I can get. Not one of those courtroom politicians recommended by a police captain. I am going to Richard Brewster. He's the man. He'll soon get my husband out of the Tombs." Reflectively she added: "If my father had had Judge Brewster to defend him instead of a legal shark, he'd never have been railroaded to jail. He'd be alive to-day."

Captain Clinton guffawed loudly. The idea of ex-Judge Brewster taking the case seemed to amuse him hugely.

"Brewster?" he laughed boisterously. "You'd never be able to get Brewster. Firstly, he's too expensive. Secondly, he's old man Jeffries' lawyer. He wouldn't touch your case with a ten-foot pole. Besides," he added in a tone of contempt, "Brewster's no good in a case of this kind. He's a constitution lawyer—one of them international fellers. He don't know nothing——"

"He's the only lawyer I want," she retorted determinedly. Then she went on: "Howard's folks must come to his rescue. They must stand by him—they must——"

The captain grinned.

"From what I hear," he said, "old man Jeffries won't raise a finger to save his scapegrace son from going to the chair. He's done with him for good and all."

Chuckling aloud and talking to himself rather than to his vis-à-vis, he muttered:

"That alone will convince the jury. They'll argue that the boy can't be much good if his own go back on him."

Annie's eyes flashed.

"Precisely!" she exclaimed. "But his own won't go back on him. I'll see to it that they don't." Rising and turning toward the door, she asked: "Have you anything more to say to me, captain?"

"No," replied the captain hesitatingly. "You can go. Of course you'll be called later for the trial. You can see your husband in the Tombs when you wish."

No man is so hard that he has not a soft spot somewhere. At heart Captain Clinton was not an unkind man. Long service in the police force and a mistaken notion of the proper method of procedure in treating his prisoners had hardened him and made him brutal. Secretly he felt sorry for this plucky, energetic little woman who had such unbounded faith in her good-

for-nothing husband, and was ready to fight all alone in his defense. Eyeing her with renewed interest, he demanded:

"What are you going to do now?"

Annie reached the door, and drawing herself up to her full height, turned and said:

"I'm going to undo all you have done, Captain Clinton. I'm going to free my husband and prove his innocence before the whole world. I don't know how I'm going to do it, but I'll do it. I'll fight you, captain, to the last ditch, and I'll rescue my poor husband from your clutches if it takes everything I possess in the world."

Quickly she opened the door and disappeared.

CHAPTER XII.

The American dearly loves a sensation, and the bigger and more blood-curdling it is the better. Nothing is more gratifying on arising in the morning and sitting down to partake of a daintily served breakfast than to glance hurriedly over the front page of one's favorite newspaper and see it covered with startling headlines. It matters little what has happened during the night to shock the community, so long as it satisfies one's appetite for sensational news. It can be a fatal conflagration, a fearful railroad wreck, a gigantic bank robbery, a horrible murder, or even a scandalous divorce case. All one asks is that it be something big, with column after column of harrowing details. The newspapers are fully alive to what is expected of them, but it is not always easy to supply the demand. There are times when the metropolis languishes for news of any description. There are no disastrous fires, trains run without mishap, burglars go on a vacation, society leaders act with decorum—in a word the city is deadly dull. Further consideration of the tariff remains the most thrilling topic the newspapers can find to write about.

The murder at the aristocratic Astruria, therefore, was hailed by the editors as a unmixed journalistic blessing, and they proceeded to play it up for all it was worth. All the features of a first-class sensation were present. The victim, Robert Underwood, was well known in society and a prominent art connoisseur. The place where the crime was committed was one of the most fashionable of New York's hostelrys. The presumed assassin was a college man and the son of one of the most wealthy and influential of New York's citizens.

True, this Howard Jeffries, the son, was a black sheep. He had been mixed up in all kinds of scandals before. His own father had turned him out of doors, and he was married to a woman whose father died in prison. Could a better combination of circumstances for a newspaper be conceived? The crime was discovered too late for the morning papers to make mention of it, but the afternoon papers fired a broadside that shook the town. All the evening papers had big scare heads stretching across the entire front page,

with pictures of the principals involved and long interviews with the coroner and Captain Clinton. There seemed to be no doubt that the police had arrested the right man, and in all quarters of the city there was universal sympathy for Mr. Howard Jeffries, Sr. It was terrible to think that this splendid, upright man, whose whole career was without a single stain, who had served his country gallantly through the civil war, should have such disgrace brought upon him in his old age.

Everything pointed to a speedy trial and quick conviction. Public indignation was aroused almost to a frenzy, and a loud clamor went up against the law's delay. Too many crimes of this nature, screamed the yellow press, had been allowed to sully the good name of the city. A fearful example must be made, no matter what the standing and influence of the prisoner's family. Thus goaded on, the courts acted with promptness. Taken before a magistrate, Howard was at once committed to the Tombs to await trial, and the district attorney set to work impaneling a jury. Justice, he promised, would be swiftly done. One newspaper stated positively that the family would not interfere, but would abandon the scapegrace son to his richly deserved fate. Judge Brewster, the famous lawyer, it was said, had already been approached by the prisoner's wife, but had declined to take the case. Banker Jeffries also was quoted as saying that the man under arrest was no longer a son of his.

As one paper pointed out, it seemed a farce and a waste of money to have any trial at all. The assassin had not only been caught red-handed, but had actually confessed. Why waste time over a trial? True, one paper timidly suggested that it might have been a case of suicide. Robert Underwood's financial affairs, it went on to say, were in a critical condition, and the theory of suicide was borne out to some extent by an interview with Dr. Bernstein, professor of psychology at one of the universities, who stated that he was by no means convinced of the prisoner's guilt, and hinted that the alleged confession might have been forced from him by the police, while in a hypnotic state. This theory, belittling as it did their pet sensation, did not suit the policy of the yellow press, so the learned professor at once became the target for editorial attack.

The sensation grew in importance as the day for the trial approached. All New York was agog with excitement. The handsome Jeffries mansion on

Riverside Drive was besieged by callers. The guides on the sight-seeing coaches shouted through their megaphones:

"That's the house where the murderer of Robert Underwood lived."

The immediate vicinity of the house the day that the crime was made public was thronged with curious people. The blinds of the house were drawn down as if to shield the inmates from observation, but there were several cabs in front of the main entrance and passers by stopped on the sidewalk, pointing at the house. A number of newspaper men stood in a group, gathering fresh material for the next edition. A reporter approached rapidly from Broadway and joined his colleagues.

"Well, boys," he said cheerily. "Anything doing? Say, my paper is going to have a bully story to-morrow! Complete account by Underwood's valet. He tells how he caught the murderer just as he was escaping from the apartment. We'll have pictures and everything. It's fine. Anything doing here?" he demanded.

"Naw," grunted the others in disgruntled tones.

"We saw the butler," said one reporter, "and tried to get a story from him, but he flatly refused to talk. All he would say was that Howard Jeffries was nothing to the family, that his father didn't care a straw what became of him."

"That's pretty tough!" exclaimed another reporter. "He's his son, after all."

"Oh, you don't know old Jeffries," chimed in a third. "When once he makes up his mind you might as well try to move a house."

The afternoon was getting on; if their papers were to print anything more that day they must hasten downtown.

"Let's make one more attempt to get a talk out of the old man," suggested one enterprising scribe.

"All right," cried the others in chorus. "You go ahead. We'll follow in a body and back you up."

Passing through the front gate, they rang the bell, and after a brief parley were admitted to the house. They had hardly disappeared when a cab drove hurriedly up and stopped at the curb. A young woman, heavily veiled, descended, paid the driver, and walked quickly through the gates toward the house.

Annie tried to feel brave, but her heart misgave her when she saw this splendid home with all its evidence of wealth, culture, and refinement. It was the first time she had ever entered its gates, although, in a measure, she was entitled to look upon it as her own home. Perhaps never so much as now she realized what a deep gulf lay between her husband's family and herself. This was a world she had never known—a world of opulence and luxury. She did not know how she had summoned up courage enough to come. Yet there was no time to be lost. Immediate action was necessary. Howard must have the best lawyers that money could procure. Judge Brewster had been deaf to her entreaties. He had declined to take the case. She had no money. Howard's father must come to his assistance. She would plead with him and insist that it was his duty to stand by his son. She wondered how he would receive her, if he would put her out or be rude to her. Perhaps he would not even receive her. He might tell the servants to shut the door in her face. Timidly she rang the bell. The butler opened the door, and summoning up all her courage, she asked:

"Is Mr. Jeffries in?"

To her utter amazement the butler offered no objection to her entering. Mistaking her for a woman reporter, several of whom had already called that morning, he said:

"Go right in the library, madam; the other newspaper folk are there."

She passed through the splendid reception hall, marveling inwardly at the beautiful statuary and pictures, no little intimidated at finding herself amid such splendid surroundings. On the left there was a door draped with handsome tapestry.

"Right in there, miss," said the butler.

She went in, and found herself in a room of noble proportions, the walls of which were lined with bookshelves filled with tomes in rich bindings. The

light that entered through the stained-glass windows cast a subdued half-light, warm and rich in color, on the crimson plush furnishings. Near the heavy flat desk in the centre of the room a tall, distinguished man was standing listening deprecatingly to the half dozen reporters who were bombarding him with questions. As Annie entered the room she caught the words of his reply:

"The young man who has inherited my name has chosen his own path in life. I am grieved to say that his conduct at college, his marriage, has completely separated him from his family, and I have quite made up my mind that in no way or manner can his family become identified with any steps he may take to escape the penalty of his mad act. I am his father, and I suppose, under the circumstances, I ought to say something. But I have decided not to. I don't wish to give the American public any excuse to think that I am palliating or condoning his crime. Gentlemen, I wish you good-day."

Annie, who had been listening intently, at once saw her opportunity. Mr. Jeffries had taken no notice of her presence, believing her to be a newspaper writer like the others. As the reporters took their departure and filed out of the room, she remained behind. As the last one disappeared she turned to the banker and said:

"May I speak to you a moment?"

He turned quickly and looked at her in surprise. For the first time he was conscious of her presence. Bowing courteously, he shook his head:

"I am afraid I can do nothing for you, madam—as I've just explained to your confrères of the press."

Annie looked up at him, and said boldly:

"I am not a reporter, Mr. Jeffries. I am your son's wife."

The banker started back in amazement. This woman, whom he had taken for a newspaper reporter, was an interloper, an impostor, the very last woman in the world whom he would have permitted to be admitted to his house. He considered that she, as much as anybody else, had contributed to his son's ruin. Yet what could he do? She was there, and he was too much of

a gentleman to have her turned out bodily. Wondering at his silence, she repeated softly:

"I'm your son's wife, Mr. Jeffries."

The banker looked at her a moment, as if taking her in from head to foot. Then he said coldly:

"Madam, I have no son." He hesitated, and added:

"I don't recognize——"

She looked at him pleadingly.

"But I want to speak to you, sir."

Mr. Jeffries shook his head, and moved toward the door.

"I repeat, I have nothing to say."

Annie planted herself directly in his path. He could not reach the door unless he removed her forcibly.

"Mr. Jeffries," she said earnestly, "please don't refuse to hear me—please _____"

He halted, looking as if he would like to escape, but there was no way of egress. This determined-looking young woman had him at a disadvantage.

"I do not think," he said icily, "that there is any subject which can be of mutual interest——"

"Oh, yes, there is," she replied eagerly. She was quick to take advantage of this entering wedge into the man's mantle of cold reserve.

"Flesh and blood," she went on earnestly, "is of mutual interest. Your son is yours whether you cast him off or not. You've got to hear me. I am not asking anything for myself. It's for him, your son. He's in trouble. Don't desert him at a moment like this. Whatever he may have done to deserve your anger—don't—don't deal him such a blow. You cannot realize what it means in such a critical situation. Even if you only pretend to be friendly with him—you don't need to really be friends with him. But don't you see

what the effect will be if you, his father, publicly withdraw from his support? Everybody will say he's no good, that he can't be any good or his father wouldn't go back on him. You know what the world is. People will condemn him because you condemn him. They won't even give him a hearing. For God's sake, don't go back on him now!"

Mr. Jeffries turned and walked toward the window, and stood there gazing on the trees on the lawn. She did not see his face, but by the nervous twitching of his hands behind his back, she saw that her words had not been without effect. She waited in silence for him to say something. Presently he turned around, and she saw that his face had changed. The look of haughty pride had gone. She had touched the chords of the father's heart. Gravely he said:

"Of course you realize that you, above all others, are responsible for his present position."

She was about to demur, but she checked herself. What did she care what they thought of her? She was fighting to save her husband, not to make the Jeffries family think better of her. Quickly she answered:

"Well, all right—I'm responsible—but don't punish him because of me."

Mr. Jeffries looked at her.

Who was this young woman who championed so warmly his own son? She was his wife, of course. But wives of a certain kind are quick to desert their husbands when they are in trouble. There must be some good in the girl, after all, he thought. Hesitatingly, he said:

"I could have forgiven him everything, everything but——"

"But me," she said promptly. "I know it. Don't you suppose I feel it too, and don't you suppose it hurts?"

Mr. Jeffries stiffened up. This woman was evidently trying to excite his sympathies. The hard, proud expression came back into his face, as he answered curtly:

"Forgive me for speaking plainly, but my son's marriage with such a woman as you has made it impossible to even consider the question of

reconciliation."

With all her efforts at self-control, Annie would have been more than human had she not resented the insinuation in this cruel speech. For a moment she forgot the importance of preserving amicable relations, and she retorted:

"Such a woman as me? That's pretty plain——. But you'll have to speak even more plainly. What do you mean when you say such a woman as me? What have I done?"

Mr. Jeffries looked out of the window without answering, and she went on:

"I worked in a factory when I was nine years old, and I've earned my living ever since. There's no disgrace in that, is there? There's nothing against me personally—nothing disgraceful, I mean. I know I'm not educated. I'm not a lady in your sense of the word, but I've led a decent life. There isn't a breath of scandal against me—not a breath. But what's the good of talking about me? Never mind me. I'm not asking for anything. What are you going to do for him? He must have the best lawyer that money can procure—none of those bar-room orators. Judge Brewster, your lawyer, is the man. We want Judge Brewster."

Mr. Jeffries shrugged his shoulders.

"I repeat—my son's marriage with the daughter of a man who died in prison ——"

She interrupted him.

"That was hard luck—nothing but hard luck. You're not going to make me responsible for that, are you? Why, I was only eight years old when that happened. Could I have prevented it?" Recklessly she went on: "Well, blame it on me if you want to, but don't hold it up against Howard. He didn't know it when he married me. He never would have known it but for the detectives employed by you to dig up my family history, and the newspapers did the rest. God! what they didn't say! I never realized I was of so much importance. They printed it in scare-head lines. It made a fine sensation for the public, but it destroyed my peace of mind."

"A convict's daughter!" said Mr. Jeffries contemptuously.

"He was a good man at that!" she answered hotly. "He kept the squarest pool room in Manhattan, but he refused to pay police blackmail, and he was railroaded to prison." Indignantly she went on: "If my father's shingle had been up in Wall Street, and he'd made fifty dishonest millions, you'd forget it next morning, and you'd welcome me with open arms. But he was unfortunate. Why, Billy Delmore was the best man in the world. He'd give away the last dollar he had to a friend. I wish to God he was alive now! He'd help to save your son. I wouldn't have to come here to ask you."

Mr. Jeffries shifted uneasily on his feet and looked away.

"You don't seem to understand," he said impatiently. "I've completely cut him off from the family. It's as if he were dead."

She approached nearer and laid her hand gently on the banker's arm.

"Don't say that, Mr. Jeffries. It's wicked to say that about your own son. He's a good boy at heart, and he's been so good to me. Ah, if you only knew how hard he's tried to get work I'm sure you'd change your opinion of him. Lately he's been drinking a little because he was disappointed in not getting anything to do. But he tried so hard. He walked the streets night and day. Once he even took a position as guard on the elevated road. Just think of it, Mr. Jeffries, your son—to such straits were we reduced—but he caught cold and had to give it up. I wanted to go to work and help him out. I always earned my living before I married him, but he wouldn't let me. You don't know what a good heart he's got. He's been weak and foolish, but you know he's only a boy."

She watched his face to see if her words were having any effect, but Mr. Jeffries showed no sign of relenting. Sarcastically, he said:

"And you took advantage of the fact and married him?"

For a moment she made no reply. She felt the reproach was not unmerited, but why should they blame her for seeking happiness? Was she not entitled to it as much as any other woman? She had not married Howard for his social position or his money. In fact, she had been worse off since her marriage than she was before. She married him because she loved him, and

because she thought she could redeem him, and she was ready to go through any amount of suffering to prove her disinterested devotion. Quietly, she said:

"Yes, I know—I did wrong. But I—I love him, Mr. Jeffries. Believe me or not—I love him. It's my only excuse. I thought I could take care of him. He needed some one to look after him, he's too easily influenced. You know his character is not so strong as it might be. He told me that his fellow students at college used to hypnotize him and make him do all kinds of things to amuse the other boys. He says that somehow he's never been the same since. I—I just loved him because I was strong and he was weak. I thought I could protect him. But now this terrible thing has happened, and I find I am powerless. It's too much for me. I can't fight this battle alone. Won't you help me, Mr. Jeffries?" she added pleadingly. "Won't you help me?"

The banker was thoughtful a minute, then suddenly he turned on her.

"Will you consent to a divorce if I agree to help him?"

She looked at him with dismay. There was tragic tenseness in this dramatic situation—a father fighting for his son, a woman fighting for her husband.

"A divorce?" she stammered. "Why, I never thought of such a thing as that."

"It's the only way to save him," said the banker coldly.

"The only way?" she faltered.

"The only way," said Mr. Jeffries firmly. "Do you consent?" he asked.

Annie threw up her head. Her pale face was full of determination, as she replied resignedly, catching her breath as she spoke:

"Yes, if it must be. I will consent to a divorce—to save him!"

"You will leave the country and go abroad to live?" continued the banker coldly.

She listened as in a dream. That she would be confronted by such an alternative as this had never entered her mind. She wondered why the world

was so cruel and heartless. Yet if the sacrifice must be made to save Howard she was ready to make it.

"You will leave America and never return—is that understood?" repeated the banker.

"Yes, sir," she replied falteringly.

Mr. Jeffries paced nervously up and down the room. For the first time he seemed to take an interest in the interview. Patronizingly he said:

"You will receive a yearly allowance through my lawyer."

Annie tossed up her chin defiantly. She would show the aristocrat that she could be as proud as he was.

"Thanks," she exclaimed. "I don't accept charity. I'm used to earning my own living."

"Oh, very well," replied the banker quickly. "That's as you please. But I have your promise—you will not attempt to see him again?"

"What! Not see him once more? To say good-by?" she exclaimed. A broken sob half checked her utterance. "Surely you can't mean that, Mr. Jeffries."

The banker shrugged his shoulders.

"I don't want the newspapers filled with sensational articles about the heartrending farewell interview between Howard Jeffries, Jr., and his wife—with your picture on the front page."

She was not listening to his sarcasm.

"Not even to say good-by?" she sobbed.

"No," replied Mr. Jeffries firmly. "Not even to say good-by."

"But what will he say? What will he think?" she cried.

"He will see it is for the best," answered the banker. "He himself will thank you for your action."

There was a long silence, broken only by the sound of the girl's sobbing. Finally she said:

"Very well, sir. I'll do as you say." She looked up. Her eyes were dry, the lines about her mouth set and determined. "Now," she said, "what are you going to do for him?"

The banker made a gesture of impatience as if such considerations were not important.

"I don't know yet," he said haughtily. "I shall think the matter over carefully."

Annie was fast losing patience. She was willing to sacrifice herself and give up everything she held dear in life to save the man she loved, but the cold, deliberate, calculating attitude of this unnatural father exasperated her.

"But I want to know," she said boldly. "I want to consider the matter carefully, too."

"You?" sneered Mr. Jeffries.

"Yes, sir," she retorted. "I'm paying dearly for it—with my—with all I have. I want to know just what you're going to give him for it."

He was lost in reflection for a moment, then he said pompously:

"I shall furnish the money for the employment of such legal talent as may be necessary. That's as far as I wish to go in the case. It must not be known—I cannot allow it to be known that I am helping him."

"Must not be known?" cried Annie in astonishment. "You mean you won't stand by him? You'll only just pay for the lawyer?"

The banker nodded:

"That is all I can promise."

She laughed hysterically.

"Why," she exclaimed, "I—I could do that myself if I—I tried hard enough."

"I can promise nothing more," replied Mr. Jeffries coldly.

"But that is not enough," she protested. "I want you to come forward and publicly declare your belief in your son's innocence. I want you to put your arms around him and say to the world: 'My boy is innocent! I know it and I'm going to stand by him.' You won't do that?"

Mr. Jeffries shook his head.

"It is impossible."

The wife's pent-up feelings now gave way. The utter indifference of this aristocratic father aroused her indignation to such a pitch that she became reckless of the consequences. They wanted her to desert him, just as they deserted him, but she wouldn't. She would show them the kind of woman she was.

"So!" she cried in an outburst of mingled anger and grief. "So his family must desert him, and his wife must leave him! The poor boy must stand absolutely alone in the world, and face a trial for his life! Is that your idea?"

The banker made no reply. Snapping her fingers, she went on:

"Well, it isn't mine, Mr. Jeffries! I won't consent to a divorce! I won't leave America! And I'll see him just as often as I can, even if I have to sit in the Tombs prison all day. As for his defense, I'll find some one. I'll go to Judge Brewster again, and if he still refuses, I'll go to some one else. There must be some good, big-hearted lawyer in this great city who'll take up his case."

Trembling with emotion she readjusted her veil and with her handkerchief dried her tear-stained face. Going toward the door, she said:

"You needn't trouble yourself any more, Mr. Jeffries. We shan't need your help. Thank you very much for the interview. It was very kind of you to listen so patiently. Good afternoon, sir."

Before the astonished banker could stop her, she had thrown back the tapestry and disappeared through the door.

CHAPTER XIII.

In the very heart of Manhattan, right in the centre of the city's most congested district, an imposing edifice of gray stone, mediæval in its style of architecture, towered high above all the surrounding dingy offices and squalid tenements. Its massive construction, steep walls, pointed turrets, raised parapets and long, narrow, slit-like windows, heavily barred, gave it the aspect of a feudal fortress incongruously set down plumb in the midst of twentieth-century New York. The dull roar of Broadway hummed a couple of blocks away; in the distance loomed the lofty, graceful spans of Brooklyn Bridge, jammed with its opposing streams of busy inter-urban traffic. The adjacent streets were filled with the din of hurrying crowds, the rattle of vehicles, the cries of vendors, the clang of street cars, the ugh! ugh! of speeding automobiles. The active, pulsating life of the metropolis surged like a rising flood about the tall gray walls, yet there was no response within. Grim, silent, sinister, the City Prison, popularly known as "the Tombs," seemed to have nothing in common with the daily activities of the big town in which, notwithstanding, it unhappily played an important part.

The present prison is a vastly different place to the old jail from which it got its melancholy cognomen. To-day there is not the slightest justification for the lugubrious epithet applied to it, but in the old days, when man's inhumanity to man was less a form of speech than a cold, merciless fact, the term "Tombs" described an intolerable and disgraceful condition fairly accurately. Formerly the cells in which the unfortunate prisoners were confined while awaiting trial were situated deep under ground and had neither light nor ventilation. A man might be guiltless of the offense with which he was charged, yet while awaiting an opportunity to prove his innocence he was condemned to spend days, sometimes months, in what was little better than a grave. Literally, he was buried alive. A party of foreigners visiting the prison one day were startled at seeing human beings confined in such holes. "They look like tombs!" cried some one. New York was amused at the singularly appropriate appellation, and it has stuck to the prison ever since.

But times change, and institutions with them. As man becomes more civilized he treats the law-breaker with more humanity. Probably society will always need its prisons, but as we become more enlightened we insist on treating our criminals more from the physiological and psychological standpoints than in the cruel, brutal, barbarous manner of the dark ages. In other words the sociologist insists that the law-breaker has greater need of the physician than he has of the jailer.

To-day the City Prison is a tomb in name only. It is admirably constructed, commodious, well ventilated. The cells are large and well lighted, with comfortable cots and all the modern sanitary arrangements. There are roomy corridors for daily exercise and luxurious shower baths can be obtained free for the asking. There are chapels for the religiously inclined and a library for the studious. The food is wholesome and well prepared in a large, scrupulously clean kitchen situated on the top floor. Carping critics have, indeed, declared the Tombs to be too luxurious, declaring that habitual criminals enjoy a stay at the prison and actually commit crime so that they may enjoy some of its hotel-like comforts.

It was with a sinking heart and a dull, gnawing sense of apprehension that Annie descended from a south-bound Madison Avenue car in Centre Street and approached the small portal under the forbidding gray walls. She had visited a prison once before, when her father died. She remembered the depressing ride in the train to Sing Sing, the formidable steel doors and ponderous bolts, the narrow cells, each with its involuntary occupant in degrading stripes and closely cropped hair, and the uniformed guards armed with rifles. She remembered how her mother wept and how she had wondered why they kept her poor da-da in such an ugly place. To think that after all these years she was again to go through a similar experience.

She had nerved herself for this ordeal. Anxious as she was to see Howard and learn from his lips all that had happened, she feared that she would never be able to see him behind the bars without breaking down. Yet she must be strong so she could work to set him free. So much had happened in the last two days. It seemed a month since the police had sent for her at midnight to hurry down to the Astruria, yet it was only two days ago. The morning following her trying interview with Captain Clinton in the dead man's apartment she had tried to see Howard, but without success. The

police held him a close prisoner, pretending that he might make an attempt upon his life. There was nothing for her to do but wait.

Intuitively she realized the necessity of immediately securing the services of an able lawyer. There was no doubt of Howard's innocence, but she recalled with a shiver that even innocent persons have suffered capital punishment because they were unable to establish their innocence, so overwhelming were the appearances against them. He must have the best lawyer to be had, regardless of expense. Only one name occurred to her, the name of a man of international reputation, the mere mention of whose name in a courtroom filled the hearts of the innocent with hope and the guilty with dread. That man was Judge Brewster. She hurried downtown to his office and waited an hour before he could see her. Then he told her politely, but coldly, that he must decline to take her case. He knew well who she was, and he eyed her with some curiosity, but his manner was frigid and discouraging. There were plenty of lawyers in New York, he said. She must go elsewhere. Politely he bowed her out. Half of a precious day was already lost. Judge Brewster refused the case. To whom could she turn now? In despair, almost desperate, she drove up-town to Riverside Drive and forced an entrance into the Jeffries home. Here, again, she was met with a rebuff. Still not discouraged, she returned to Judge Brewster's office. He was out and she sat there an hour waiting to see him. Night came and he did not return. Almost prostrated with nervous exhaustion, she returned to their deserted little flat in Harlem.

It was going to be a hard fight, she saw that. But she would keep right on, no matter at what cost. Howard could not be left alone to perish without a hand to save him. Judge Brewster must come to his rescue. He could not refuse. She would return again to his office this afternoon and sit there all day long, if necessary, until he promised to take the case. He alone could save him. She would go to the lawyer and beg him on her knees if necessary, but first she must see Howard and bid him take courage.

A low doorway from Centre Street gave access to the gray fortress. At the heavy steel gate stood a portly policeman armed with a big key. Each time before letting people in or out he inserted this key in the ponderous lock. The gate would not open merely by turning the handle. This was to prevent the escape of prisoners, who might possibly succeed in reaching so far as

the door, but could not open the steel gate without the big key. When once any one entered the prison he was not permitted to go out again except on a signal from a keeper.

When Annie entered, she found the reception room filled with visitors, men and women of all ages and nationalities who, like herself, had come to see some relative or friend in trouble. It was a motley and interesting crowd. There were fruit peddlers, sweat-shop workers, sporty-looking men, negroes and flashy-looking women. All seemed callous and indifferent as if quite at home amid the sinister surroundings of a prison. One or two others appeared to belong to a more respectable class, their sober manner and care-worn faces reflecting silently the humiliation and shame they felt at their kinsman's disgrace.

The small barred windows did not permit of much ventilation and, as the day was warm, the odor was sickening. Annie looked around fearfully, and humbly took her place at the end of the long line which slowly worked its way to the narrow inner grating where credentials were closely scrutinized. The horror of the place seized upon her. She wondered who all these poor people were and what the prisoners whom they came to see had done to offend the majesty of the law. The prison was filled with policemen and keepers, and running in and out with messages and packages were a number of men in neat linen suits. She asked a woman who they were.

"Them's trusties—prisoners that has special privileges in return for work they does about the prison."

The credentials were passed upon slowly and Annie, being the twentieth in line, found it a tedious wait. In front of her was a bestial-looking negro, behind her a woman whose cheap jewelry, rouged face and extravagant dress proclaimed her profession to be the most ancient in the world. But at last the gate was reached. As the doorkeeper examined her ticket he looked up at her with curiosity. A murderer is rare enough even in the Tombs to excite interest, and as she passed on the attendants whispered among themselves. She knew they were talking about her, but she steeled herself not to care. It was only a foretaste of other humiliations which she must expect.

A keeper now took charge of her and led her to a room where she was searched by a matron for concealed weapons, a humiliating ordeal to which even the richest and most influential visitors must submit with as good grace as possible. The matron was a hard-looking woman of about fifty years of age, in whom every spark of human pity and sympathy had been killed during her many years of constant association with criminals. The word "prison" had lost its meaning to her. She saw nothing undesirable in jail life, but looked upon the Tombs rather as a kind of boarding house in which people made short or long sojourns, according to their luck. She treated Annie unceremoniously, yet not unkindly.

"So you're the wife of Jeffries, whom they've got for murder, eh?" she said, as she rapidly ran her hands through the visitor's clothing.

"Yes," faltered Annie, "but it's all a mistake, I assure you. My husband's perfectly innocent. He wouldn't hurt a fly."

The woman grinned.

"They all say that, m'm." Lugubriously she added: "I hope you'll be more lucky than some others were."

Annie felt herself grow cold. Was this a sinister prophecy? She shuddered and, hastily taking a dollar from her purse, slipped it into the matron's hand.

"May I go now?" she said.

"Yes, my dear; I guess you've got nothing dangerous on you. We have to be very careful. I remember once when we had that Hoboken murderer here. He's the feller that cut his wife's head off and stuffed the body in a barrel. His mother came here to see him one day and what did I find inside her stocking but an innocent-looking little round pill, and if you please, it was nothing less than prussic acid. He would have swallowed it and the electric chair would have been cheated. So you see how careful we has to be."

Annie could not listen to any more. The horror of having Howard classed with fiends of that description sickened her. To the keeper she said quickly:

"Please take me to my husband."

Taking another dollar from her purse, she slipped the bill into the man's hand, feeling that, here as everywhere else, one must pay for privileges and courtesies. Her guide led the way and ushered her into an elevator, which, at a signal, started slowly upwards.

The cells in the Tombs are arranged in rows in the form of an ellipse in the centre of each of the six floors. There is room to accommodate nine hundred prisoners of both sexes. The men are confined in the new prison; the women, fewer in number, in what remains of the old building. Only the centre of each floor being taken up with the rows of narrow cells, there remains a broad corridor, running all the way round and flanked on the right by high walls with small barred windows. An observer from the street glancing up at the windows might conclude that they were those of the cells in which prisoners were confined. As a matter of fact, the cells have no windows, only a grating which looks directly out into the circular corridor.

At the fourth floor the elevator stopped and the heavy iron door swung back.

"This way," said the keeper, stepping out and quickly walking along the corridor. "He's in cell No. 456."

A lump rose in Annie's throat. The place was well ventilated, yet she thought she would faint from a choking feeling of restraint. All along the corridor to the left were iron doors painted yellow. In the upper part of the door were half a dozen broad slits through which one could see what was going on inside.

"Those are the cells," volunteered her guide.

Annie shuddered as, mentally, she pictured Howard locked up in such a dreadful place. She peered through one of the slits and saw a narrow cell about ten feet long by six wide. The only furnishings were a folding cot with blanket, a wash bowl and lavatory. Each cell had its occupant, men and youths of all ages. Some were reading, some playing cards. Some were lying asleep on their cots, perhaps dreaming of home, but most of them leaning dejectedly against the iron bars wondering when they would regain their liberty.

"Where are the women?" asked Annie, trying to keep down the lump that rose chokingly in her throat.

"They're in a separate part of the prison," replied the keeper.

"Isn't it dreadful?" she murmured.

"Not at all," he exclaimed cheerfully. "These prisoners fare better in prison than they do outside. I wager some of them are sorry to leave."

"But it's dreadful to be cooped up in those little cells, isn't it?" she said.

"Not so bad as it looks," he laughed. "They are allowed to come out in the corridor to exercise twice a day for an hour and there is a splendid shower bath they can take."

"Where is my husband's cell?" she whispered, almost dreading to hear the reply.

"There it is," he said, pointing to a door. "No. 456."

Walking rapidly ahead of her and stopping at one of the cell doors, he rapped loudly on the iron grating and cried:

"Jeffries, here's a lady come to see you. Wake up there!"

A white, drawn face approached the grating. Annie sprang forward.

"Howard!" she sobbed.

"Is it you, Annie?" came a weak voice through the bars.

"Can't I go in to him?" she asked pleadingly.

The keeper shook his head.

"No, m'm, you must talk through the bars, but I won't disturb you."

He walked away and the husband and wife were left facing each other. The tears were streaming down Annie's cheeks. It was dreadful to be standing there so close and yet not be able to throw her arms around him. Her heart ached as she saw the distress in his wan, pale face.

"Why didn't you come before?" he asked.

"I could not. They wouldn't let me. Oh, Howard," she gasped. "What a dreadful thing this is! Tell me how you got into such a scrape!"

He put his hand to his head as if it hurt him, and she noticed that his eyes looked queer. For a moment the agony of a terrible suspicion crossed her mind. Was it possible that in a moment of drunken recklessness he had shot Underwood? Quickly, almost breathlessly, she whispered to him:

"Tell me quickly, 'tis not true, is it? You did not kill Robert Underwood."

He shook his head.

"No," he said.

"Thank God for that!" she exclaimed. "But your confession—what does that mean?"

"I do not know. They told me I did it. They insisted I did it. He was sure I did it. He told me he knew I did it. He showed me the pistol. He was so insistent that I thought he was right—that I had done it." In a deep whisper he added earnestly, "But you know I didn't, don't you?"

"Who is *he*?" demanded Annie.

"The police captain."

"Oh, Captain Clinton told you you did it?"

Howard nodded.

"Yes, he told me he *knew* I did it. He kept me standing there six hours, questioning and questioning until I was ready to drop. I tried to sit down; he made me stand up. I did not know what I was saying or doing. He told me I killed Robert Underwood. He showed me the pistol under the strong light. The reflection from the polished nickel flashed into my eyes, everything suddenly became a blank. A few moments later the coroner came in and Captain Clinton told him I confessed. But it isn't true, Annie. You know I am as innocent of that murder as you are."

"Thank God, thank God!" exclaimed Annie. "I see it all now."

Her tears were dried. Her brain was beginning to work rapidly. She already saw a possible line of defense.

"I don't know how it all happened," went on Howard. "I don't know any more about it than you do. I left you to go to Underwood's apartment. On the way I foolishly took a drink. When I got there I took more whiskey. Before I knew it I was drunk. While talking I fell asleep. Suddenly I heard a woman's voice."

"Ah!" interrupted Annie. "You, too, heard a woman's voice. Captain Clinton said there was a woman in it." Thoughtfully, as if to herself, she added: "We must find that woman."

"When I woke up," continued Howard, "it was dark. Groping around for the electric light, I stumbled over something. It was Underwood's dead body. How he came by his death I have not the slightest idea. I at once realized the dangerous position I was in and I tried to leave the apartment unobserved. Just as I was going, Underwood's man-servant arrived and he handed me over to the police. That's the whole story. I've been here since yesterday and I'll be devilish glad to get out."

"You will get out," she cried. "I'm doing everything possible to get you free. I've been trying to get the best lawyer in the country—Richard Brewster."

"Richard Brewster!" exclaimed Howard. "He's my father's lawyer."

"I saw your father yesterday afternoon," she said quietly.

"You did!" he exclaimed, surprised. "Was he willing to receive you?"

"He had to," she replied. "I gave him a piece of my mind."

Howard looked at her in mingled amazement and admiration. That she should have dared to confront a man as proud and obstinate as his father astounded him.

"What did he say?" he asked eagerly.

"I asked him to come publicly to your support and to give you legal assistance. He refused, saying he could not be placed in a position of

condoning such a crime and that your behavior and your marriage had made him wash his hands of you forever."

Tears filled Howard's eyes and his mouth quivered.

"Then my father believes me guilty of this horrible crime?" he exclaimed.

"He insisted that you must be guilty as you had confessed. He offered, though, to give you legal assistance, but only on one condition."

"What was that condition?" he demanded.

"That I consent to a divorce," replied Annie quietly.

"What did you say?"

"I said I'd consent to anything if it would help you, but when he told me that even then he would not come personally to your support I told him we would worry along without his assistance. On that I left him."

"You're a brave little woman!" cried Howard. Noticing her pale, anxious face, he said:

"You, too, must have suffered."

"Oh, never mind me," she rejoined quickly. "What we must do now is to get you out of this horrid place and clear your name before the world. We must show that your alleged confession is untrue; that it was dragged from you involuntarily. We must find that mysterious woman who came to Underwood's rooms while you lay on the couch asleep. Do you know what my theory is, Howard?"

"What?" demanded her husband.

"I believe you were hypnotized into making that confession. I've read of such things before. You know the boys in college often hypnotized you. You told me they made you do all kinds of things against your will. That big brute, Captain Clinton, simply forced his will on yours."

"By Jove—I never thought of that!" he exclaimed. "I know my head ached terribly after he got through all that questioning. When he made me look at

that pistol I couldn't resist any more. But how are we going to break through the net which the police have thrown around me?"

"By getting the best lawyer we can procure. I shall insist on Judge Brewster taking the case. He declines, but I shall go to his office again this afternoon. He must——"

Howard shook his head.

"You'll not be able to get Brewster. He would never dare offend my father by taking up my case without his permission. He won't even see you."

"We'll see," she said quietly. "He'll see me if I have to sit in his office all day for weeks. I have decided to have Judge Brewster defend you because I believe it would mean acquittal. He will build up a defense that will defeat all the lies that the police have concocted. The police have a strong case because of your alleged confession. It will take a strong lawyer to fight them." Earnestly she added: "Howard, if your life is to be saved we must get Judge Brewster."

"All right, dear," he replied. "I can only leave it in your hands. I know that whatever you do will be for the best. I'll try to be as patient as I can. My only comfort is thinking of you, dear."

A heavy step resounded in the corridor. The keeper came up.

"Time's up, m'm," he said civilly.

Annie thrust her hand through the bars; Howard carried it reverently to his lips.

"Good-by, dear," she said. "Keep up your courage. You'll know that I am working for your release every moment. I won't leave a stone unturned."

"Good-by, darling," he murmured.

He looked at her longingly and there were tears in her eyes as she turned away.

"I'll be back very soon," she said.

A few minutes later they were in the elevator and she passed through the big steel gate once more into the sunlit street.

CHAPTER XIV.

Outwardly, at least, Judge Brewster's offices at 83 Broadway in no way differed from the offices of ten thousand other lawyers who strive to eke out a difficult living in the most overcrowded of all the professions. They consisted of a modest suite of rooms on the sixth floor. There was a small outer office with a railed-off inclosure, behind which sat a half dozen stenographers busy copying legal documents; as many men clerks were writing at desks, and the walls were fitted with shelves filled with ponderous law books. In one corner was a room with glass door marked "Mr. Brewster, Private."

Assuredly no casual visitor could guess from the appearance of the place that this was the headquarters of one of the most brilliant legal minds in the country, yet in this very office had been prepared some of the most sensational victories ever recorded in the law courts.

Visitors to Judge Brewster's office were not many. A man of such renown was naturally expensive. Few could afford to retain his services and in fact he was seldom called upon except to act in the interest of wealthy corporations. In these cases, of course, his fees were enormous. He had very few private clients; in fact, he declined much private practice that was offered to him. He had been the legal adviser of Howard Jeffries, Sr., for many years. The two men had known each other in their younger days and practically had won success together—the one in the banking business, the other in the service of the law. An important trust company, of which Mr. Jeffries was president, was constantly involved in all kinds of litigation of which Judge Brewster had exclusive charge. As the lawyer found this highly remunerative, it was only natural that he had no desire to lose Mr. Jeffries as a client.

Secluded in his private office, the judge was busy at his desk, finishing a letter. He folded it up, addressed an envelope, then lit a cigar and looked at the time. It was three o'clock. The day's work was about over and he smiled with satisfaction as he thought of the automobile ride in the park he would

enjoy before dressing and going to his club for dinner. He felt in singularly good spirits that afternoon. He had just won in the court a very complicated case which meant not only a handsome addition to his bank account, but a signal triumph over his legal opponents. Certainly, fortune smiled on him. He had no other immediate cases on hand to worry about. He could look forward to a few weeks of absolute rest. He struck a bell on his desk and a clerk entered. Handing him the note he had just written, he said:

"Have this sent at once by messenger."

"Very well, judge," answered the clerk.

"By the bye," frowned the lawyer, "has that woman been in to-day?"

"Yes—she sat in the outer office all morning, trying to see you. We said you were out of town, but she did not believe it. She sat there till she got tired. She had no idea that you went out by another stairway."

"Humph," growled the lawyer; "a nice thing to be besieged in this manner. If she annoys me much longer, I shall send for the police."

At that moment another clerk entered the room.

"What is it, Mr. Jones?" demanded the lawyer.

"A lady to see you, judge," said the clerk, handing him a card.

The lawyer glanced at the bit of pasteboard, and said immediately:

"Oh, yes, show her in."

The two clerks left the room and Judge Brewster, after a glance in the mirror to re-adjust his cravat, turned to greet his visitor. The door opened and Alicia entered. She was faultlessly gowned, as usual, but her manner was flurried and agitated. Evidently something had happened to upset her, and she had come to make her husband's lawyer the confidant of her troubles. The judge advanced gallantly and pointed to a chair.

"Good morning, my dear Mrs. Jeffries, how do you do?"

"Is Mr. Jeffries here?" asked Alicia hurriedly.

"Not yet," he replied, smiling. "This is an unexpected pleasure. I think it is the first time you have graced my office with your presence."

"How quiet it is here!" she exclaimed, looking around nervously. "It is hard to believe this is the very centre of the city." Taking the seat offered to her, she went on:

"Oh, judge, we are dreadfully worried."

"You mean about the Underwood case?"

Alicia nodded.

"Yes, Mr. Jeffries is terribly upset. As if the coming trial and all the rest of the scandal were not enough. But now we have to face something even worse, something that affects me even more than my husband. Really, I'm frantic about it."

"What's happened now?" asked the lawyer calmly.

"That woman is going on the stage, that's all!" she snapped.

"H'm," said the lawyer calmly.

"Just think!" she cried, "the name, 'Mrs. Howard Jeffries'—my name—paraded before the public! At a time when everything should be done to keep it out of the papers this woman is going to flaunt herself on the stage!"

She fanned herself indignantly, while the lawyer rapped his desk absent-mindedly with a paper cutter. Alicia went on:

"You know I have never met the woman. What is she like? I understand she's been bothering you to take the case of that worthless husband of hers. Do you know she had the impertinence to come to our house and ask Mr. Jeffries to help them? I asked my husband to describe her, but all I could get from him was that she was impertinent and impossible." She hesitated a moment, then she added: "Is she as pretty as her pictures in the paper? You've seen her, of course?"

Judge Brewster frowned.

"Yes," he replied. "She comes here every day regularly. She literally compels me to see her and refuses to go till I've told her I haven't changed my decision about taking her case."

"What insolence!" exclaimed Alicia. "I should think that you would have her put out of the office."

The lawyer was silent and toyed somewhat nervously with the paper cutter, as if not quite decided as to what response to make. He coughed and fussed with the papers on the desk.

"Why don't you have her put out of the office?" she repeated.

The judge looked up. There was an expression in his face that might have been interpreted as one of annoyance, as if he rather resented this intrusion into his business affairs, but Mrs. Jeffries, Sr., was too important a client to quarrel with, so he merely said:

"Frankly, Mrs. Jeffries, if it were not for the fact that Mr. Jeffries has exacted from me a promise not to take up this case, I should be tempted to—consider the matter. In the first place, you know I always liked Howard. I saw a good deal of him before your marriage to Mr. Jeffries. He was always a wild, unmanageable boy, weak in character, but he had many lovable traits. I am very sorry indeed, to see him in such a terrible position. It was hard for me to realize it and I should never have believed him guilty had he not confessed to the crime."

"Yes," she assented. "It is an awful thing and a terrible blow to his father. Of course, he has had nothing to do with Howard for months. As you know, he turned him out of doors long ago, but the disgrace is none the less overwhelming."

The lawyer looked out of the window and drummed his fingers on the arm of his chair. Suddenly wheeling round, and facing his client, he said:

"You know this girl he married is no ordinary woman."

"Oh!" she exclaimed sarcastically. "She has succeeded in arousing your sympathy."

The judge bowed coldly.

"No," he replied. "I would hardly say that. But she has aroused my curiosity. She is a very peculiar girl, evidently a creature of impulse and determination. I certainly feel sorry for her. Her position is a very painful one. She has been married only a few months, and now her husband has to face the most awful accusation that can be brought against a man. She is plucky in spite of it all, and is moving heaven and earth in Howard's defense. She believes herself to be in some measure responsible for his misfortune. Apart from that, the case interests me from a purely professional point of view. There are several strange features connected with the case. Sometimes, in spite of Howard's confession, I don't believe he committed that crime."

Alicia changed color and, shifting uneasily on her chair, scrutinized the lawyer's face. What was behind that calm, inscrutable mask? What theory had he formed? One newspaper had suggested suicide. She might herself come forward and declare that Robert Underwood had threatened to take his own life, but how could she face the scandal which such a course would involve? She would have to admit visiting Underwood's rooms at midnight alone. That surely would ruin her in the eyes not only of her husband, but of the whole world. If this sacrifice of her good name were necessary to save an innocent man's life, perhaps she might summon up enough courage to make it. But, after all, she was by no means sure herself that Underwood had committed suicide. Howard had confessed, so why should she jeopardize her good name uselessly?

"No," repeated the judge, shaking his head, "there's something strange in the whole affair. I don't believe Howard had any hand in it."

"But he confessed!" exclaimed Alicia.

The judge shook his head.

"That's nothing," he said. "There have been many instances of untrue confessions. A famous affair of the kind was the Boorn case in Vermont. Two brothers confessed having killed their brother-in-law and described how they destroyed the body, yet some time afterward the murdered man turned up alive and well. The object of the confession, of course, was to turn the verdict from murder to manslaughter, the circumstantial evidence against them having been so strong. In the days of witchcraft the

unfortunate women accused of being witches were often urged by relatives to confess as being the only way of escape open to them. Ann Foster, at Salem, in 1692, confessed that she was a witch. She said the devil appeared to her in the shape of a bird, and that she attended a meeting of witches at Salem village. She was not insane, but the horror of the accusation brought against her had been too much for a weak mind. Howard's confession may possibly be due to some such influence."

"I hope for his poor father's sake," said Alicia, "that you may be right and that he may be proved innocent, but everything is overwhelmingly against him. I think you are the only one in New York to express such a doubt."

"Don't forget his wife," remarked the judge dryly.

"No," she replied. "I really feel sorry for the girl myself. Will you give her some money if I——"

The lawyer shook his head.

"She won't take it. I tried it. She wants me to defend her husband—I tried to bribe her to go to some other lawyer, but it wouldn't work."

"Well, something ought to be done to stop her annoying us!" exclaimed Alicia indignantly. "Mr. Jeffries suffers terribly. I can hear him pacing up and down the library till three or four in the morning. Poor man, he suffers so keenly and he won't let any one sympathize with him. He won't let me mention his son's name. I feel we ought to do something. Try and persuade him to let me see this girl and—you are his friend as well as his legal adviser."

Judge Brewster bowed.

"Your husband is a very old friend, Mrs. Jeffries. I can't disregard his wishes entirely——"

There was a knock at the door of the private office.

"Come in," called the judge.

The door opened and the head clerk entered, ushering in Howard Jeffries, Sr. The banker, still aristocratic and dignified, but looking tired and care-

worn, advanced into the room and shook hands with the judge, who greeted him with a cordial smile. There was no response on the banker's face. Querulously he demanded:

"Brewster, what's that woman doing out there again? It's not the first time I've met her in this office."

Alicia looked up eagerly. "Is she out there now?" she cried.

"What right has she to come here? What's her object?" went on the banker irritably.

The lawyer shrugged his shoulders.

"The same old thing," he replied. "She wants me to take her case."

The banker frowned.

"Didn't you tell her it was impossible?"

"That makes no difference," laughed the judge. "She comes just the same. I've sent her away a dozen times. What am I to do if she insists on coming? We can't have her arrested. She doesn't break the furniture or beat the office boy. She simply sits and waits."

"Have you told her that I object to her coming here?" demanded the banker haughtily.

"I have," replied the judge calmly, "but she has overruled your objection." With a covert smile he added, "You know we can't use force."

Mr. Jeffries shrugged his shoulders impatiently.

"You can certainly use moral force," he said.

"What do you mean by moral force?" demanded the lawyer.

Mr. Jeffries threw up his hands as if utterly disgusted with the whole business. Almost angrily he answered:

"Moral force is moral force. I mean persuasion, of course. Good God, why can't people understand these things as I do?"

The judge said nothing, but turned to examine some papers on his desk. He hardly liked the inference that he could not see things as plainly as other people, but what was the use of getting irritated? He couldn't afford to quarrel with one of his best clients.

Alicia looked at her husband anxiously. Laying her hand on his arm, she said soothingly:

"Perhaps if I were to see her——"

Mr. Jeffries turned angrily.

"How can you think of such a thing? I can't permit my wife to come in contact with a woman of that character."

Judge Brewster, who was listening in spite of the fact that he was seemingly engrossed in his papers, pursed his lips.

"Oh, come," he said with a forced laugh, "she's not as bad as all that!"

"I'm sure she isn't," said Alicia emphatically. "She must be amenable to reason."

The banker's wife was not altogether bad. Excessive vanity and ambition had steeled her heart and stifled impulses that were naturally good, but otherwise she was not wholly devoid of feeling. She was really sorry for this poor little woman who was fighting so bravely to save her husband. No doubt she had inveigled Howard into marrying her, but she—Alicia—had no right to sit in judgment on her for that. If the girl had been ambitious to marry above her, in what way was she more guilty than she herself had been in marrying a man she did not love, simply for his wealth and social position? Besides, Alicia was herself sorely troubled. Her conscience told her that a word from her might set the whole matter right. She might be able to prove that Underwood committed suicide. She knew she was a coward and worse than a coward because she dare not speak that word. The more she saw her husband's anger the less courage she had to do it. In any case, she argued to herself, Howard had confessed. If he shot Underwood there was no suicide, so why should she incriminate herself needlessly? But there was no reason why she should not show some sympathy for the poor girl

who, after all, was only doing what any good wife should do. Aloud she repeated:

"I'll see the girl and talk to her. She must listen to reason."

"Reason!" exploded the banker angrily. "How can you expect reason from a woman who hounds us, dogs our footsteps, tries to compel us to—take her up?"

Judge Brewster, who had apparently paid no attention to the banker's remarks, now turned around. Hesitatingly he said:

"I think you do her an injustice, Jeffries. She comes every day in the hope that your feelings toward your son have changed. She wishes to give color to the belief that his father's lawyers are championing his cause. She was honest enough to tell me so. You know her movements are closely watched by the newspapers and she takes good care to let the reporters think that she comes here to discuss with me the details of her husband's defense."

The banker shifted impatiently on his chair. Contemptuously he said:

"The newspapers which I read don't give her the slightest attention. If they did I should refuse to read them." With growing irritation he went on:

"It's no use talking about her any more. What are we going to do about this latest scandal? This woman is going on the stage to be exhibited all over the country and she proposes to use the family name."

"There is nothing to prevent her," said the lawyer dryly.

The banker jumped to his feet and exclaimed angrily:

"There must be! Good God, Brewster, surely you can obtain an injunction restraining her from using the family name! You must do something. What do you advise?"

"I advise patience," replied the judge calmly.

But Mr. Jeffries had no patience. He was a man who was not accustomed to have his wishes thwarted. He did not understand why there should be the slightest difficulty in carrying out his instructions.

"Any one can advise patience!" he exclaimed hotly, "but that's not doing anything." Banging the desk angrily with his fist, he shouted: "I want something done!"

Judge Brewster looked up at his client with surprise. The judge never lost his temper. Even in the most acrimonious wrangles in the courtroom he was always the suave, polished gentleman. There was a shade of reproach in his tone as he replied:

"Come, come, don't lose your temper! I'll do what I can, but there is nothing to be done in the way you suggest. The most I can do is to remain loyal to you, although—to be quite candid—I confess it goes against the grain to keep my hands off this case. As I told your wife, there are certain features about it which interest me keenly. I feel that you are wrong to——"

"No, Brewster!" interrupted Mr. Jeffries explosively. "I'm right! I'm right! You know it, but you won't admit it."

The lawyer shrugged his shoulders and turned to his desk again. Laconically, he said:

"Well, I won't argue the matter with you. You refuse to be advised by me and——"

The banker looked up impatiently.

"What is your advice?"

The lawyer, without looking up from his papers, said quietly:

"You know what my feelings in the matter are."

"And you know what mine are!" exclaimed the banker hotly. "I refuse to be engulfed in this wave of hysterical sympathy with criminals. I will not be stamped with the same hall mark as the man who takes the life of his fellow being—though the man be my own son. I will not set the seal of approval on crime by defending it."

The lawyer bowed and said calmly:

"Then, sir, you must expect exactly what is happening. This girl, whatever she may be, is devoted to your son. She is his wife. She'll go to any extreme to help him—even to selling her name for money to pay for his defense."

The banker threw up his hands with impatience.

"It's a matter of principle with me. Her devotion is not the question." With a mocking laugh he went on: "Sentimentality doesn't appeal to me. The whole thing is distasteful and hideous to me. My instructions to you are to prevent her using the family name on the stage, to buy her off on her own terms, to get rid of her at any price."

"Except the price she asks," interposed the lawyer dryly. Shaking his head, he went on:

"You'll find that a wife's devotion is a very strong motive power, Jeffries. It will move irresistibly forward in spite of all the barriers you and I can erect to stay its progress. That may sound like a platitude, but it's a fact nevertheless."

Alicia, who had been listening with varied emotions to the conversation, now interrupted timidly:

"Perhaps Judge Brewster is right, dear. After all, the girl is working to save your son. Public opinion may think it unnatural——"

The banker turned on his wife. Sternly he said:

"Alicia, I cannot permit you to interfere. That young man is a self-confessed murderer and therefore no son of mine. I've done with him long ago. I cannot be moved by maudlin sentimentality. Please let that be final." Turning to the lawyer, he said coldly:

"So, in the matter of this stage business, you can take no steps to restrain her?"

The lawyer shook his head.

"No, there is nothing I can do." Quickly he added: "Of course, you don't doubt my loyalty to you?"

Mr. Jeffries shook his head.

"No, no, Brewster."

The lawyer laughed as he said:

"Right or wrong, you know—'my country'—that is, my client—"tis of thee." Turning to Alicia, he added laughingly: "That's the painful part of a lawyer's profession, Mrs. Jeffries. The client's weakness is the lawyer's strength. When men hate each other and rob each other we lawyers don't pacify them. We dare not, because that is our profession. We encourage them. We pit them against each other for profit. If we didn't they'd go to some lawyer who would."

Alicia gave a feeble smile.

"Yes," she replied; "I'm afraid we all love to be advised to do what we want to do."

Mr. Jeffries made an impatient gesture of dissent. Scoffingly he remarked:

"That may apply to the great generality of people, but not to me."

Judge Brewster looked skeptical, but made no further comment. The banker rose and Alicia followed suit. As he moved toward the door, he turned and said:

"Drop in and see me this evening, Brewster. Mrs. Jeffries will be delighted if you will dine with us."

Alicia smiled graciously. "Do come, judge; we shall be all alone."

The lawyer bent low over her hand as he said good-by. Mr. Jeffries had already reached the door, when he turned again and said:

"Are you sure a very liberal offer wouldn't induce her to drop the name?"

The lawyer shook his head doubtfully.

"Well, see what you can do," cried the banker. To his wife he said: "Are you coming, Alicia?"

"Just a moment, dear," she replied. "I want to say a word to the judge."

"All right," replied the banker. "I'll be outside." He opened the door, and as he did so he turned to the lawyer:

"If there are any new developments let me know at once."

He left the office and Alicia breathed a sigh of relief. She did not love her husband, but she feared him. He was not only twenty years her senior, but his cold, aristocratic manner intimidated her. Her first impulse had been to tell him everything, but she dare not. His manner discouraged her. He would begin to ask questions, questions which she could not answer without seriously incriminating herself. But her conscience would not allow her to stand entirely aloof from the tragedy in which her husband's scapegrace son was involved. She felt a strange, unaccountable desire to meet this girl Howard had married. In a quick undertone to the lawyer, she said:

"I must see that woman, judge. I think I can persuade her to change her course of action. In any case I must see her, I must——" Looking at him questioningly, she said: "You don't think it inadvisable, do you?"

The judge smiled grimly.

"I think I'd better see her first," he said. "Suppose you come back a little later. It's more than probable that she'll be here this afternoon. I'll see her and arrange for an interview."

There was a knock at the door, and Alicia started guiltily, thinking her husband might have overheard their conversation. The head clerk entered and whispered something to the judge, after which he retired. The lawyer turned to Alicia with a smile.

"It's just as I thought," he said pleasantly, "she's out there now. You'd better go and leave her to me."

The door opened again unceremoniously, and Mr. Jeffries put in his head:

"Aren't you coming, Alicia?" he demanded impatiently. In a lower voice to the lawyer, he added: "Say, Brewster, that woman is outside in your office. Now is your opportunity to come to some arrangement with her."

Again Mrs. Jeffries held out her hand.

"Good-by, judge; you're so kind! It needs a lot of patience to be a lawyer, doesn't it?"

Judge Brewster laughed, and added in an undertone:

"Come back by and by."

The door closed, and the lawyer went back to his desk. For a few moments he sat still plunged in deep thought. Suddenly, he touched a bell. The head clerk entered.

"Show Mrs. Howard Jeffries, Jr., in."

The clerk looked surprised. Strict orders hitherto had been to show the unwelcome visitor out. He believed that he had not heard aright.

"Did you say Mrs. Jeffries, Jr., judge?"

"I said Mrs. Jeffries, Jr.," replied the lawyer grimly.

"Very well, judge," said the clerk, as he left the room.

Presently there was a timid knock at the door.

"Come in!" called out the lawyer.

CHAPTER XV.

Annie entered the presence of the famous lawyer pale and ill at ease. This sudden summons to Judge Brewster's private office was so unexpected that it came like a shock. For days she had haunted the premises, sitting in the outer office for hours at a time exposed to the stare and covert smiles of thoughtless clerks and office boys. Her requests for an interview had been met with curt refusals. They either said the judge was out of town or else that he was too busy to be seen. At last, evidently acting upon orders, they flatly refused to even send in her name, and she had about abandoned hope when, all at once, a clerk approached her, and addressing her more politely than usual, said that the judge would see her in a few minutes.

Her heart gave a great throb. Almost speechless from surprise, she stammered a faint thanks and braced herself for the interview on which so much depended. For the first time since the terrible affair had happened, there was a faint glimmer of hope ahead. If only she could rush over to the Tombs and tell Howard the joyful news so he might keep up his courage! It was eight days now since Howard's arrest, and the trial would take place in six weeks. There was still time to prepare a strong defense if the judge would only consent to take the case. She was more sure than ever that a clever lawyer would have no difficulty in convincing a jury that Howard's alleged "confession" was untrue and improperly obtained.

In the intervals of waiting to see the lawyer, she had consulted every one she knew, and among others she had talked with Dr. Bernstein, the noted psychologist, whom she had seen once at Yale. He received her kindly and listened attentively to her story. When she had finished he had evinced the greatest interest. He told her that he happened to be the physician called in on the night of the tragedy, and at that time he had grave doubts as to it being a case of murder. He believed it was suicide, and he had told Captain Clinton so, but the police captain had made up his mind, and that was the end of it. Howard's "confession," he went on, really meant nothing. If called to the stand he could show the jury that a hypnotic subject can be made to

"confess" to anything. In the interest of truth, justice, and science, he said, he would gladly come to her aid.

All this she would tell Judge Brewster. It would be of great help to him, no doubt. Suddenly, a cold shiver ran through her. How did she know he would take the case? Perhaps this summons to his office was only to tell her once more that he would have nothing to do with her and her husband. She wondered why he had decided so suddenly to see her and, like a flash, an idea came to her. She had seen Mr. Jeffries, Sr., enter the inner sanctum and, instinctively, she felt that she had something to do with his visit. The banker had come out accompanied by a richly dressed woman whom she guessed to be his wife.

She looked with much interest at Howard's stepmother. She had heard so much about her that it seemed to her that she knew her personally. As Alicia swept proudly by, the eyes of the two women met, and Annie was surprised to see in the banker's wife's face, instead of the cold, haughty stare she expected, a wistful, longing look, as if she would like to stop and talk with her, but dare not. In another instant she was gone, and, obeying a clerk, who beckoned her to follow him, she entered Judge Brewster's office.

The lawyer looked up as she came in, but did not move from his seat. Gruffly he said:

"How long do you intend to keep up this system of—warfare? How long are you going to continue forcing your way into this office?"

"I didn't force my way in," she said quietly. "I didn't expect to come in. The clerk said you wanted to see me."

The lawyer frowned and scrutinized her closely. After a pause, he said:

"I want to tell you for the fiftieth time I can do nothing for you."

"Fifty?" she echoed. "Fifty did you say? Really, it doesn't seem that much."

Judge Brewster looked at her quickly to see if she was laughing at him. Almost peevishly, he said:

"For the last time, I repeat I can do nothing for you."



"I CAN DO NOTHING FOR YOU," SAID THE JUDGE.

"Not the last time, judge," she replied, shaking her head. "I shall come again to-morrow."

The lawyer swung around in his chair with indignation.

"You will——?"

Annie nodded.

"Yes, sir," she said quietly.

"You're determined to force your way in here?" exclaimed the lawyer.

"Yes, sir."

The judge banged the desk with his fist.

"But I won't allow it! I have something to say, you know! I can't permit this to go on. I represent my client, Mr. Howard Jeffries, Sr., and he won't consent to my taking up your husband's case."

There was a shade of sarcasm in Annie's voice as she asked calmly:

"Can't you do it without his consent?"

The lawyer looked at her grimly.

"I can," he blurted out, "but—I won't."

Her eyes flashed as she replied quickly.

"Well, you ought to——"

The lawyer looked up in amazement.

"What do you mean?" he demanded.

"It's your duty to do it," she said quietly. "Your duty to his son, to me, and to Mr. Jeffries himself. Why, he's so eaten up with his family pride and false principles that he can't see the difference between right and wrong. You're his lawyer. It's your duty to put him right. It's downright wicked of you to refuse—you're hurting him. Why, when I was hunting around for a lawyer one of them actually refused to take up the case because he said old Brewster must think Howard was guilty or he'd have taken it up himself. You and his father are putting the whole world against him, and you know it."

The judge was staggered. No one in his recollection had ever dared to speak to him like that. He was so astonished that he forgot to resent it, and he hid his confusion by taking out his handkerchief and mopping his forehead.

"I do know it," he admitted.

"Then why do you do it?" she snapped.

The lawyer hesitated, and then he said:

"I—that's not the question."

Annie leaped quickly forward, and she replied:

"It's my question—and as you say, I've asked it fifty times."

The lawyer sat back in his chair and looked at her for a moment without speaking. He surveyed her critically from head to foot, and then, as if satisfied with his examination, said:

"You're going on the stage?"

She nodded.

"I've had a very big offer."

The judge leaned forward, and in a low voice, so that no one in the outer office might hear, he said:

"Well, I'll give you twice as much if you refuse the engagement."

She laughed ironically.

"You mean that my father-in-law will give it," she said lightly. Then she went on:

"You know it's no use your asking me to concede anything unless you agree to defend Howard."

The lawyer shook his head.

"I can't—it's impossible."

"Then neither can I," she exclaimed defiantly.

Judge Brewster could not refrain from smiling. This young woman had actually inveigled him into an argument. Almost mockingly, he said:

"So you're determined to have me."

"Yes," she said simply.

"But I don't argue criminal cases."

"That's just it," she exclaimed eagerly; "my husband is not a criminal. He is innocent. I don't want a lawyer who is always defending criminals. I want one who defends a man because he isn't a criminal."

Judge Brewster waved his hand contemptuously.

"Go and see some other lawyer—there are plenty of 'em."

She leaned eagerly forward. Her face was flushed from excitement, her eyes flashed.

"There's only one Judge Brewster," she exclaimed. "He's the greatest lawyer in the world, and he's going to help us. He is going to save Howard's life."

The judge shifted uneasily on his chair. He didn't like this forceful, persistent young woman. Almost fretfully, he said:

"You always say that. Upon my word, I shall begin to believe it soon."

"I shall say it again," she exclaimed, "and again every time I see you."

The lawyer turned round. There was a comic look of despair in his face which would have amused his visitor had her errand not been so serious.

"How often do you intend that shall be?"

"Every day," she replied calmly. "I shall say it and think it until—until it comes true."

Judge Brewster tried to feel angry, although inwardly he had hard work to keep from smiling. With pretended indignation, he said:

"You mean that you intend to keep at me until I give way—through sheer exhaustion?"

She nodded.

"That's it exactly," she said.

The lawyer gasped.

"Well, I must say you—you—you're very brave."

Annie shook her head.

"No, I'm not," she said earnestly. "I'm an awful coward, but I'm fighting for him. Howard Jeffries lifted me up when I was way down in the world. He gave me his name. He gave me all he had, to make me a better woman, and I'm grateful. Why, even a dog has gratitude, even a dog will lick the hand that feeds him. Why should I hesitate to express my gratitude? That's all I'm doing—just paying him back a bit of the debt I owe him, and I'm going to move Heaven and earth to bring his father around to my way of thinking. I've got you already——"

The judge bounded to his feet. Could his ears have heard aright?

"Got me already?" he exclaimed. "What do you mean by that?"

Annie returned his angry look with the utmost calm. She was playing her cards well, and she knew it. She had hit the old man in a sensitive place. Quietly, she went on:

"You'd say 'yes' in a minute if it wasn't for Mr. Jeffries."

"Oh, you think so, do you?" he gasped.

"I'm sure of it," she replied confidently. Boldly she went on: "You're afraid of him."

Judge Brewster laughed heartily.

"Afraid of him?" he echoed.

"It isn't so funny," she went on. "You're afraid of opposing him. I'm not surprised. I'm afraid of him myself."

The lawyer looked at her in an amused kind of way.

"Then why do you oppose him in everything?" he demanded.

Annie laughed as she replied:

"That's the only way I can get his attention. Why, when he met me out there to-day he actually looked at me. For the first time in his life he recognized that he has a daughter-in-law. He looked at me—and I'm not sure, but I think he wanted to bow to me. He's kind of beginning to sit up and take notice."

Judge Brewster frowned. He did not like the insinuation that he was afraid to do the right thing because it might interfere with his emoluments. Yet, secretly, he had to admit to himself that she had almost guessed right. Now he came to think of it, he had taken this stand in the matter because he knew that any other course would displease his wealthy client. After all, was he doing right? Was he acting in conformance with his professional oath? Was he not letting his material interests interfere with his duty? He was silent for several minutes, and then, in an absent-minded kind of way, he turned to his visitor.

"So you think I'm afraid of him, do you?"

"I'm sure of it," she said quickly. "You liked my husband, and you'd just love to rush in and fight for him. His father thinks he is guilty and, well—you don't like to disobey him. It's very natural. He's an influential man, a personal friend of the President and all that. You know on which side your bread is buttered, and—oh, it's very natural—you're looking out for your own interests——"

Judge Brewster interrupted her impatiently.

"Circumstances are against Howard. Your father judges him guilty from his own confession. It's the conclusion I'm compelled to come to myself. Now, how do you propose to change that conclusion?"

"You don't have to change it," she said quietly, "You don't believe Howard guilty."

"I don't?" exclaimed the lawyer.

"No, at the bottom of your heart. You knew Howard when he was a boy, and you know he is as incapable of that crime as you are."

Judge Brewster lapsed into silence, and there followed a perfect quiet, broken only by the suppressed chatter of the clerks and clicking of the typewriters in the outer office. Annie watched him closely, wondering what was passing in his mind, fearing in her heart that she might have prejudiced him against her husband only the more. Suddenly he turned on her.

"Mrs. Jeffries, how do you know that your husband did not kill Robert Underwood?"

"I know it," she said confidently.

"Yes," persisted the judge, "but how do you know it?"

Annie looked steadily at him, and then she said solemnly:

"I know there's a God, but I can't tell you how I know it. I just know it, that's all! Howard didn't do it. I know he didn't."

The lawyer smiled.

"That's a very fair sample of feminine logic."

"Well, it's all I have," she retorted, with a toss of her head. "And it's a mighty comfort, too, because when you know a thing you know it and it makes you happy."

Judge Brewster laughed outright.

"Feminine deduction!" he cried. "Think a thing, believe it, and then you know it!" Looking up at her, he asked:

"Haven't you any relatives to whom you can go?"

She shook her head.

"No," she said sadly. "My father died in—Sing Sing—and the rest are not worth——"

"Yes, yes, I know," replied the judge hastily. "I got your family history from Mr. Jeffries after your marriage. It is filed away among the family archives."

She smiled sadly.

"It's a wonder you don't burn 'em up—my folks were not a very brilliant lot." Earnestly she went on: "But my father was all right, judge. Blood was thicker than water with him. He'd never have gone back on me in the way Howard's father has on him."

The lawyer looked at her fixedly without speaking. Their eyes met, and the silence continued until it became embarrassing. Judge Brewster shook his head.

"It's too bad. I'm sorry for you, really, I——"

Annie laughed, and he asked:

"Why do you laugh?"

"What's the use of crying?" she said. "Ha! Ha! It's almost a joke. You're sorry, my father-in-law is sorry, and I suppose my mother-in-law is shedding tears for me, too. You're all sorry and you're all wearing crape for us, but why can't some of you *do* something?"

The lawyer said nothing. He still stared at her in a strange, absent-minded kind of way, until finally she lost patience. Boldly she said:

"Well, you sent for me. What do you want to see me about, judge?"

"I want to tell you that you mustn't come here again," he answered.

"Anything else?" she exclaimed.

The judge began to fuss with the papers on his desk, as he usually did when embarrassed for words.

"Of course," he stammered, "you will be amply compensated."

"Of course," she cried. Rising from her chair, she shrugged her shoulders, and said:

"Oh, well, this is not my lucky day. They wouldn't let me into the prison to see Howard to-day. Captain Clinton doesn't like me. He has always tried to

prevent my seeing Howard, but I'll see him to-morrow, captain or no captain. He can make up his mind to that!"

The lawyer looked up at her.

"Poor girl—you are having a hard time, aren't you?"

"Things have been better," she replied, with a tremor in her voice. "Howard and I were very happy when we first——" A sob choked her utterance, and she forced a laugh, saying: "Here, I must keep off that subject——"

"Why do you laugh?" demanded the lawyer.

Already hysterical, Annie had great difficulty in keeping back her tears.

"Well, if I don't laugh," she sobbed, "I'll cry; and as I don't want to cry—why—I just laugh. It's got to be one or the other—see——?"

He said nothing, and she continued:

"Well, I guess I'll go home—home—that's the worst part of it—home——"

She stopped short, she could go no further. Her bosom was heaving, the hot tears were rolling down her cheeks. The old lawyer turned away his head so that she might not see the suspicious redness in his eyes. Moving toward the door, she turned around.

"Well, you have your own troubles, judge. I'll go now, but I'll come again to-morrow. Perhaps you'll have better news for me."

The lawyer waved her back to her seat with a commanding gesture she could not resist. There was determination around his mouth; in his face was an expression she had not seen there before.

"Sit down again for a moment," he said sharply. "I want to ask you a question. How do you account for Howard's confessing to the shooting?"

"I don't account for it," she replied, as she resumed her seat. "He says he didn't confess. I don't believe he did."

"But three witnesses——"

"Who are the witnesses?" she interrupted contemptuously. "Policemen!"

"That makes no difference," he said. "He made a confession and signed _____"

Annie leaned forward. What did this questioning mean? Was the judge becoming interested after all? Her heart gave a leap as she answered eagerly:

"He confessed against his will. I mean—he didn't know what he was doing at the time. I've had a talk with the physician who was called in—Dr. Bernstein. He says that Captain Clinton is a hypnotist, that he can compel people to say what he wants them to say. Well, Howard is—what they call a subject—they told him he did it till he believed he did."

She looked narrowly at the lawyer to see what effect her words were having, but to her great disappointment the judge was apparently paying not the slightest attention. He was gazing out of the window and drumming his fingers absent-mindedly on the desk. Utterly discouraged, she again rose.

"Oh, well, what's the use——?"

The judge quickly put out his hand and partly pushed her back in the chair.

"Don't go," he said. Then he added:

"Who told you he was a hypnotic subject?"

Her hopes revived once more. Quickly she said:

"Dr. Bernstein. Besides, Howard told me so himself. A friend of his at college used to make him cut all sorts of capers."

"A friend at college, eh? Do you remember his name?"

"Howard knows it."

"Um!" ejaculated the lawyer. He took up a pad and wrote a memorandum on it. Then aloud he said: "I'd like to have a little talk with Dr. Bernstein. I think I'll ask him to come and see me. Let me see. His address is——"

"342 Madison Avenue," she exclaimed eagerly.

The lawyer jotted the address down, and then he looked up.

"So you think I'm afraid of Mr. Jeffries, do you?"

She smiled.

"Oh, no, not really afraid," she answered, "but just—scared. I didn't mean _____"

Judge Brewster was enjoying the situation hugely. He had quite made up his mind what to do, but he liked to quiz this bold young woman who had not been afraid to show him where his duty lay. Striving to keep a serious face, he said:

"Oh, yes, you did, and I want you to understand I'm not afraid of any man. As to allowing my personal interests to interfere with my duty——"

Annie took alarm. She was really afraid she had offended him.

"Oh, I didn't say that, did I?" she exclaimed timidly.

Judge Brewster forced his face into a frown.

"You said I knew on which side my bread was buttered!"

"Did I?" she exclaimed in consternation.

"You say a great many things, Mrs. Jeffries," said the lawyer solemnly. "Of course, I realize how deeply you feel, and I make excuses for you. But I'm not afraid. Please understand that——"

He rapped the table with his eyeglasses as if he were very much offended indeed.

"Of course not," she said apologetically. "If you were you wouldn't even see me—let alone talk to me—and—and——" Pointing to the piece of paper he held in his hand, she added: "And——"

"And what?" demanded the judge, amused.

Half hysterical, now laughing, now crying, she went on:

"And—and take the names and addresses of witnesses for the defense—and—think out how you're going to defend Howard—and—and all that——"

The lawyer looked at her and laughed.

"So you think I'm going to help Howard?" he said. "You take too much for granted."

"You're not afraid to help him," she said. "I know that—you just said so."

Judge Brewster raised his fist and brought it down on the desk with a bang which raised in a cloud the accumulated dust of weeks. His face set and determined, he said:

"You're quite right! I'm going to take your case!"

Annie felt herself giving way. It was more than she could stand. For victory to be hers when only a moment before defeat seemed certain was too much for her nerves. All she could gasp was:

"Oh, judge!"

The lawyer adjusted his eyeglasses, blew his nose with suspicious energy, and took up a pen.

"Now don't pretend to be surprised—you knew I would. And please don't thank me. I hate to be thanked for doing what I want to do. If I didn't want to do it, I wouldn't——"

Through her tears she murmured:

"I'd like to say 'thank you'."

"Well, please don't," he snapped.

But she persisted. Tenderly, she said:

"May I say you're the dearest, kindest——"

Judge Brewster shook his head.

"No—no—nothing of the kind."

"Most gracious—noble-hearted—courageous," she went on.

The judge struck the table another formidable blow.

"Mrs. Jeffries!" he exclaimed.

She turned away her head to hide her feelings.

"Oh, how I'd like to have a good cry," she murmured. "If Howard only knew!"

Judge Brewster touched an electric button, and his head clerk entered.

"Mr. Jones," said the lawyer quickly, "get a stenographic report of the case of the People against Howard Jeffries, Junior; get the coroner's inquest, the grand jury indictment, and get a copy of the Jeffries confession—get everything—right away!"

The clerk looked inquiringly, first at Annie and then at his employer. Then respectfully he asked:

"Do we, sir?"

"We do," said the lawyer laconically.

CHAPTER XVI.

"Now, my dear young woman," said Judge Brewster, when the astonished head clerk had withdrawn, "if we are going to set your husband free we must get to work, and you must help me."

His visitor looked up eagerly.

"I'll do anything in my power," she said quickly. "What can I do?"

"Well—first of all," said the lawyer with some hesitation, "I want you to see a certain lady and to be exceedingly nice to her."

"Lady?" echoed Annie surprised. "What lady?"

"Mrs. Howard Jeffries, Senior," he replied slowly.

"Howard's stepmother!" she ejaculated.

A clerk entered and handed his employer a card. The lawyer nodded and said in an undertone:

"Show her in." Turning round again, he went on: "Yes—Howard's stepmother. She's out there now. She wants to see you. She wishes to be of service to you. Now, you must conciliate her. She may be of great use to us."

Annie's face expressed considerable doubt.

"Perhaps so," she said, "but the door was slammed in my face when I called to see her."

"That's nothing," answered the judge. "She probably knows nothing about it. In any case, please remember that she is my client——"

She bowed her head and murmured obediently:

"I'll remember."

The door of the office opened and Alicia entered. She stopped short on seeing who was there, and an awkward pause followed. Judge Brewster introduced them.

"Mrs. Jeffries, may I present Mrs. Howard, Junior?"

Alicia bowed stiffly and somewhat haughtily. Annie remained self-possessed and on the defensive. Addressing the banker's wife, the lawyer said:

"I told Mrs. Howard that you wished to speak to her." After a pause he added: "I think, perhaps, I'll leave you together. Excuse me."

He left the office and there was another embarrassing silence. Annie waited for Mrs. Jeffries to begin. Her attitude suggested that she expected something unpleasant and was fully prepared for it. At last Alicia broke the silence:

"You may think it strange that I have asked for this interview," she began, "but you know, Annie——" Interrupting herself, she asked: "You don't mind my calling you Annie, do you?"

The young woman smiled.

"I don't see why I should. It's my name and we're relatives—by marriage." There was an ironical ring in her voice as she went on: "Relatives! It seems funny, doesn't it, but we don't pick and choose our relatives. We must take them as they come."

Alicia made an effort to appear conciliatory.

"As we are—what we are—let's try to make the best of it."

"Make the best of it?" echoed Annie. "God knows I'm willing, but I've had mighty little encouragement, Mrs. Jeffries. When I called to see you the other day, to beg you to use your influence with Mr. Jeffries, 'not at home' was handed to me by the liveried footman and the door was slammed in my face. Ten minutes later you walked out to your carriage and were driven away."

"I knew nothing of this—believe me," murmured Alicia apologetically.

"It's what I got just the same," said the other dryly. Quickly she went on: "But I'm not complaining, understand—I'm not complaining. Only I did think that at such a time one woman might have held out a helping hand to another."

Alicia held up her hand protestingly.

"How could I?" she exclaimed. "Now, be reasonable. You are held responsible for Howard's present position."

"Yes—by the police," retorted Annie grimly, "and by a couple of yellow journals. I didn't think you'd believe all the gossip and scandal that's been printed about me. I didn't believe what was said about you."

Alicia started and changed color.

"What do you mean?" she exclaimed haughtily. "What was said about me?"

"Well, it has been said that you married old Jeffries for his money and his social position."

"Old Jeffries!" protested Alicia indignantly, "Have you no respect for your husband's father?"

"Not a particle," answered the other coolly, "and I never will have till he acts like a father. I only had one interview with him and it finished him with me for all time. He ain't a father—he's a fish."

"A fish!" exclaimed Alicia, scandalized at such *lèse majesté*.

Annie went on recklessly:

"Yes—a cold-blooded——"

"But surely," interrupted Alicia, "you respect his position—his——"

"No, m'm; I respect a man because he behaves like a man, not because he lives in a marble palace on Riverside Drive."

Alicia looked pained. This girl was certainly impossible.

"But surely," she said, "you realized that when you married Howard you—you made a mistake—to say the least?"

"Yes, that part of it has been made pretty plain. It was a mistake—his mistake—my mistake. But now it's done and it can't be undone. I don't see why you can't take it as it is and—and——"

She stopped short and Alicia completed the sentence for her:

"—and welcome you into our family——"

"Welcome me? No, ma'am. I'm not welcome and nothing you or your set could say would ever make me believe that I was welcome. All I ask is that Howard's father do his duty by his son."

"I do not think—pardon my saying so," interrupted Alicia stiffly, "that you are quite in a position to judge of what constitutes Mr. Jeffries' duty to his son."

"Perhaps not. I only know what I would do—what my father would have done—what any one would do if they had a spark of humanity in them. But they do say that after three generations of society life red blood turns into blue."

Alicia turned to look out of the window. Her face still averted she said:

"What is there to do? Howard has acknowledged his guilt—any sacrifices we may make will be thrown away."

Annie eyed her companion with contempt. Her voice quivering with indignation, she burst out:

"What is there to do! Try and save him, of course. Must we sit and do nothing because things look black? Ah! I wasn't brought up that way. No, ma'am, I'm going to make a fight!"

"It's useless," murmured Alicia, shaking her head.

"Judge Brewster doesn't think so," replied the other calmly.

The banker's wife gave a start of surprise. Quickly she demanded:

"You mean that Judge Brewster has encouraged you to—to——"

"He's done more than encourage me—God bless him!—he's going to take up the case."

Alicia was so thunderstruck that for a moment she could find no answer.

"What!" she exclaimed, "without consulting Mr. Jeffries?"

She put her handkerchief to her face to conceal her agitation. Could it be possible that the judge was going to act, after all, in defiance of her husband's wishes? If that were true, what would become of her? Concealment would be no longer possible. Discovery of her clandestine visit to Underwood's apartment that fatal night must come. Howard might still be the murderer, Underwood might not have committed suicide, but her visit to his rooms at midnight would become known. Judge Brewster was not the man to be deterred by difficulties once he took up a case. He would see the importance of finding the mysterious woman who went secretly to Underwood's rooms that night of the tragedy.

"He consulted only his own feelings," went on Annie. "He believes in Howard, and he's going to defend him."

Alicia looked at her anxiously as if trying to read what might be in her mind. Indifferently she went on:

"The papers say there was a quarrel about you, that you and Mr. Underwood were too friendly. They implied that Howard was jealous. Is this true?"

"It's all talk," cried Annie indignantly—"nothing but scandal—lies! There's not a word of truth in it. Howard never had a jealous thought of me—and as for me—why—I've always worshiped the ground he walked on. Didn't he sacrifice everything for my sake? Didn't he quarrel with his father for me? Didn't he marry me? Didn't he try to educate and make a lady of me? My God!—do you suppose I'd give a man like that cause for jealousy? What do the newspapers care? They print cruel statements that cut into a woman's heart, without giving it a thought, without knowing or caring whether it's true or not, as long as it interests and amuses their readers. You—you don't really believe I'm the cause of his misfortunes, do you?"

Alicia shook her head as she answered kindly:

"No, I don't. Believe me, I don't. You were right when you said that at such a time as this one woman should stand by another. I'm going to stand by you. Let me be your friend, let me help you." Extending her hand, she said: "Will you?"

Annie grasped the proffered hand. It was the first that had been held out to her in her present trouble. A lump rose in her throat. Much affected, she said:

"It's the first kind word that——" She stopped and looked closely for a moment at Alicia. Then she went on:

"It's the queerest thing, Mrs. Jeffries, but it keeps coming into my mind. Howard told me that while he was at Underwood's that dreadful night he thought he heard your voice. It must have been a dream, of course, yet he thought he was sure of it. Your voice—that's queer, isn't it? Why—what's the matter?"

Alicia had grown deathly pale and staggered against a chair. Annie ran to her aid, thinking she was ill.

"It's nothing—nothing!" stammered Alicia, recovering herself.

Fearing she had said something to hurt her feelings, Annie said sympathetically:

"I haven't said anything—anything out of the way—have I? If I have I'm sorry—awfully sorry. I'm afraid—I—I've been very rude and you've been so kind!"

"No, no!" interrupted Alicia quickly. "You've said nothing—done nothing—you've had a great deal to bear—a great deal to bear. I understand that perfectly." Taking her companion's hand in hers, she went on, "Tell me, what do they say about the woman who went to see Robert Underwood the night of the tragedy?"

"The police can't find her—we don't know who she is." Confidently she went on: "But Judge Brewster will find her. We have a dozen detectives

searching for her. Captain Clinton accused me of being the woman—you know he doesn't like me."

The banker's wife was far too busy thinking of the number of detectives employed to find the missing witness to pay attention to the concluding sentence. Anxiously she demanded:

"Supposing the woman is found, what can she prove? What difference will it make?"

"All the difference in the world," replied Annie. "She is a most important witness." Firmly she went on: "She must be found. If she didn't shoot Robert Underwood, she knows who did."

"But how can she know?" argued Alicia. "Howard confessed that he did it himself. If he had not confessed it would be different."

"He did not confess," replied the other calmly. "Mrs. Jeffries—he never confessed. If he did, he didn't know what he was saying."

Alicia was rapidly losing her self-possession.

"Did he tell you that?" she gasped.

Annie nodded.

"Yes. Dr. Bernstein says the police forced it out of his tired brain. I made Howard go over every second of his life that night from the time he left me to the moment he was arrested. There wasn't a harsh word between them." She stopped short and looked with alarm at Alicia, who had turned ashen white. "Why, what's the matter? You're pale as death—you——"

Alicia could contain herself no longer. Her nerves were on the point of giving way. She felt that if she could not confide her secret to some one she must go mad. Pacing the floor, she cried:

"What am I to do? What am I to do? I believed Howard guilty. Why shouldn't I? I had no reason to doubt his own confession! Every one believed it—his own father included. Why should I doubt it. But I see it all now! Underwood must have shot himself as he said he would!"

Annie started. What did Mrs. Jeffries mean? Did she realize the tremendous significance of the words she was uttering?

"As he said he would?" she repeated slowly.

"Yes," said Alicia weakly.

Annie bounded forward and grasped her companion's arm. Her face flushed, almost unable to speak from suppressed emotion, she cried:

"Ah! I begin to understand. You knew Robert Underwood? Howard knows your voice—he heard you—talking to him——Oh, Mrs. Jeffries! Are you the woman who visited his apartment that night?"

The banker's wife bowed her head and collapsed on a chair.

"Yes," she murmured in a low tone.

Annie looked at her in amazement.

"Why didn't you come forward at once?" she cried. "Think of the pain which you might have spared us!"

Alicia covered her face with her handkerchief. She was crying now.

"The disgrace—the disgrace!" she moaned.

"Disgrace!" echoed Annie, stupefied. Indignantly, she went on: "Disgrace—to you? But what of me and Howard?"

Alicia looked up.

"Can't you realize what it means to be associated with such a crime?" she wailed.

"Disgrace!" cried Annie contemptuously. "What is disgrace when a human life is at stake?"

"It seemed so useless," moaned Alicia—"a useless sacrifice in the face of Howard's confession. Of course—if I'd known—if I'd suspected what you tell me—I'd have come forward and told everything—no matter at what cost." Tearfully she added: "Surely you realize the position it puts me in?"

A new light shone in Annie's eyes. What was this woman's misery to her? Her duty was to the poor fellow who was counting the hours until she could set him free. His stepmother deserved no mercy. Utterly selfish, devoid of a spark of humanity, she would have left them both to perish in order to protect herself from shame and ridicule. Her face was set and determined as she said calmly:

"It must be done now."

"Yes," murmured Alicia in a low tone that sounded like a sob, "it must be done now! Oh, if I'd only done it before—if I'd only told Mr. Jeffries the whole truth! You speak of Howard's sufferings. If he didn't do it, he has at least the consciousness of his own innocence, but I—the constant fear of being found out is worse than any hell the imagination can conjure up. I dreaded it—I dread it now—it means disgrace—social ostracism—my husband must know—the whole world will know."

Annie was not listening. Still bewildered, she gazed with the utmost astonishment at her companion. To think that this mysterious woman they had been seeking was Howard's stepmother.

"So you're the missing witness we've all been hunting for!" she said; "I can't believe it even now. How did it happen?"

Alicia explained in short, broken sentences:

"He and I were once engaged. I broke it off when I found him out. After I married Mr. Jeffries I met Underwood again. Foolishly, I allowed the old intimacy to be renewed. He took advantage and preyed on my friends. I forbade him my house. He wrote me a letter in which he threatened to kill himself. I was afraid he meant it—I wanted to prevent him. I went to his rooms that night. I—didn't tell Mr. Jeffries. When the truth is known and I acknowledge that I visited this man—can you see what it means?—what a fuss there'll be? Everybody will put the worst construction on it——"

"Trust them for that!" said Annie grimly. She was sorry for the woman's distress, yet, being only human, she felt a certain sense of satisfaction in seeing her suffer a little of what she had been made to suffer.

"They'll say that I—God knows what they'll say!" went on Alicia distractedly. "My husband will be dragged through the mire of another public scandal—his social prestige will—oh, I dare not think of it—I know—I know—my duty is to that unfortunate boy. I mustn't think of myself."

"Have you the letter that Mr. Underwood wrote you?" demanded her companion.

"Yes—I've never been able to destroy it. I don't know why I kept it, but thank God I have it!" Moaning, she went on:

"The disgrace!—the disgrace!—it's ruin!—degradation! It's the end of everything!—the end of everything!"

Annie regarded with contempt this poor, weak, wailing creature who lacked the moral courage to do what was merely right. Yet her voice was not unkind as she said:

"I don't want to disgrace you—or ruin you. But what am I to do—tell me, what am I to do?"

"I don't know," moaned her companion helplessly.

"Howard must be saved."

"Yes."

"Will you tell Judge Brewster or shall I?"

"Judge Brewster! Why should he know?" cried Alicia, startled. More composedly and as if resigned to the inevitable, she went on: "Yes, I suppose he must know sooner or later, but, I——"

She broke down again and burst into tears. Annie watched her in silence.

"It's tough— isn't it?" she said sympathetically.

"Yes," sobbed Alicia through her tears, "it's—it's tough!" Rising, she dried her eyes and said hastily: "Don't say anything now. Give me a few hours. Then I can think what is best to be done."

Annie was about to reply when the office door suddenly opened and Judge Brewster entered. Addressing Alicia, he said:

"Pardon me, Mrs. Jeffries, I hope I haven't kept you waiting." Noticing her agitation and traces of tears, he looked surprised. He made no comment but turned to Annie:

"I have been talking to Dr. Bernstein over the 'phone."

Annie approached him softly and said in a whisper:

"I've told Mrs. Jeffries that you have undertaken Howard's defense."

Judge Brewster smiled at his wealthy client, almost apologetically, Annie thought. Then addressing her, he said:

"Yes, I've been quite busy since I saw you. I have put three of the best detectives we have on the trail of the woman who visited Underwood that night. I don't think the police have been trying very hard to find her. They're satisfied with Howard's confession. But we want her and we'll get her——"

"Oh!" gasped Alicia.

The judge was proceeding to tell of other steps he had taken when the door opened and the head clerk entered, followed by Mr. Jeffries.

"I told Mr. Jeffries that Mrs. Jeffries was here," said the clerk.

"You might have told him that there were two Mrs. Jeffries here," laughed the judge.

The clerk retired and the banker, completely ignoring the presence of his daughter-in-law, turned to his wife and said:

"I regret, my dear, that you should be subjected to these family annoyances."

Judge Brewster came forward and cleared his throat as if preliminary to something important he had to say. Addressing the banker, he said boldly:

"Mr. Jeffries, I have decided to undertake Howard's defense."

His aristocratic client was taken completely by surprise. For a moment he could say nothing, but simply stared at the lawyer as if unable to believe his ears. With an effort, he at last exclaimed:

"Indeed!—then you will please consider our business relations to have ceased from this moment."

The lawyer bowed.

"As you please," he said suavely.

The banker turned to his wife.

"Alicia—come."

He offered his arm and turned toward the door. Alicia, in distress, looked back at Annie, who nodded reassuringly to her. Judge Brewster rose and, going to the door, opened it. The banker bowed stiffly and said:

"Pray don't trouble. Good morning, sir."

"Good morning, Mr. Jeffries," replied the judge.

As Alicia followed her husband out, she turned and whispered to Annie:

"Come and see me at my home."

When she had disappeared the judge came back into the room and sat down at his desk.

"Well, that's done!" he exclaimed with a sigh of relief. Rummaging for a moment among his papers, he looked up and said with an encouraging smile:

"Now, if you please, we will go over that evidence—bit by bit."

CHAPTER XVII.

The news that Judge Brewster would appear for the defendant at the approaching trial of Howard Jeffries went through the town like wildfire, and caused an immediate revival in the public interest, which was beginning to slacken for want of hourly stimulation. Rumor said that there had been a complete reconciliation in the Jeffries family, that the banker was now convinced of his son's innocence and was determined to spend a fortune, if necessary, to save him. This and other reports of similar nature were all untrue, but the judge let them pass without contradiction. They were harmless, he chuckled, and if anything, helped Howard's cause.

Meantime, he himself had not been idle. When once he made up his mind to do a thing he was not content with half measures. Night and day he worked on the case, preparing evidence, seeing witnesses and experts, until he had gradually built up a bulwark of defense which the police would find difficult to tear down. Yet he was not wholly reassured as to the outcome until Annie, the day following the interview in his office, informed him breathlessly that she had found the mysterious woman. The judge was duly elated; now it was plain sailing, indeed! There had always been the possibility that Howard's confession to the police was true, that he had really killed Underwood. But now they had found the one important witness, the mysterious woman who was in the apartment a few minutes before the shooting and who was in possession of a letter in which Underwood declared his intention of shooting himself, doubt was no longer possible. Acquittal was a foregone conclusion. So pleased was the judge at Annie's find that he did not insist on knowing the woman's name. He saw that Annie preferred, for some reason, not to give it—even to her legal adviser—and he let her have her way, exacting only that the woman should be produced the instant he needed her. The young woman readily assented. Of course, there remained the "confession," but that had been obtained unfairly, illegally, fraudulently. The next important step was to arrange a meeting at the judge's house at which Dr. Bernstein, the hypnotic expert, would be present and to which should be invited both Captain Clinton and Howard's father. In front of all these witnesses the judge would accuse the

police captain of brow-beating his prisoner into making an untrue confession. Perhaps the captain could be argued into admitting the possibility of a mistake having been made. If, further, he could be convinced of the existence of documentary evidence showing that Underwood really committed suicide he might be willing to recede from his position in order to protect himself. At any rate it was worth trying. The judge insisted, also, that to this meeting the mysterious woman witness should also come, to be produced at such a moment as the lawyer might consider opportune. Annie merely demanded a few hours' time so she could make the appointment and soon reappeared with a solemn promise that the woman would attend the meeting and come forward at whatever moment called upon.

Three evenings later there was an impressive gathering at Judge Brewster's residence. In the handsomely appointed library on the second floor were seated Dr. Bernstein, Mr. Jeffries and the judge. Each was absorbed in his own thoughts. Dr. Bernstein was puffing at a big black cigar; the banker stared vacantly into space. The judge, at his desk, examined some legal papers. Not a word was spoken. They seemed to be waiting for a fourth man who had not yet arrived. Presently Judge Brewster looked up and said:

"Gentlemen, I expect Captain Clinton in a few minutes, and the matter will be placed before you."

Mr. Jeffries frowned. It was greatly against his will that he had been dragged to this conference. Peevishly, he said:

"I've no wish to be present at the meeting. You know that and yet you sent for me."

Judge Brewster looked up at him quickly and said quietly yet decisively:

"Mr. Jeffries, it is absolutely necessary that you be present when I tell Captain Clinton that he has either willfully or ignorantly forced your son to confess to having committed a crime of which I am persuaded he is absolutely innocent."

The banker shrugged his shoulders.

"If I can be of service, of course, I—I am only too glad—but what can I say—what can I do?"

"Nothing," replied the Judge curtly. "But the moral effect of your presence is invaluable." More amiably he went on: "Believe me, Jeffries, I wouldn't have taken this step unless I was absolutely sure of my position. I have been informed that Underwood committed suicide, and to-night evidence confirming this statement is to be placed in my hands. The woman who paid him that mysterious visit just before his death has promised to come here and tell us what she knows. Now, if Captain Clinton can be got to admit the possibility of his being mistaken it means that your son will be free in a few days."

"Who has given you this information?" demanded the banker skeptically.

"Howard's wife," answered the judge quietly. The banker started and the lawyer went on: "She knows who the woman is, and has promised to bring her here to-night with documentary proof of Underwood's suicide."

"You are depending on her?" he sneered.

"Why not?" demanded the judge. "She has more at stake than any of us. She has worked day and night on this case. It was she who aroused Dr. Bernstein's interest and persuaded him to collect the evidence against Captain Clinton."

The banker frowned.

"She is the cause of the whole miserable business," he growled.

The door opened and the butler, entering, handed his master a card.

"Ah!" ejaculated the judge. "Here's our man! Show him up."

When the servant had disappeared Mr. Jeffries turned to his host. With a show of irritation he said:

"I think you put too much faith in that woman, but you'll find out—you'll find out."

Judge Brewster smiled.

"That's our object, isn't it, Mr. Jeffries—to find out?" he said sarcastically.

"What's the name of this mysterious witness?" exclaimed the banker testily. "If the police haven't been able to find her why should Howard's wife be able to do so? There was a report that she herself was——" He paused and added, "Did she tell you who it was?"

"No," said the judge dryly, "she will tell us to-night."

The banker bounded in his seat.

"You'll see," he cried. "Another flash in the pan. I don't like being mixed up in this matter—it's a disagreeable—most disagreeable."

Dr. Bernstein puffed a thick cloud of smoke into the air and said quietly:

"Yes, sir; it is disagreeable—but—unfortunately it is life."

Suddenly the door opened and Captain Clinton appeared, followed by his *fidus Achates*, Detective Sergeant Maloney. Both men were in plain clothes. The captain's manner was condescendingly polite, the attitude of a man so sure of his own position that he had little respect for the opinion of any one else. With an effort at amiability he began:

"Got your message, judge—came as soon as I could. Excuse my bringing the sergeant with me. Sit over there, Maloney." Half apologetically, he added: "He keeps his eyes open and his mouth shut, so he won't interfere. How do, doctor?"

Maloney took a position at the far end of the room, while Dr. Bernstein introduced the captain to Mr. Jeffries.

"Yes, I know the gentleman. How do, sir?"

The banker nodded stiffly. He did not relish having to hobnob in this way with such a vulgarian as a grafting police captain. Captain Clinton turned to Judge Brewster.

"Now, judge, explode your bomb! But I warn you I've made up my mind."

"I've made up my mind, too," retorted the judge, "so at least we start even."

"Yes," growled the other.

"As I stated in my letter, captain," went on the judge coolly, "I don't want to use your own methods in this matter. I don't want to spread reports about you, or accuse you in the papers. That's why I asked you to come over and discuss the matter informally with me. I want to give you a chance to change your attitude."

"Don't want any chance," growled the policeman.

"You mean," said the judge, peering at his *vis à vis* over his spectacles, "that you *don't want* to change your attitude."

Captain Clinton settled himself more firmly in his chair, as if getting ready for hostilities. Defiantly he replied:

"That's about what I mean, I suppose."

"In other words," went on Judge Brewster calmly, "you have found this—this boy guilty and you refuse to consider evidence which may tend to prove otherwise."

"Tain't my business to consider evidence," snapped the chief. "That's up to the prosecuting attorney."

"It will be," replied the lawyer sharply, "but at present it's up to you."

"Me?" exclaimed the other in genuine surprise.

"Yes," went on Judge Brewster calmly, "you were instrumental in obtaining a confession from him. I'm raising a question as to the truth of that confession."

Captain Clinton showed signs of impatience. Shrugging his massive shoulders deprecatingly, said:

"Are we going over all that? What's the use? A confession is a confession and that settles it. I suppose the doctor has been working his pet theory off on you and it's beginning to sprout."

"Yes," retorted the judge quickly, "it's beginning to sprout, captain!"

There was a sudden interruption caused by the entrance of the butler, who approached his master and whispered something to him. Aloud the judge said:

"Ask her to wait till we are ready."

The servant retired and Captain Clinton turned to the judge. With mock deference, he said:

"Say, Mr. Brewster, you're a great constitutional lawyer—the greatest in this country—and I take off my hat to you, but I don't think criminal law is in your line."

Judge Brewster pursed his lips and his eyes flashed as he retorted quickly:

"I don't think it's constitutional to take a man's mind away from him and substitute your own, Captain Clinton."

"What do you mean?" demanded the chief.

"I mean that instead of bringing out of this man his own true thoughts of innocence, you have forced into his consciousness your own false thoughts of his guilt."

The judge spoke slowly and deliberately, making each word tell. The police bully squirmed uneasily on his chair.

"I don't follow you, judge. Better stick to international law. This police court work is beneath you."

"Perhaps it is," replied the lawyer quickly without losing his temper. Then he asked: "Captain, will you answer a few questions?"

"It all depends," replied the other insolently.

"If you don't," cried the judge sharply, "I'll ask them through the medium of your own weapon—the press. Only my press will not consist of the one or two yellow journals you inspire, but the independent, dignified press of the United States."

The captain reddened.

"I don't like the insinuation, judge."

"I don't insinuate, Captain Clinton," went on the lawyer severely, "I accuse you of giving an untruthful version of this matter to two sensational newspapers in this city. These scurrilous sheets have tried this young man in their columns and found him guilty, thus prejudicing the whole community against him before he comes to trial. In no other country in the civilized world would this be tolerated, except in a country overburdened with freedom."

Captain Clinton laughed boisterously.

"The early bird catches the worm," he grinned. "They asked me for information and got it."

Judge Brewster went on:

"You have so prejudiced the community against him that there is scarcely a man who doesn't believe him guilty. If this matter ever comes to trial how can we pick an unprejudiced jury? Added to this foul injustice you have branded this young man's wife with every stigma that can be put on womanhood. You have hinted that she is the mysterious female who visited Underwood on the night of the shooting and openly suggested that she is the cause of the crime."

"Well, it's just possible," said the policeman with effrontery.

Judge Brewster was fast losing his temper. The man's insolent demeanor was intolerable. Half rising from his chair and pointing his finger at him, he continued:

"You have besmirched her character with stories of scandal. You have linked her name with that of Underwood. The whole country rings with falsities about her. In my opinion, Captain Clinton, your direct object is to destroy the value of any evidence she may give in her husband's favor."

The chief looked aggrieved.

"Why, I haven't said a word." Turning to his sergeant, he asked, "Have I, Maloney?"

"But these sensation-mongers have!" cried the judge angrily. "You are the only source from whom they could obtain the information."

"But what do I gain?" demanded the captain with affected innocence.

"Advertisement—promotion," replied the judge sternly. "These same papers speak of you as the greatest living chief—the greatest public official—oh, you know the political value of that sort of thing as well as I do."

The captain shrugged his shoulders.

"I can't help what they say about me," he growled.

"They might add that you are also the richest," added the judge quickly, "but I won't go into that."

Again Captain Clinton reddened and shifted restlessly on his chair. He did not relish the trend of the conversation.

"I don't like all this, Judge Brewster—'tain't fair—I ain't on trial."

Judge Brewster picked up some papers from his desk and read from one of them.

"Captain, in the case of the People against Creedon—after plying the defendant with questions for six hours, you obtained a confession from him?"

"Yes, he told me he set the place on fire."

"Exactly—but it afterward developed that he was never near the place."

"Well, he told me."

"Yes. He told you, but it turned out that he was mistaken."

"Yes," admitted the captain reluctantly.

The judge took another document, and read:

"In the case of the People against Bentley."

"That was Bentley's own fault—I didn't ask him," interrupted the captain. "He owned up himself." Turning to the sergeant, he said, "You were there, Maloney."

"But you believed him guilty," interposed Judge Brewster quickly.

"Yes."

"You thought him guilty and after a five-hour session you impressed this thought on his mind and he—he confessed."

"I didn't impress anything—I just simply——"

"You just simply convinced him that he was guilty—though as it turned out he was in prison at the time he was supposed to have committed the burglary——"

"It wasn't burglary," corrected the captain sullenly.

Judge Brewster again consulted the papers in his hand.

"You're quite right, captain—my mistake—it was homicide, but—it was an untrue confession."

"Yes."

"It was the same thing in the Callahan case," went on the judge, picking up another document. "In the case of the People against Tuthill—and—Cosgrove—Tuthill confessed and died in prison, and Cosgrove afterward acknowledged that he and not Tuthill was the guilty man."

"Well," growled the captain, "mistakes sometimes happen."

Judge Brewster stopped and laid down his eyeglasses.

"Ah, that is precisely the point of view we take in this matter! Now, captain, in the present case, on the night of the confession did you show young Mr. Jeffries the pistol with which he was supposed to have shot Robert Underwood?"

Captain Clinton screwed up his eyes as if thinking hard. Then, turning to his sergeant, he said:

"Yes. I think I did. Didn't I, Maloney?"

"Your word is sufficient," said the judge quickly. "Did you hold it up?"

"Think I did."

"Do you know if there was a light shining on it?" asked the judge quickly.

At this point, Dr. Bernstein, who had been an attentive listener, bent eagerly forward. Much depended on Captain Clinton's answer—perhaps a man's life.

"Don't know—might have been," replied the chief carelessly.

Judge Brewster turned to Dr. Bernstein.

"Were there electric lights on the wall?"

"Yes."

"What difference does that make?" demanded the policeman.

"Quite a little," replied the judge quietly. "The barrel of the revolver was bright—shining steel. From the moment that Howard Jeffries' eyes rested on the shining steel barrel of that revolver he was no longer a conscious personality. As he himself said to his wife, 'They said I did it—and I knew I didn't, but after I looked at that shining pistol I don't know what I said or did—everything became a blur and a blank.' Now, I may tell you, captain, that this condition fits in every detail the clinical experiences of nerve specialists and the medical experiences of the psychologists. After five hours' constant cross-questioning while in a semi-dazed condition, you impressed on him your own ideas—you suggested to him what he should say—you extracted from him not the thoughts that were in his own consciousness, but those that were in yours. Is that the scientific fact, doctor?"

"Yes," replied Dr. Bernstein, "the optical captivation of Howard Jeffries' attention makes the whole case complete and clear to the physician."

Captain Clinton laughed loudly.

"Optical captivation is good!" Turning to his sergeant he asked, "What do you think of it, Maloney?"

Sergeant Maloney chuckled.

"It's a new one, eh?"

"No, captain—it's a very old one," interrupted the lawyer sternly, "but it's new to us. We're barely on the threshold of the discovery. It certainly explains these other cases, doesn't it?"

"I don't know that it does," objected the captain, shaking his head. "I don't acknowledge——"

Judge Brewster sat down. Looking the policeman squarely in the face, he said slowly and deliberately:

"Captain Clinton, whether you acknowledge it or not, I can prove that you obtained these confessions by means of hypnotic suggestion, and that is a greater crime against society than any the State punishes or pays you to prevent."

The captain laughed and shrugged his shoulders. Indifferently he said:

"I guess the boys up at Albany can deal with that question."

"The boys up at Albany," retorted the lawyer, "know as little about the laws of psychology as you do. This will be dealt with at Washington!"

The captain yawned.

"I didn't come here to hear about that—you were going to produce the woman who called on Underwood the night of the murder—that was what I came here for—not to hear my methods criticised—where is she?"

"One thing at a time," replied the judge. "First, I wanted to show you that we know Howard Jeffries' confession is untrue. Now we'll take up the other question." Striking a bell on his desk, he added: "This woman can prove that Robert Underwood committed suicide."

"She can, eh?" exclaimed the captain sarcastically. "Maybe she did it herself. Some one did it, that's sure!"

The library door opened and the butler entered.

"Yes, some one did it!" retorted the judge; "we agree there!" To the servant he said: "Ask Mrs. Jeffries, Jr., to come here."

The servant left the room and the captain turned to the judge with a laugh:

"Is she the one? Ha! ha!—that's easy——"

The judge nodded.

"She has promised to produce the missing witness to-night."

"She has, eh?" exclaimed the captain.

Rising quickly from his chair, he crossed the room and talked in an undertone with his sergeant. This new turn in the case seemed to interest him. Meantime Mr. Jeffries, who had followed every phase of the questioning with close attention, left his seat and went over to Judge Brewster.

"Is it possible," he exclaimed, "is it possible that Underwood shot himself? I never dreamed of doubting Howard's confession!" More cordially he went on: "Brewster, if this is true, I owe you a debt of gratitude—you've done splendid work—I—I'm afraid I've been just a trifle obstinate."

"Just a trifle," said the judge dryly.

Sergeant Maloney took his hat.

"Hurry up!" said the captain, "you can telephone from the corner drug store."

"All right, Cap'."

Dr. Bernstein also rose to depart.

"I must go, Mr. Brewster; I have an appointment at the hospital."

The judge grasped his hand warmly.

"Thank you, doctor!" he exclaimed, "I don't know what I should have done without you."

"Thank you, sir!" chimed in the banker, "I am greatly indebted to you."

"Don't mention it," replied the psychologist almost ironically.

He went out and the banker impatiently took out his watch.

"It's getting late!" he exclaimed; "where is this girl. I have no faith in her promises!"

As he spoke the library door opened and Annie appeared.

CHAPTER XVIII.

As Annie entered the room and caught sight of Mr. Jeffries, she instinctively drew back. Just at that moment the banker was, perhaps, the one man in the world whom she was most anxious to avoid. Captain Clinton no longer had any terror for her. Now that the missing witness had been found and the precious "suicide letter" was as good as in their possession there was nothing more to fear. It was only a question of time when Howard would be set free. But it was not in this girl's nature to be concerned only with herself. If she possessed a single womanly virtue, it was supreme unselfishness. There was some one beside herself to take into consideration—a poor, vacillating, weak, miserable woman who wished to do what was right and had agreed to do so, but who, in the privacy of her own apartments, had gone down on her knees and begged Annie to protect her from the consequences of her own folly. Her husband must not know. Annie had promised that if there was any way possible the knowledge of that clandestine midnight visit to Underwood's rooms should be kept from him. Yet there stood the banker! She was afraid that if they began questioning her in his presence she might be betrayed into saying something that would instantly arouse his suspicions.

Judge Brewster went quickly forward as she came in and led her to a chair. Captain Clinton and Mr. Jeffries eyed her in stolid silence. Looking around in a nervous kind of way, Annie said quietly to the judge:

"May I speak to you alone, judge?"

"Certainly," replied the lawyer.

He was about to draw her aside when Captain Clinton interfered.

"One moment!" he said gruffly, "if this is all open and above board, as you say it is, judge—I'd like to ask the young lady a few questions."

"Certainly, by all means," said the judge quickly.

The captain turned and confronted Annie. Addressing her in his customary aggressive manner, he said:

"You promised Judge Brewster that you'd produce the woman who called at Underwood's apartment the night of the shooting?" Annie made no reply, but looked at the lawyer. The captain grinned as he added: "The witness wants instructions, judge."

"You can be perfectly frank, Mrs. Jeffries," said the lawyer reassuringly. "We have no desire to conceal anything from Captain Clinton."

Annie bowed.

"Yes," she said slowly; "I promised Judge Brewster that she would come here to-night."

"Did she promise you to come?" growled the captain.

"Yes."

"Well, where is she?" he demanded.

"She hasn't come yet," she replied, "but she will, I'm sure—I know she will."

"How did you come to find her?" demanded the captain suspiciously.

Annie hesitated a moment and glanced at Mr. Jeffries. Then she said hesitatingly:

"That I—I cannot say—now."

Captain Clinton's massive bulldog jaw closed with an ominous click.

"Decline to answer, eh? What's her name?"

She remained silent.

"What's her name?" he repeated impatiently.

"I cannot tell you," she said firmly.

"Do you know it?" he bellowed.

"Yes," she answered quietly.

"Know it, but can't say, eh? Hum!"

He folded his arms and glared at her. Mr. Jeffries now interfered. Addressing Annie angrily, he said:

"But you must speak! Do you realize that my son's life is at stake?"

"Yes, I do," she replied quickly. "I'm glad to see that you are beginning to realize it, too. But I can't tell you yet——"

The judge turned to the police captain.

"I may tell you, captain, that even I myself have not succeeded in learning the name of this mysterious personage." Addressing Annie, he said: "I think you had better tell us. I see no advantage in concealing it any further."

Annie shook her head.

"Not yet," she murmured; "she will tell you herself when she comes."

"Ha! I thought as much!" exclaimed the banker incredulously.

The captain rose and drew himself up to his full height, a favorite trick of his when about to assert his authority.

"Well, when she does come!" he exclaimed, "I think you may as well understand she will be taken to headquarters and held as a witness."



**"WHEN THIS MYSTERIOUS WITNESS DOES COME I
SHALL PLACE HER UNDER ARREST."**

"You'll arrest her!" cried the lawyer.

"That's what I said, judge. She a material witness—the most important one the State has. I don't intend that she shall get away——"

"Arrest her! Oh, judge, don't let him do that!" exclaimed Annie in dismay.

Judge Brewster grew red in the face. Wrathfully he said:

"She is coming to my house of her own free will. She has trusted to my honor——"

"Yes—yes!" cried Annie. "She trusts to your honor, judge."

Captain Clinton grinned.

"Honor cuts mighty little ice in this matter. There's no use talking. I shall place her under arrest."

"I will not permit such a disgraceful proceeding!" cried the lawyer.

"With all due respect, judge," retorted the policeman impudently, "you won't be consulted. You have declared yourself counsel for the man who has been indicted for murder—I didn't ask you to take me into your confidence—you invited me here, treated me to a lecture on psychology, for which I thank you very much, but I don't feel that I need any further instruction. If this woman ever does get here, the moment she leaves the house Maloney has instructions to arrest her, but I guess we needn't worry. She has probably forgotten her appointment. Some people are very careless in that respect." Moving toward the door, he added: "Well, if it's all the same to you, I'll wait downstairs. Good night."

He went out, his hat impudently tilted back on his head, a sneer on his lips. The banker turned to the judge.

"I told you how it would be," he said scornfully. "A flash in the pan!"

The lawyer looked askance at Annie.

"You are sure she will come?" he asked.

"Yes, I am sure!" With concern she added: "But the disgrace of arrest! It will kill her! Oh, judge, don't let them arrest her!"

"Tell me who she is!" commanded the lawyer sternly.

It was the first time he had spoken to her harshly and Annie, to her dismay, thought she detected a note of doubt in his voice. Looking toward the banker, she replied:

"I can't tell you just now—she'll be here soon——"

"Tell me now—I insist," said the lawyer with growing impatience.

"Please—please don't ask me!" she pleaded.

Mr. Jeffries made an angry gesture.

"As I told you, Brewster, her whole story is a fabrication trumped up for some purpose—God knows what object she has in deceiving us! I only know that I warned you what you always may expect from people of her class."

The judge said nothing for a moment. Then quietly he whispered to the banker:

"Go into my study for a few moments, will you, Jeffries?"

The banker made a gesture, as if utterly disgusted with the whole business.

"I am going home," he said testily. "I've had a most painful evening—most painful. Let me know the result of your investigation as soon as possible. Good night. Don't disturb me to-night, Brewster. To-morrow will do."

He left the room in high dudgeon, banging the door behind him. Annie burst into a laugh.

"Don't disturb him!" she mimicked. "He's going to get all that's coming to him."

Shocked at her levity, the lawyer turned on her severely.

"Do you want me to lose all faith in you?" he asked sternly.

"No, indeed," she answered contritely.

"Then tell me," he demanded, "why do you conceal this woman's name from me?"

"Because I don't want to be the one to expose her. She shall tell you herself."

"That's all very well," he replied, "but meantime you are directing suspicion against yourself. Your father-in-law believes you are the woman; so does Captain Clinton."

"The captain suspects everybody," she laughed. "It's his business to suspect. As long as you don't believe that I visited Underwood that night——"

The judge shook his head as if puzzled.

"Candidly, I don't know what to think." Seriously, he added: "I want to think the very best of you, Annie, but you won't let me."

She hesitated a moment and then, quickly, she said:

"I suppose I'd better tell you and have done with it—but I don't like to——"

At that moment a servant entered and handed the lawyer a card.

"The lady wants to see you at once, sir."

"To see me," asked the lawyer in surprise: "are you sure she hasn't come for Mr. Jeffries?"

"No, sir; she asked for you."

Annie sprang forward.

"Is it Mrs. Jeffries?" she asked.

"Yes," he replied.

"Let me see her, judge," she exclaimed eagerly; "I'll tell her who it is and she can tell you—she's a woman—and I'd rather. Let me speak to her, please!"

Addressing the servant, the lawyer said:

"Ask Mrs. Jeffries to come up." Turning to his client, he went on:

"I see no objection to your speaking to Mrs. Jeffries. After all, she is your husband's stepmother. But I am free to confess that I don't understand you. I am more than disappointed in your failure to keep your word. You promised definitely that you would bring the witness here to-night. On the strength of that promise I made statements to Captain Clinton which I have not been able to substantiate. The whole story looks like an invention on your part."

She held out her hands entreatingly.

"It's not an invention! Really, judge! Just a little while longer! You've been so kind, so patient!"

There was a trace of anger in the lawyer's voice as he went on:

"I believed you implicitly. You were so positive this woman would come forward."

"She will—she will. Give me only a few minutes more!" she cried.

The lawyer looked at her as if puzzled.

"A few minutes?" he said. Again he looked at her and then shook his head resignedly. "Well, it's certainly infectious!" he exclaimed. "I believe you again."

The door opened and Alicia appeared. The lawyer advanced politely to greet her.

"Good evening, Mrs. Jeffries."

Alicia shook hands with him, at the same time looking inquiringly at Annie, who, by a quick gesture, told her that the judge knew nothing of her secret. The lawyer went on:

"Mrs. Jeffries, Jr., wishes to speak to you. I said I thought there'd be no objection if you don't mind. May she?"

"Yes," murmured Alicia.

"Your husband was here," said the judge.

"My husband!" she cried, startled. Again she glanced inquiringly at Annie and tried to force a smile.

"Yes," said the lawyer; "he'll be glad to know you're here. I'll tell him." Turning to Annie, he said: "When you're ready, please send and——"

"Very well, judge."

The lawyer went out and Alicia turned round breathlessly.

"My husband was here?" she exclaimed.

"Yes."

"You've told Mr. Brewster nothing?"

Annie shook her head.

"I couldn't!" she said. "I tried to, but I couldn't. It seems so hard, doesn't it?" Alicia laughed bitterly and Annie went on: "I was afraid you weren't coming!"

"The train was late!" exclaimed Alicia evasively, "I went up to Stamford to say good-by to my mother."

"To say good-by?" echoed her companion in surprise.

"Yes," said the other tearfully. "I have said good-by to her—I have said good-by to everybody—to everything—to myself—I must give them all up—I must give myself up."

"Oh, it isn't as bad as that, surely?"

Alicia shook her head sadly.

"Yes," she said; "I've reckoned it all up. It's a total loss. Nothing will be saved—husband, home, position, good name—all will go. You'll see. I shall be torn into little bits of shreds. They won't leave anything unsaid. But it's not that I care for so much. It's the injustice of it all. The injustice of the power of evil. This man Underwood never did a good action in all his life. And now even after he is dead he has the power to go on destroying—destroying—destroying!"

"That's true," said Annie; "he was no good."

The banker's wife drew from her bosom the letter Underwood wrote her before he killed himself.

"When he sent me this letter," she went on, "I tried to think myself into his condition of mind, so that I could decide whether he intended to keep his word and kill himself or not. I tried to reason out just how he felt and how he thought. Now I know. It's hopeless, dull, sodden desperation. I haven't even the ambition to defend myself from Mr. Jeffries."

Annie shrugged her shoulders.

"I wouldn't lose any sleep on his account," she said with a laugh. More seriously she added: "Surely he won't believe——"

"He may not believe anything himself," said Alicia. "It's what other people are thinking that will make him suffer. If the circumstances were only a little less disgraceful—a suicide's last letter to the woman he loved. They'll say I drove him to it. They won't think of his miserable, dishonest career. They'll only think of my share in his death——"

Annie shook her head sympathetically.

"Yes," she said; "it's tough! The worst of it is they are going to arrest you."

Alicia turned ashen pale.

"Arrest me!" she cried.

"That's what Captain Clinton says," replied the other gravely. "He was here—he is here now—with two men, waiting for you." Apologetically she went on: "It wasn't my fault, Mrs. Jeffries—I didn't mean to. What could I do? When I told Judge Brewster, he sent for Captain Clinton. The police are afraid you'll run away or something——"

"And my husband!" gasped Alicia; "he doesn't know, does he?"

"No, I didn't tell them. I said you'd tell them yourself, but they won't trust you when they know who you are. Let's tell the judge—he may think of a plan. Suppose you go away until——" Puzzled herself to find a way out of the dilemma, Annie paced the floor nervously. "Oh, this is awful!" she exclaimed. "What are we to do??"

She looked toward Alicia, as if expecting some suggestion from her, but her companion was too much overwhelmed to take any initiative.

"It does stun one, doesn't it?" went on Annie. "You can't think when it comes all of a sudden like this. It's just the way I felt the morning they showed me Howard's confession."

"Prison! Prison!" wailed Alicia.

Annie tried to console her.

"Not for long," she said soothingly; "you can get bail. It's only a matter of favor—Judge Brewster would get you out right away."

"Get me out!" cried Alicia distractedly. "My God! I can't go to prison! I can't! That's too much. I've done nothing! Look—read this!" Handing over Underwood's letter, she went on: "You can see for yourself. The wretch frightened me into such a state of mind that I hardly knew what I was doing—I went to his rooms to save him. That's the truth, I swear to God! But do you suppose anybody will believe me on oath? They'll—they'll——"

Almost hysterical, she no longer knew what she was saying or doing. She collapsed utterly, and sinking down in a chair, gave way to a passionate fit of sobbing. Annie tried to quiet her:

"Hush!" she said gently, "don't go on like that. Be brave. Perhaps it won't be so bad as you think." She unfolded the letter Alicia had given her and carefully read it through. When she had finished her face lit up with joy. Enthusiastically she cried:

"This is great for Howard! What a blessing you didn't destroy it! What a wretch, what a hound to write you like that! Poor soul, of course, you went and begged him not to do it! I'd have gone myself, but I think I'd have broken an umbrella over his head or something—Gee! these kind of fellows breed trouble, don't they? Alive or dead, they breed trouble! What can we do?"

Alicia rose. Her tears had disappeared. There was a look of fixed resolve in her eyes.

"Howard must be cleared," she said, "and I must face it—alone!"

"You'll be alone all right," said Annie thoughtfully. "Mr. Jeffries will do as much for you as he did for his son."

Noticing that her companion seemed hurt by her frankness, she changed the topic.

"Honest to God!" she exclaimed, good-naturedly, "I'm broken-hearted—I'll do anything to save you from this—this public disgrace. I know what it means—I've had my dose of it. But this thing has got to come out, hasn't it?"

The banker's wife wearily nodded assent.

"Yes, I realize that," she said, "but the disgrace of arrest—I can't stand it, Annie! I can't go to prison even if it's only for a minute." Holding out a trembling hand, she went on: "Give me back the letter. I'll leave New York to-night—I'll go to Europe—I'll send it to Judge Brewster from Paris." Looking anxiously into her companion's face, she pleaded: "You'll trust me to do that, won't you? Give it to me, please—you can trust me."

Her hand was still extended, but Annie ignored it.

"No—no," she said, shaking her head, "I can't give it to you—how can I? Don't you understand what the letter means to me?"

"Have pity!" cried the banker's wife, almost beside herself. "You can tell them when I'm out of the country. Don't ask me to make this sacrifice now—don't ask me—don't!"

Annie was beginning to lose patience. The woman's selfishness angered her. With irritation, she said:

"You've lost your nerve, and you don't know what you're saying. Howard's life comes before you—me—or anybody. You know that!"

"Yes—yes," cried Alicia desperately, "I know that. I'm only asking you to wait. I—I ought to have left this morning—that's what I should have done—gone at once. Now it's too late, unless you help me——"

"I'll help you all I can," replied the other doggedly, "but I've promised Judge Brewster to clear up this matter to-night."

Suddenly there was a commotion at the door. Captain Clinton entered, followed by Detective Sergeant Maloney. Alicia shrank back in alarm.

"I thought Judge Brewster was here," said the captain, glancing suspiciously round the room.

"I'll send for him," said Annie, touching a bell.

"Well, where's your mysterious witness?" demanded the captain sarcastically.

He looked curiously at Alicia.

"This is Mrs. Howard Jeffries, Senior," said Annie, "my husband's stepmother."

The captain made a deferential salute. Bully as he was, he knew how to be courteous when it suited his purpose. He had heard enough of the wealthy banker's aristocratic wife to treat her with respect.

"Beg pardon, m'm; I wanted to tell the judge I was going."

The servant entered.

"Tell Judge Brewster that Captain Clinton is going," said Annie.

Alicia, meantime, was once more on the verge of collapse. The long threatened *exposé* was now at hand. In another moment the judge and perhaps her husband would come in, and Annie would hand them the letter which exculpated her husband. There was a moment of terrible suspense. Annie stood aloof, her eyes fixed on the floor. Suddenly, without uttering a word, she drew Underwood's letter from her bosom, and quickly approaching Alicia, placed it unnoticed in her hand. The banker's wife flushed and then turned pale. She understood. Annie would spare her. Her lips parted to protest. Even she was taken back by such an exhibition of unselfishness as this. She began to stammer thanks.

"No, no," whispered Annie quickly, "don't thank me; keep it."

Captain Clinton turned round with a jeer. Insolently, he said to Annie:

"You might as well own up—you've played a trick on us all."

"No, Captain Clinton," she replied with quiet dignity; "I told you the simple truth. Naturally you don't believe it."

"The simple truth may do for Judge Brewster," grinned the policeman, "but it won't do for me. I never expected this mysterious witness, who was going to prove that Underwood committed suicide, to make an appearance, did I, Maloney. Why not? Because, begging your pardon for doubting your word, there's no such person."

"Begging your pardon for disputing your word, captain," she retorted, mimicking him, "there *is* such a person."

"Then where is she?" he demanded angrily. Annie made no answer, but looked for advice to Judge Brewster, who at that instant entered the room. The captain glared at her viciously, and unable to longer contain his wrath, he bellowed:

"I'll tell you where she is! She's right here in this room!" Pointing his finger at Annie in theatrical fashion, he went on furiously: "Annie Jeffries, you're the woman who visited Underwood the night of his death! I don't hesitate to say so. I've said so all along, haven't I, Maloney?"

"Yes, you told the newspapers so," retorted Annie dryly.

Taking no notice of her remark, the captain blustered:

"I've got your record, young woman! I know all about you and your folks. You knew the two men when they were at college. You knew Underwood before you made the acquaintance of young Jeffries. It was Underwood who introduced you to your husband. It was Underwood who aroused your husband's jealousy. You went to his rooms that night. Your husband followed you there, and the shooting took place!" Turning to Judge Brewster, he added, with a sarcastic grin: "False confession, eh? Hypnotism, eh? I guess it's international and constitutional law for yours after this."

"You don't say so?" exclaimed Annie, irritated at the man's intolerable insolence.

Judge Brewster held up a restraining hand.

"Please say nothing," he said with dignity.

"No, I guess I'll let him talk. Go on, captain," she said with a smile, as if thoroughly enjoying the situation.

Alicia came forward, her face pale, but on it a look of determination, as if she had quite made up her mind as to what course to pursue. In her hand was Underwood's letter. Addressing Annie, she said with emotion:

"The truth must come out sooner or later."

Seeing what she was about to do, Annie quickly put out her hand to stop her. She expected the banker's wife to do her duty, she had insisted that she must,

but now she was ready to do it, she realized what it was costing her. Her position, her future happiness were at stake. It was too great a sacrifice. Perhaps there was some other way.

"No, no, not yet," she whispered.

But Alicia brushed her aside and, thrusting the letter into the hand of the astonished police captain, she said:

"Yes, now! Read that, captain!"

Captain Clinton slowly unfolded the letter. Alicia collapsed in a chair. Annie stood by helpless, but trying to collect her wits. The judge watched the scene with amazement, not understanding. The captain read from the letter:

"Dear Mrs. Jeffries" He stopped, and glancing at the signature, exclaimed, "Robert Underwood!" Looking significantly at Annie, he exclaimed: "Dear Mrs. Jeffries! Is that conclusive enough? What did I tell you?" Continuing to peruse the letter, he read on: "Shall be found dead to-morrow—suicide——" He stopped short and frowned. "What's this? Why, this is a barefaced forgery!"

Judge Brewster quickly snatched the letter from his hand and, glancing over it quickly, said:

"Permit me. This belongs to my client."

Captain Clinton's prognathous jaw snapped to with a click, and he squared his massive shoulders, as he usually did when preparing for hostilities:

"Now, Mrs. Jeffries," he said sharply, "I'll trouble you to go with me to headquarters."

Annie and Alicia both stood up. Judge Brewster quickly objected.

"Mrs. Jeffries will not go with you," he said quietly. "She has made no attempt to leave the State."

"She's wanted at police headquarters," said the captain doggedly.

"She'll be there to-morrow morning."

"She'll be there to-night."

He looked steadily at the judge, and the latter calmly returned his stare. There followed an awkward pause, and then the captain turned on his heel to depart.

"The moment she attempts to leave the house," he growled, "I shall arrest her. Good night, judge."

"Good night, captain!" cried Annie mockingly.

"I'll see you later," he muttered. "Come on, Maloney."

The door banged to. They were alone.

"What a sweet disposition!" laughed Annie.

Judge Brewster looked sternly at her. Holding up the letter, he said:

"What is the meaning of this? You are not the woman to whom this letter is addressed?"

"No," stammered Annie, "that is——"

The judge interrupted her. Sternly he asked:

"Is it your intention to go on the witness stand and commit perjury?"

"I don't know. I never thought of that," she faltered.

The judge turned to Alicia.

"Are you going to allow her to do so, Mrs. Jeffries?"

"No, no," cried Alicia quickly, "I never thought of such a thing."

"Then I repeat—is it your intention to perjure yourself?" Annie was silent, and he went on: "I assume it is, but let me ask you: Do you expect me, as your counsel, to become *participes criminis* to this tissue of lies? Am I expected to build up a false structure for you to swear to? Am I?"

"I don't know; I haven't thought of it," replied Annie. "If it can be done, why not? I'm glad you suggested it."

"I suggest it?" exclaimed the lawyer, scandalized.

"Yes," cried Annie with growing exaltation; "it never occurred to me till you spoke. Everybody says I'm the woman who called on Robert Underwood that night. Well, that's all right. Let them continue to think so. What difference does it make so long as Howard is set free?" Going toward the door, she said: "Good night, Mrs. Jeffries!"

The judge tried to bar her way.

"Don't go," he said; "Captain Clinton's men are waiting outside."

"That doesn't matter!" she cried.

"But you must not go!" exclaimed the lawyer in a tone of command. "I won't allow it. They'll arrest you! Mrs. Jeffries, you'll please remain here."

But Annie was already at the door.

"I wouldn't keep Captain Clinton waiting for the world," she cried. "Good night, Judge Brewster, and God bless you!"

The door slammed, and she was gone.

CHAPTER XIX.

The Jeffries case suddenly entered into an entirely new phase, and once more was deemed of sufficient public interest to warrant column after column of spicy comment in the newspapers. The town awoke one morning to learn that the long-sought-for witness, the mysterious woman on whose testimony everything hinged, had not only been found, but proved to be the prisoner's own wife, who had been so active in his defense. This announcement was stupefying enough to over-shadow all other news of the day, and satisfied the most jaded palate for sensationalism.

The first question asked on all sides was: Why had not the wife come forward before? The reason, as glibly explained by an evening journal of somewhat yellow proclivities, was logical enough. The telling of her midnight visit to a single man's rooms involved a shameful admission which any woman might well hesitate to make unless forced to it as a last extremity. Confronted, however, with the alternative of either seeing her husband suffer for a crime of which he was innocent or making public acknowledgment of her own frailty, she had chosen the latter course. Naturally, it meant divorce from the banker's son, and undoubtedly this was the solution most wished for by the family. The whole unsavory affair conveyed a good lesson to reckless young men of wealth to avoid entangling themselves in undesirable matrimonial adventures. But it was no less certain, went on this journalistic mentor, that this wife, unfaithful as she had proved herself to be, had really rendered her husband a signal service in his present scrape. The letter she had produced, written to her by Underwood the day before his death, in which he stated his determination to kill himself, was, of course, a complete vindication for the man awaiting trial. His liberation now depended only on how quickly the ponderous machinery of the law could take cognizance of this new and most important evidence.

The new turn of affairs was naturally most distasteful to the police. If there was one thing more than another which angered Captain Clinton it was to take the trouble to build up a case only to have it suddenly demolished. He scoffed at the "suicide letter," safely committed to Judge Brewster's custody,

and openly branded it as a forgery concocted by an immoral woman for the purpose of defeating the ends of justice. He kept Annie a prisoner and defied the counsel for the defence to do their worst. Judge Brewster, who loved the fray, accepted the challenge. He acted promptly. He secured Annie's release on *habeas corpus* proceedings and, his civil suit against the city having already begun in the courts, he suddenly called Captain Clinton to the stand and gave him a grilling which more than atoned for any which the police tyrant had previously made his victims suffer. In the limelight of a sensational trial, in which public servants were charged with abusing positions of trust, he showed Captain Clinton up as a bully and a grafter, a bribe-taker, working hand and glove with dishonest politicians, not hesitating even to divide loot with thieves and dive-keepers in his greed for wealth. He proved him to be a consummate liar, a man who would stop at nothing to gain his own ends. What jury would take the word of such a man as this? Yet this was the man who still insisted that Howard Jeffries was guilty of the shooting of Robert Underwood!

But public opinion was too intelligent to be hoodwinked for any length of time by a brutal and ignorant policeman. There was a clamor for the prisoner's release. The evidence was such that further delay was inexcusable. The district attorney, thus urged, took an active interest in the case, and after going over the new evidence with Judge Brewster, went before the court and made formal application for the dismissal of the complaint. A few days later Howard Jeffries left the Tombs amid the cheers of a crowd assembled outside. At his side walked his wife, now smiling through tears of joy.

It was a glad home-coming to the little flat in Harlem. To Howard, after spending so long a time in the narrow prison quarters, it seemed like paradise, and Annie walked on air, so delighted was she to have him with her again. Yet there were still anxieties to cloud their happiness. The close confinement, with its attendant worry, had seriously undermined Howard's health. He was pale and attenuated, and so weak that he had several fainting spells. Much alarmed, Annie summoned Dr. Bernstein, who administered a tonic. There was nothing to cause anxiety, he said reassuringly. It was a natural reaction after what her husband had undergone. But it was worry as much as anything else. Howard worried about his father, with whom he was only partially reconciled; he worried about his future, which was as precarious as ever, and most of all he worried about his wife. He was not

ignorant of the circumstances which had brought about his release, and while liberty was sweet to him, it had been a terrible shock when he first heard that she was the woman who had visited Underwood's rooms. He refused to believe her sworn evidence. How was it possible? Why should she go to Underwood's rooms knowing he was there? It was preposterous. Still the small voice rang in his ears—perhaps she's untrue! It haunted him till one day he asked point-blank for an explanation. Then she told that she had perjured herself. She was not the woman. Who she really was she could not say. He must be satisfied for the present with the assurance that it was not his wife. With that he was content. What did he care for the opinion of others? He knew—that was enough! In their conversation on the subject Annie did not even mention Alicia's name. Why should she?

Weeks passed, and Howard's health did not improve. He had tried to find a position, but without success, yet every day brought its obligations which had to be met. One morning Annie was bustling about their tiny dining room preparing the table for their frugal luncheon. She had just placed the rolls and butter on the table, and arranged the chairs, when there came a ring at the front doorbell. Early visitors were not so unfrequent as to cause surprise, so, without waiting to remove her apron, she went to the door and opened it. Dr. Bernstein entered.

"Good morning, Mrs. Jeffries," he said cheerily. Putting down his medical bag, he asked: "How is our patient this morning?"

"All right, doctor. He had a splendid night's rest. I'll call him."

"Never mind, I want to talk to you." Seriously, he went on: "Mrs. Jeffries, your husband needs a change of scene. He's worrying. That fainting spell the other day was only a symptom. I'm afraid he'll break down unless——"

"Unless what?" she demanded anxiously.

He hesitated for a moment, as if unwilling to give utterance to words he knew must inflict pain. Then quickly he continued:

"Your husband is under a great mental strain. His inability to support you, his banishment from his proper sphere in the social world is mental torture to him. He feels his position keenly. There is nothing else to occupy his mind

but thoughts of his utter and complete failure in life. I was talking to his father last night, and——"

"And what?" she demanded, drawing herself up. She suspected what was coming, and nerved herself to meet it.

"Now, don't regard me as an enemy," said the doctor in a conciliatory tone. "Mr. Jeffries inquired after his son. Believe me, he's very anxious. He knows he did the boy a great injustice, and he wants to make up for it."

"Oh, he does?" she exclaimed sarcastically.

Dr. Bernstein hesitated for a moment before replying. Then he said lightly:

"Suppose Howard goes abroad for a few months with his father and mother?"

"Is that the proposition?" she demanded.

The doctor nodded.

"I believe Mr. Jeffries has already spoken about it to his son," he said.

Annie choked back a sob and, crossing the room to conceal her emotion, stood with her back turned, looking out of the window. Her voice was trembling as she said:

"He wants to separate us, I know. He'd give half his fortune to do it. Perhaps he's not altogether wrong. Things do look pretty black for me, don't they? Everybody believes that my going to see Underwood that night had something to do with his suicide and led to my husband being falsely accused. The police built up a fine romance about Mr. Underwood and me—and the newspapers! Every other day a reporter comes and asks us when the divorce is going to take place—and who is going to institute the proceedings, Howard or me. If everybody would only mind their own business and let us alone he might forget. Oh, I don't mean you, doctor. You're my friend. You made short work of Captain Clinton and his 'confession.' I mean people—outsiders—strangers—who don't know us, and don't care whether we're alive or dead; those are the people I mean. They buy a one-cent paper and they think it gives them the right to pry into every detail of our lives." She paused for a moment, and then went, on: "So you

think Howard is worrying? I think so, too. At first I thought it was because of the letter Mr. Underwood wrote me, but I guess it's what you say. His old friends won't have anything to do with him and—he's lonely. Well, I'll talk it over with him——"

"Yes—talk it over with him."

"Did you promise his father you'd ask me?" she demanded.

"No—not exactly," he replied hesitatingly.

Annie looked at him frankly.

"Howard's a pretty good fellow to stand by me in the face of all that's being said about my character, isn't he, doctor? And I'm not going to stand in his light, even if it doesn't exactly make me the happiest woman in the world, but don't let it trickle into your mind that I'm doing it for his father's sake."

At that moment Howard entered from the inner room. He was surprised to see Dr. Bernstein.

"How do you feel to-day?" asked the doctor.

"First rate! Oh, I'm all right. You see, I'm just going to eat a bite. Won't you join us?"

He sat down at the table and picked up the newspaper, while Annie busied herself with carrying in the dishes.

"No, thank you," laughed the doctor. "It's too early for me. I've only just had breakfast. I dropped in to see how you were." Taking up his bag, he said: "Good-by! Don't get up. I can let myself out."

But Annie had already opened the door for him, and smiled a farewell. When she returned to her seat at the head of the table, and began to pour out the coffee, Howard said:

"He's a pretty decent fellow, isn't he?"

"Yes," she replied absent-mindedly, as she passed a cup of coffee.

"He made a monkey of Captain Clinton all right," went on Howard. "What did he come for?"

"To see you—of course," she replied.

"Oh, I'm all right now," he replied. Looking anxiously at his wife across the table, he said: "You're the one that needs tuning up. I heard you crying last night. You thought I was asleep, but I wasn't. I didn't say anything because—well—I felt kind of blue myself."

Annie sighed and leaned her head on her hand. Wearily she said:

"I was thinking over all what we've been through together, and what they're saying about us——"

Howard threw down his newspaper impatiently.

"Let them say what they like. Why should we care as long as we're happy?"

His wife smiled sadly.

"Are we happy?" she asked gently.

"Of course we are," replied Howard.

She looked up and smiled. It was good to hear him say so, but did he mean it? Was she doing right to stand in the way of his career? Would he not be happier if she left him? He was too loyal to suggest it, but perhaps in his heart he desired it. Looking at him tenderly, she went on:

"I don't question your affection for me, Howard. I believe you love me, but I'm afraid that, sooner or later, you'll ask yourself the question all your friends are asking now, the question everybody seems to be asking."

"What question?" demanded Howard.

"Yesterday the bell rang and a gentleman said he wanted to see you. I told him you were out, and he said I'd do just as well. He handed me a card. On it was the name of the newspaper he represented."

"Well?"

"He asked me if it were true that proceedings for a divorce were about to be instituted. If so, when? And could I give him any information on the subject? I asked him who wanted the information, and he said the readers of his paper—the people—I believe he said over a million of them. Just think, Howard! Over a million people, not counting your father, your friends and relations, all waiting to know why you don't get rid of me, why you don't believe me to be as bad as they think I am——"

Howard raised his hand for her to desist.

"Annie—please!" he pleaded.

"That's the fact, isn't it?" she laughed.

"No."

His wife's head dropped on the table. She was crying now.

"I've made a hard fight, Howard," she sobbed, "but I'm going to give up. I'm through—I'm through!"

Howard took hold of her hand and carried it to his lips.

"Annie, old girl," he said with some feeling, "I may be weak, I may be blind, but nobody on top of God's green earth can tell me that you're not the squarest, straightest little woman that ever lived! I don't care a damn what one million or eighty million think. Supposing you had received letters from Underwood, supposing you had gone to his rooms to beg him not to kill himself—what of it? It would be for a good motive, wouldn't it? Let them talk all the bad of you they want. I don't believe a word of it—you know I don't."

She looked up and smiled through her tears.

"You're so good, dear," she exclaimed. "Yes, I know you believe in me." She stopped and continued sadly: "But you're only a boy, you know. What of the future, the years to come?" Howard's face became serious, and she went on: "You see you've thought about it, too, and you're trying to hide it from me. But you can't. Your father wants you to go abroad with the family."

"Well?"

He waited and looked at her curiously as if wondering what her answer would be. He waited some time, and then slowly she said:

"I think—you had better go!"

"You don't mean that!" he exclaimed, in genuine surprise.

She shook her head affirmatively.

"Yes, I do," she said; "your father wants you to take your position in the world, the position you are entitled to, the position your association with me prevents you from taking——"

Howard drummed his fingers on the tablecloth and looked out of the window. It seemed to her that his voice no longer had the same candid ring as he replied:

"Yes, father has spoken to me about it. He wants to be friends, and I——" He paused awkwardly, and then added: "I admit I've—I've promised to consider it, but——"

Annie finished his sentence for him:

"You're going to accept his offer, Howard. You owe it to yourself, to your family, and to——" She laughed as she added: "I was going to say to a million anxious readers."

Howard looked at her curiously. He did not know if she were jesting or in earnest. Almost impatiently he exclaimed:

"Why do you talk in this way against your own interests? You know I'd like to be friendly with my family, and all that. But it wouldn't be fair to you."

"I'm not talking against myself, Howard. I want you to be happy, and you're not happy. You can't be happy under these conditions. Now be honest with me—can you?"

"Can you?" he demanded.

"No," she answered frankly, "not unless you are." Slowly, she went on: "Whatever happiness I've had in life I owe to you, and God knows you've had nothing but trouble from me. I did wrong to marry you, and I'm willing

to pay the penalty. I've evened matters up with your family; now let me try and square up with you."

"Evened up matters with my family?" he exclaimed in surprise. "What do you mean?"

With a smile she replied ambiguously:

"Oh, that's a little private matter of my own!" He stared at her, unable to comprehend, and she went on gravely: "Howard, you must do what's best for yourself. I'll pack your things. You can go when you please——"

He stared gloomily out of the window without replying. After all, he thought to himself, it was perhaps for the best. Shackled as he was now, he would never be able to accomplish anything. If they separated, his father would take him at once into his business. Life would begin for him all over again. It would be better for her, too. Of course, he would never forget her. He would provide for her comfort. His father would help him arrange for that. Lighting a cigarette, he said carelessly:

"Well—perhaps you're right. Maybe a little trip through Europe won't do me any harm."

"Of course not," she said simply.

Busy with an obstinate match, he did not hear the sigh that accompanied her words or see the look of agony that crossed her face.

"But what are you going to do?" he inquired after a silence.

With an effort, she controlled her voice. Not for all the world would she betray the fact that her heart was breaking. With affected indifference, she replied:

"Oh, I shall be all right. I shall go and live somewhere in the country for a few months. I'm tired of the city."

"So am I," he rejoined, with a gesture of disgust. "But I hate like the deuce to leave you alone."

"That's nothing," she said hastily. "A trip abroad is just what you need." Looking up at him, she added: "Your face has brightened up already!"

He stared at her, unable to understand.

"I wish you could go with me."

She smiled.

"Your father's society doesn't make quite such an appeal to me as it does to you." Carelessly, she added: "Where are you going—Paris or London?"

He sent a thick cloud of smoke curling to the ceiling. A European trip was something he had long looked forward to.

"London—Vienna—Paris," he replied gayly. With a laugh, he went on: "No, I think I'll cut out Paris. I'm a married man. I mustn't forget that!"

Annie looked up at him quickly.

"You've forgotten it already," she said quietly. There was reproach in her voice as she continued: "Ah, Howard, you're such a boy! A little pleasure trip and the past is forgotten!"

A look of perplexity came over his face. Being only a man, he did not grasp quickly the finer shades of her meaning. With some irritation, he demanded:

"Didn't you say you wanted me to go and forget?"

She nodded.

"Yes, I do, Howard. You've made me happy. I want you to be happy."

He looked puzzled.

"You say you love me?" he said, "and yet you're happy because I'm going away. I don't follow that line of reasoning."

"It isn't reason," she said with a smile, "it's what I feel. I guess a man wants to have what he loves and a woman is satisfied to love just what she wants. Anyway, I'm glad. I'm glad you're going. Go and tell your father."

Taking his hat, he said:

"I'll telephone him."

"Yes, that's right," she replied.

"Where's my cane?" he asked, looking round the room.

She found it for him, and as he opened the door, she said:

"Don't be long, will you?"

He laughed.

"I'll come right back. By George!" he exclaimed, "I feel quite excited at the prospect of this trip!" Regarding her fondly, he went on: "It's awfully good of you, old girl, to let me go. I don't think there are many women like you."

Annie averted her head.

"Now, don't spoil me," she said, lifting the tray as if about to go into the kitchen.

"Wait till I kiss you good-by," he said effusively.

Taking the tray from her, he placed it on the table, and folding her in his arms, he pressed his lips to hers.

"Good-by," he murmured; "I won't be long."

As soon as he disappeared she gave way completely, and sinking into a chair, leaned her head on the table and sobbed as if her heart would break. This, then, was the end! He would go away and soon forget her. She would never see him again! But what was the use of crying? It was the way of the world. She couldn't blame him. He loved her—she was sure of that. But the call of his family and friends was too strong to resist. Alternately laughing and crying hysterically, she picked up the tray, and carrying it into the kitchen began washing the dishes. Suddenly there was a ring at the bell. Hastily putting on a clean apron, she opened the door. Judge Brewster stood smiling on the threshold. Annie uttered a cry of pleasure. Greeting the old lawyer affectionately, she invited him in. As he entered, he looked questioningly at her red eyes, but made no remark.

"I'm delighted to see you, judge," she stammered.

As he took a seat in the little parlor, he said:

"Your husband passed me on the stairs and didn't know me."

"The passage is so dark!" she explained apologetically.

He looked at her for a moment without speaking, and for a moment there was an awkward pause. Then he said:

"When does Howard leave you?"

Annie started in surprise.

"How do you know that?" she exclaimed.

"We lawyers know everything," he smiled. Gravely he went on: "His father's attorneys have asked me for all the evidence I have. They want to use it against you. The idea is that he shall go abroad with his father, and that proceedings will be begun during his absence."

"Howard knows nothing about it," said Annie confidently.

"Are you sure?" demanded the lawyer skeptically.

"Quite sure," she answered positively.

"But he is going away?" persisted the judge.

"Yes, I want him to go—I am sending him away," she replied.

The lawyer was silent. He sat and looked at her as if trying to read her thoughts. Then quietly he said:

"Do you know they intend to make Robert Underwood the ground for the application for divorce, and to use your own perjured testimony as a weapon against you? You see what a lie leads to. There's no end to it, and you are compelled to go on lying to support the original lie, and that's precisely what I won't permit."

Annie nodded acquiescence.

"I knew you were going to scold me," she smiled.

"Scold you?" he said kindly. "No—it's myself I'm scolding. You did what you thought was right, and I allowed you to do what I knew was wrong."

"You made two miserable women happy," she said quietly.

The lawyer tried to suppress a smile.

"I try to excuse myself on that ground," he said, "but it won't work. I violated my oath as a lawyer, my integrity as a man, my honor, my self-respect, all upset, all gone. I've been a very unpleasant companion for myself lately." Rising impatiently, he strode up and down the room. Then turning on her, he said angrily: "But I'll have no more lies. That's what brings me here this morning. The first move they make against you and I'll tell the whole truth!"

Annie gazed pensively out of the window without making reply.

"Did you hear?" he said, raising his voice. "I shall let the world know that you sacrificed yourself for that woman."

She turned and shook her head.

"No, judge," she said, "I do not wish it. If they do succeed in influencing Howard to bring a suit against me I shall not defend it."

Judge Brewster was not a patient man, and if there was anything that angered him it was rank injustice. He had no patience with this young woman who allowed herself to be trampled on in this outrageous way. Yet he could not be angry with her. She had qualities which compelled his admiration and respect, and not the least of these was her willingness to shield others at her own expense.

"Perhaps not," he retorted, "but I will. It's unjust, it's unrighteous, it's impossible!"

"But you don't understand," she said gently; "I am to blame."

"You're too ready to blame yourself," he said testily.

Annie went up to him and laid her hand affectionately on his shoulder. With tears in her eyes, she said:

"Let me tell you something, judge. His father was right when he said I took advantage of him. I did. I saw that he was sentimental and self-willed, and all that. I started out to attract him. I was tired of the life I was living, the

hard work, the loneliness, and all the rest of it, and I made up my mind to catch him if I could. I didn't think it was wrong then, but I do now. Besides," she went on, "I'm older than he is—five years older. He thinks I'm three years younger, and that he's protecting me from the world. I took advantage of his ignorance of life."

Judge Brewster shrugged his shoulders impatiently.

"If boys of twenty-five are not men they never will be." Looking down at her kindly, he went on: "Pon my word! if I was twenty-five, I'd let this divorce go through and marry you myself."

"Oh, judge!"

That's all she could say, but there was gratitude in the girl's eyes. These were the first kind words any one had yet spoken to her. It was nice to know that some one saw some good in her. She was trying to think of something to say, when suddenly there was the click of a key being inserted in a Yale lock. The front door opened, and Howard appeared.

"Well, judge!" he exclaimed, "this is a surprise!"

The lawyer looked at him gravely.

"How do you do, young man?" he said. Quizzingly he added: "You look very pleased with yourself!"

"This is the first opportunity I've had to thank you for your kindness," said Howard cordially.

"You can thank your wife, my boy, not me!" Changing the topic, he said: "So you're going abroad, eh?"

"Yes, did Annie tell you? It's only for a few months."

The lawyer frowned. Tapping the floor impatiently with his cane, he said:

"Why are you going away?"

Taken aback at the question, Howard stammered:

"Because—because——"

"Because I want him to go," interrupted Annie quickly.

The lawyer shook his head, and looking steadily at Howard, he said sternly:

"I'll tell you, Howard, my boy. You're going to escape from the scandalmongers and the gossiping busy-bodies. Forgive me for speaking plainly, but you're going away because your wife's conduct is a topic of conversation among your friends——"

Howard interrupted him.

"You're mistaken, judge; I don't care a hang what people say——"

"Then why do you leave her here to fight the battle alone?" demanded the judge angrily.

Annie advanced, and raised her hand deprecatingly. Howard looked at her as if now for the first time he realized the truth.

"To fight the battle alone?" he echoed.

"Yes," said the judge, "you are giving the world a weapon with which to strike at your wife!"

Howard was silent. The lawyer's words had struck home. Slowly he said:

"I never thought of that. You're right! I wanted to get away from it all. Father offered me the chance and Annie told me to go——"

Annie turned to the judge.

"Please, judge," she said, "don't say any more." Addressing her husband, she went on: "He didn't mean what he said, Howard."

Howard hung his head.

"He's quite right, Annie," he said shamefacedly. "I never should have consented to go; I was wrong."

Judge Brewster advanced and patted him kindly on the back.

"Good boy!" he said. "Now, Mrs. Jeffries, I'll tell your husband the truth."

"No!" she cried.

"Then I'll tell him without your permission," he retorted. Turning to the young man, he went on: "Howard, your wife is an angel! She's too good a woman for this world. She has not hesitated to sacrifice her good name, her happiness to shield another woman. And that woman—the woman who called at Underwood's room that night—was Mrs. Jeffries, your stepmother!"

Howard started back in amazement.

"It's true, then, I did recognize her voice!" he cried.

Turning to his wife, he said: "Oh, Annie, why didn't you tell me? You saved my stepmother from disgrace, you spared my father! Oh, that was noble of you!" In a low tone he whispered: "Don't send me away from you, Annie! Let me stay and prove that I'm worthy of you!"

To the young wife it all seemed like a dream, almost too good to be real. The dark, troubled days were ended. A long life, bright with its promise of happiness, was before them.

"But what of the future, Howard?" she demanded gently.

Judge Brewster answered the question.

"I've thought of that," he said. "Howard, will you come into my office and study law? You can show your father what you can do with a good wife to second your efforts."

Howard grasped his outstretched hand.

"Thanks, judge, I accept," he replied heartily.

Turning to his wife, he took her in his arms. Her head fell on his shoulder. Looking up at him shyly and smiling through her tears, she murmured softly:

"I am happy now—at last!"

THE END.

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Carolina Lee is the Uncle Tom's Cabin of Christian Science. Its keynote is "Divine Love" in the understanding of the knowledge of all good things which may be obtainable. When the tale is told, the sick healed, wrong changed to right, poverty of purse and spirit turned into riches, lovers made worthy of each other and happily united, including Carolina Lee and her affinity, it is borne upon the reader that he has been giving rapid attention to a free lecture on Christian Science; that the working out of each character is an argument for "Faith;" and that the theory is persuasively attractive.

A Christian Science novel that will bring delight to the heart of every believer in that faith. It is a well told story, entertaining, and cleverly mingles art, humor and sentiment.

HILMA, by William Tillinghast Eldridge, with illustrations by Harrison Fisher and Martin Justice, and inlay cover.

It is a rattling good tale, written with charm, and full of remarkable happenings, dangerous doings, strange events, jealous intrigues and sweet

love making. The reader's interest is not permitted to lag, but is taken up and carried on from incident to incident with ingenuity and contagious enthusiasm. The story gives us the *Graustark* and *The Prisoner of Zenda* thrill, but the tale is treated with freshness, ingenuity, and enthusiasm, and the climax is both unique and satisfying. It will hold the fiction lover close to every page.

**THE MYSTERY OF THE FOUR FINGERS, by Fred M. White,
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AT THE TIME APPOINTED. With a frontispiece in colors by J. H. Marchand.

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The hero is an unconventional preacher who follows the line of the Man of Galilee, associating with the lowly, and working for them in the ways that may best serve them. He is not recognized at his real value except by the one woman who saw clearly. Their love story is one of the refreshing things in recent fiction.

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A MILLION A MINUTE, By Hudson Douglas.

With illustrations by Will Grefe.

Has the catchiest of titles, and it is a ripping good tale from Chapter I to Finis—no weighty problems to be solved, but just a fine running story, full of exciting incidents, that never seemed strained or improbable. It is a dainty love yarn involving three men and a girl. There is not a dull or trite situation in the book.

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With illustrations by N. C. Wyeth, and beautiful inlay cover.

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